

DEPARTMENT OF HUMAN SERVICES

Social Services Rules

CHILD WELFARE SERVICES

12 CCR 2509-4

[Editor's Notes follow the text of the rules at the end of this CCR Document.]

7.300 CHILD WELFARE SERVICES

7.300.1 FAMILY ENGAGEMENT [Eff. 5/1/12]

County departments of human/social services shall adopt family engagement practices. Family engagement means joining with the family/kin to establish common goals of safety, well-being, and permanency throughout the involvement and is inclusive of other systems. This is an overarching theme of practice throughout service assessment, planning, and delivery. Family engagement practice shall include, but not be limited to, family meetings, cultural responsiveness, and reflect the core principles below:

- A. It focuses on the strengths and interests of the child, youth, and family.
- B. It promotes family and youth choice through family and youth-driven decisions.
- C. It actively supports that all families receive timely access to culturally responsive services they identify as necessary to safely care for their children and youth, and results in meaningful family involvement.
- D. It supports relationship building and community participation.
- E. It fosters mutual trust and respect between families, youth, agency, and stakeholders.
- F. It values the support network and relationships of each individual.
- G. Information sharing is open, honest, and clear.
- H. It extends beyond the immediate family members to those identified by the family as a source of support and strength and who will serve beyond the involvement of the child welfare system to help sustain the reunification and/or ability to safely parent the children/youth.

7.301 ASSESSMENT AND FAMILY SERVICES PLANNING

7.301.1 ASSESSMENT [Eff. 1/15/15]

- A. The Colorado Assessment Continuum (CAC) will be utilized throughout the case. The CAC includes the:
 - 1. Safety assessment and plan, referenced in Section 7.107.1 and Section 7.107.16 (12 CCR 2509-2).
 - 2. Risk assessment, referenced in Section 7.107.2 (12 CCR 2509-2).

- B. Safety assessment and risk assessment are ongoing processes throughout the life of the case. Safety and risk assessments, as defined in this manual, shall be completed for each Program Area 5 case accepted for assessment by the county department and shall be the basis for case planning. Each of these assessments shall be entered into the automated case management system in accordance with the timeframes referenced in Section 7.301.1, A, 1 and 2.
 - 1. The family, including relatives with caretaking responsibilities for children in the household, shall be involved in all phases of assessment and case planning.
 - 2. Assessment tools or resources available through community agencies shall be incorporated in the assessment, based on the culture, ethnicity and other needs of the family.
 - 3. As a result of this assessment/evaluation, the caseworker and family shall identify the family's current safety and risk, to include level of functioning, areas of strengths, specific areas of concern to be addressed, and changes that must occur to remedy the concerns that brought the family to the agency. This information shall be included in the Family Services Plan.

7.301.2 FAMILY SERVICES PLAN REQUIREMENTS [Eff. 09/1/07]

The county department shall complete the Family Services Plan document for each child/youth receiving services to assure that the child/youth's needs for safety, permanency, and well-being are met. The Family Services Plan shall incorporate the following principles:

- A. A child/youth's safety is paramount;
- B. Children/youth belong in families;
- C. Families need the support of communities; and,
- D. Community partners are key to achieving strong outcomes for children/youth and families.

7.301.21 Family Services Plan Timing Requirements

The Family Service Plan document must be completed:

- A. The Family Service Plan document must be completed within sixty (60) calendar days of the referral date in the automated case management system for children/youth. Discrete sections in the treatment/prevention plan are required for each child/youth participating as a child/youth, parent, provider and kin.
- B. For youth fourteen (14) years of age and over in out-of-home placement, the Roadmap to Success, a plan for each youth to make a successful transition to adulthood, shall be completed within:
 - 1. Sixty (60) calendar days of the youth reaching their fourteenth (14th) birthday; or
 - 2. Sixty (60) calendar days of the youth entering out of home placement.

7.301.22 Family Service Plan Participants

- A. The county shall assure that the following parties participate in the development of the Family Services Plan and engagement activities, except in Foster Youth in Transition cases in which the youth and caseworker are the only required parties:
1. Caseworker;
 2. Parent(s) or legal guardians;
 3. Child/youth;
 4. Immediate and extended family members as appropriate to the service needs of the family, child, and youth; and,
 5. Service providers, including kin caregivers, out-of-home caregivers, and in-home providers.
- B. In addition to all parties being encouraged to sign the plan, all parties shall be engaged in activities that indicate involvement in service planning, including, but not limited to:
1. Family engagement meetings; or,
 2. Ongoing contacts could include, but are not limited to, face-to-face, family-time visitation, email, texts, technology with face-to-face capacity, emerging technology, or signatures on the Family Services Plan.
 3. If a child/youth's parent is incarcerated, the county department shall, upon knowledge of the incarceration and when the parent is expected to be incarcerated beyond thirty-five (35) days from the Dependency and Neglect Dispositional court hearing, coordinate and facilitate available services with the Family Services Coordinator or other designated communications liaison of the facility where the parent is incarcerated.
- C. Activities shall be documented in the State Department's automated system and may be located in the record of contact notes, the framework field, ninety (90) day reviews, and progress reports to the court. Documentation shall reflect the various ways in which attempts were made to engage parents, child/youth, and providers.

7.301.23 Family Service Plan Documentation

The treatment/prevention plan in the Family Services Plan shall document:

- A. That services to be provided are directed at the areas of need identified in the assessment. Outcomes to be achieved as a result of the services provided will be described in terms of specific, measurable, agreed upon, realistic, time-limited objectives and action steps to be accomplished by the parents, child/youth, service providers and county staff. For youth in foster youth in transition cases, the roadmap to success fulfills this requirement, as provided in 7.203.4 (12 CCR 2509-3).
- B. That placement prevention strategies for the child/youth allow the child/youth to remain safely at home or with kin.
- C. That services to be provided are designed to assure that the child/youth receives safe and proper care.

- D. That services to be provided are culturally and ethnically appropriate and trauma-informed. Appropriate cultural or ethnic considerations should include, but are not limited to, consideration of the child/youth's family, community, neighborhood, faith or religious beliefs, school activities, friends, and the child/youth's and family's primary language.

7.301.231 Integration of Safety and Risk Requirements [Rev. eff. 1/1/15]

Integration of safety and risk requirements into the case plan in the family services plan shall be accomplished in the following ways:

- A. Safety and risk assessments completed in the assessment portion of the automated case management system shall automatically become a part of the case, when a case is opened.
- B. Current or impending danger identified on the safety assessment will be the basis for developing treatment/prevention plan objectives.
- C. Risk factors identified during a thorough and balanced assessment shall be considered in the treatment/prevention plans.

7.301.24 Family Service Plan Out-of-Home Placement Documentation

For child(ren)/youth in out-of-home placement, the Family Services Plan documents:

- A. The child/youth meets all of the out-of-home placement criteria listed in Section 7.304.3.
- B. When the child/youth is part of a sibling group and the sibling group is being placed out of the home, it shall be presumed that placement of the entire sibling group in the joint placement is in the best interests of the children/youth in order to sustain family relationships. Such presumption may be rebutted by the county by a preponderance of the evidence that placement of the entire sibling group in the joint placement is not in the best interests of a child/youth or of the children/youth. The county shall make reasonable and continued efforts to locate a joint placement for all of the children/youth in the sibling group unless:
 - (1) it is not in the best interests of the children/youth to be placed as a group as determined by the county in consultation with the family, youth, and GAL /Counsel for youth (CFY) when possible, and
 - (2) these efforts unreasonably delay permanency for any child/youth.

These efforts depend upon the county's ability to locate an appropriate, capable, willing, and available joint placement for all of the children/youth in the sibling group. As soon as practicable after making a decision affecting sibling placement, the county department shall notify the GAL(s) and/or counsel for youth appointed to the case. Efforts to place siblings as a group shall be documented in the Colorado child welfare information system (CCWIS).

- C. The problems to be resolved in order to facilitate reunification of the child/youth and family, and to safely maintain the child/youth in the home.
- D. A description of the type of facility in which the child/youth is placed and the reason(s) the placement is appropriate and safe for the child/youth.

- E. A description of the county's efforts to place the child/youth in reasonable proximity to the home of the parents and to the "school of origin" as defined in § 22-32-138(g), C.R.S. For a child/youth placed a substantial distance from the home of the parent(s), from his or her "school of origin," or in out-of-state placement, the county shall document how the placement meets the best interests of the child/youth, including how the county took into account proximity to parents and school in making its placement decision (see sections 7.304.54, J and 7.301.241).
- F. A summary of efforts to ensure educational stability as outlined in Section 7.301.241.
- G. That the placement is the least restrictive, safe, and most appropriate setting available consistent with the best interests and specific needs of the child. This includes documentation of initial and on-going efforts to place the child/youth with kin.

If the child/youth is moved to a more restrictive placement after the initial placement, the Family Services Plan documents how the more restrictive placement meets the child/youth's needs.

- H. Health and educational information shall be documented in the State Department's automated system and updated at the time of each case review, including addresses and other contact information about the child/youth's current:
 - 1. Education providers, including school, school district, and Board of Cooperative Education Services (BOCES) contacts who assist in the coordination of enrollment and services, and the child/youth's academic progress.
 - 2. Health care providers and the status of health care information.
- I. Specific plans for how the county will carry out any court determinations or orders concerning the child/youth.
- J. A description of the services and resources needed by the foster parents or kinship providers to meet the needs of the child/youth and how those services and resources will be provided.
- K. family time requirements for the purposes of preserving and strengthening family ties in the most home-like environment and to promote cultural connections whenever possible.

The county department shall encourage the maximum parent, child, and sibling contact possible, including regular family time and participation by the parents in the care of the child or youth, when it is in the best interest of the child or youth. At a minimum, the family time plan shall address the following:

- 1. frequency, length (duration), location.
- 2. persons who may be present;
- 3. if family time must be supervised, and who will provide that supervision;
- 4. if informal resources are available and appropriate for transportation and supervision. These resources must not compromise the child's or youth's mental, emotional, or physical health or safety.
- 5. the child's or youth's additional opportunities to communicate with a parent, sibling, or other relative.

- L. For child(ren) under the age of fourteen (14), a description of services and a plan for accomplishing tasks to prepare child(ren) to be age appropriately self-sufficient, when independent living services are provided.
- M. For youth aged fourteen (14) and older, a roadmap to success as early in placement as possible but no later than sixty (60) calendar days after the youth's fourteenth (14th) birthday.
- N. Reasonable efforts have been made to maintain the child/youth in the home, or prevent or eliminate the need for removal of the child/youth from the home, or make it possible for the child/youth to return to the home; or when applicable, documentation of the circumstances that exist in which reasonable efforts to prevent removal or reunite the child and the family are not required (see Section 7.304.53, B, 3).
- O. The specified permanency goal for the child/youth shall be based on the individual needs and best interests of the child/youth. Permanency goals shall include one of the following:
 - Remain home;
 - Return home;
 - Permanent placement with a relative through adoption;
 - Permanent placement with a relative through legal guardianship or permanent custody;
 - Adoption (non-relative);
 - Legal guardianship/permanent custody (non-relative);
 - Return home through reinstatement of parental rights;
 - Other planned permanent living arrangement through emancipation;
 - Other planned permanent living arrangement through relative long term foster care;
 - Other planned permanent living arrangement through non-relative long term foster care.

Permanency goals shall include the projected date (month, day, and year) by which the goal is to be accomplished for each child/youth receiving services.

- 1. The initial permanency goal for the child/youth is to return home with the following exceptions:
 - a. Children/youth whose parents are both deceased or have both voluntarily relinquished custody;
 - b. Children/youth whose parents cannot be located after family search and engagement activities, which shall begin no later than three working days following placement and shall not exceed three months;
 - c. Children/youth whose parents have been guilty of repeated and/or severe abuse or neglect of the child/youth or the child/youth's siblings such that termination of parental rights of both parents is appropriate;

- d. Children/youth for whom it appears, after investigation, that a safe return home will not be possible even with the provision of reasonable efforts; or,
 - e. Youth who are participating in the Foster Youth in Transition program.
 - 2. After twelve months, the child/youth's caseworker and supervisor shall include written justification on the Family Services Plan for continuation of the goal of return home.
 - 3. After eighteen months, the extraordinary circumstances which exist and the reasons which support the permanency goal of return home shall be documented in the Family Services Plan. Approval of the return home permanency goal by the caseworker, supervisor and county administrative review is documented in the case record.
 - 4. In concurrent planning cases the alternate permanency goal shall be documented.
 - 5. The permanency goal of other planned permanent living arrangement through emancipation shall only be used for youth ages sixteen to twenty-one.
 - 6. For a child/youth who has been in foster care under the responsibility of the state for fifteen (15) of the last twenty-two (22) months, the county shall either file a motion for termination of parental rights no later than the end of the fifteenth (15th) month or document and submit to the court at the next review the compelling reason why it is in the child/youth's best interest not to terminate parental rights.
- P. The steps the agency is taking to find an adoptive or other permanent living arrangement for a child/youth for whom the permanency plan is adoption or placement in another permanent home.
- Q. The permanency goal for the child would be to remain home barring case circumstances that would indicate the need for an alternative permanency goal when a teen mother and her child are placed together in the same foster home and if a case is opened on the child. The county must see the child when visiting the teen mother in the foster home.
- R. Requirements for use of Other Planned Permanent Living Arrangement goals as follows:
 - 1. The county department may consider Other Planned Permanent Living Arrangement (OPPLA) as a permanency goal:

For youth who are sixteen (16) years of age or over and are demonstrating exceptional circumstances that prevent the youth from returning home, adoption, legal guardianship or permanent custody.
 - 2. The goal shall be reviewed through the use of a family engagement meeting or equivalent team that reviews permanency needs. All of the following shall be submitted to and considered by the review team, and the recommendation shall be submitted to the court.
 - a. Documentation pertaining to the completion of an intensive and ongoing examination of kin and permanent connections. This process shall also address:
 - 1) A comprehensive assessment of the youth's strengths and needs. In addition to updating the assessment of the youth's strengths and needs, the updated assessment or staffing shall address the youth's capacity to live within a family setting.

- 2) This review team shall also consider the youth's desired permanency outcome.
 - b. A detailed description of efforts made to achieve permanency through the other goals and identification of the barriers to achieve them.
 - c. A detailed description of how OPPLA is in the best interest of the youth.
 3. The following is to be documented and made available to the court at each court review.
 - a. Documentation of the barriers to permanency to date and compelling reasons why the other permanency goals are not attainable.
 - b. Documentation of the youth's desired permanency outcome including giving the youth an opportunity to attend each hearing to voice his/her desired goal.
 - c. Documentation of intensive, ongoing, and as of the date of the hearing, unsuccessful efforts to return the youth home or secure a placement for the youth with a fit and willing relative (including adult siblings), a legal guardian, or an adoptive parent, including thorough efforts that utilize technology (including social media) to find biological family members for the youth.
 - d. Documentation of the steps taken to ensure that youth are being supported in-engaging in age or developmentally appropriate activities and social events including:
 - 1) The youth's foster family home or other placement is following the reasonable and prudent parent standard; and,
 - 2) The youth has regular, ongoing opportunities to engage in age or developmentally appropriate activities (including consulting with the youth in an age-appropriate manner about the opportunities of the youth to participate in the activities).
 4. Documentation which includes the review team's reasons for approving Other Planned Permanent Living Arrangement (OPPLA) shall also be entered in the Family Service Plan as directed by the Division of Child Welfare.
 5. The use of this goal shall be reviewed by a family engagement or equivalent review team at a minimum of every six (6) months. The county shall request that the court review the case every twelve (12) months to determine if the youth is demonstrating exceptional circumstances that prevent the youth from returning home, adoption, legal guardianship or permanent custody.
 6. If this goal is not achieved through relative care, a family-like network of significant people shall be developed to provide the youth with a sense of belonging and with support expected to endure over a lifetime.
 7. Youth who have an open case through the Foster Youth in Transition Program are presumed to meet the above requirements for a goal of other permanent planned living arrangement through emancipation. The goal shall be reviewed by the court on an annual basis pursuant to 19-7-311, C.R.S.
- S. Reinstatement of Parental Rights

1. The county department of human or social services may explore the use of reinstatement of parental rights as a permanency option for:
 - a. Children twelve (12) years of age and older, or child(ren) younger than twelve (12) years of age if they are part of a sibling group where at least one of the child(ren) or youth is twelve (12) or older and is pursuing reinstatement of parental rights; and,
 - b. Child(ren) younger than twelve (12), if they are part of a sibling group where at least one of the child(ren) is twelve or older, and is pursuing reinstatement of parental rights; and,
 - c. Child(ren) who currently do not have a legal parent; and,
 - d. Child(ren) who currently are not in an adoptive placement and not likely to be adopted within a reasonable period of time; and,
 - e. Child(ren) who had all other permanency options exhausted; and,
 - f. Cases when the termination of parental rights was ordered at least three-years-prior or when it is determined by the court to be in the best interest of the child(ren) when termination occurred less than three years prior to the date of the petition for reinstatement is being filed with the court; and,
 - g. Child(ren) and former parent(s) that consent to parental rights being reinstated; and,
 - h. Child(ren) where it is in their best interest, including the financial best interest, to have parental rights reinstated; and,
 - i. Former parent(s) who have remedied the issues that led to the termination and those issues did not involve founded allegations of sexual abuse or an incident of egregious abuse or neglect against a child, a near fatality, or a suspicious fatality; and,
 - j. The child is in the legal custody of a county department.
2. A county department of human or social services that identifies reinstatement as a permanency option shall complete an assessment of the former parent(s). Completion of the assessment and the results of the assessment will be documented in the statewide case management system. The assessment shall include all of the following:
 - a. Completing the Colorado family risk assessment tool, which must include a visit and inspection of the former parent's home;
 - b. Reviewing the reasons for the termination of parental rights and determining if the concerns identified have been remedied and do not currently exist or present a safety concern;
 - c. Conducting the following background checks on the former parent(s) and any other adults eighteen (18) years of age or older in their home and share the results with all parties to the case:

- 1) Child abuse/and/or neglect records check in every state where any adult residing in the home has lived in the five years preceding the filing of the petition for reinstatement;
 - 2) Fingerprint-based criminal history checks from the Colorado Bureau of Investigation (CBI), or other state background check if the parent lives in another state, and the Federal Bureau of Investigation (FBI);
 - 3) Review the state Judicial Department's case management system and include in the case record; and,
 - 4) Review the CBI sex offender registry and the national sex offender public website operated by the United States Department of Justice for:
 - a) Known names and addresses of each adult residing in the home; and,
 - b) Address only of the home.
3. A safety assessment shall be completed.
4. Upon the decision to pursue reinstatement of parental rights; only the county department, guardian ad litem, or a child twelve (12) years of age or older may file the petition for reinstatement.
 - a. The petition for reinstatement of parental rights should be filed in the county that has custody of the child(ren) through the dependency and neglect court case.
 - b. The petition shall be filed in the dependency and neglect court case where the termination of parental rights occurred for the former parent(s) or in the event that the current open dependency and neglect case is a termination of the adoptive parent's rights, then the petition shall be filed in that court case, as it grants custody of the child(ren) to the county.
 - c. If the county is contacted by a former parent inquiring about reinstatement, the county must notify the guardian ad litem (GAL) and child twelve (12) years of age or older within thirty (30) calendar days after the contact and provide them with the name and address of the former parent(s).
 - d. Once the court sets an initial hearing, the county shall develop and report to the court the following:
 - 1) Whether the former parent(s) has remedied the conditions that led to the termination;
 - 2) Based on the assessment of the former parent, including the outcome of the Colorado family risk assessment tool, the transition plan shall include support or treatment needed for the child(ren) and former parent(s) to help make the reinstatement a success;
 - 3) Whether the former parent(s) can provide a safe and stable home for the child(ren);

- 4) A family time plan or temporary placement plan with the former parent(s) for up to a six-month trial period where custody remains with the department; this plan will be approved or modified at this initial hearing.
 - a) Updates about the family time, transition plan, and supports shall be provided at each review hearing and no later than thirty (30) calendar days prior to the expiration of the trial home period.
 - b) At any point the placement is deemed no longer safe or in the best interest of the child(ren), removal shall be in accordance with procedures outlined in Sections 19-3-401 and 19-3-403, C.R.S.
- 5) Whether the child(ren) will lose or gain any benefits or services (Medicaid, Chafee, etc.) as a result of the reinstatement being granted.
- 5. If the court grants the order, the county shall select reinstatement of parental rights as the closure reason, in the state automated case management system.
- 6. If the court denies the order the county department shall:
 - a. Arrange for immediate placement of the child(ren), if the child(ren) is still in the former parent's home;
 - b. Set a permanency hearing to determine a new permanency goal and plan for the child(ren).

7.301.241 Education Requirements for Children/Youth in Out-of-Home Placement

- A. Documentation shall be entered into the state automated case management system to address compliance with all requirements in this section, 7.301.241, including designation of responsibilities.
- B. County departments shall coordinate with the local public school, school district, the State Charter School Institute, and/or board of cooperative education services (collectively referred to as "education provider" for the purposes of this section) to ensure educational stability for each "student in out-of-home placement" as defined in § 22-32-138(1)(e) and (h), C.R.S. including those attending public pre-school. County departments shall notify "education providers" upon each school-aged child/youth entering or changing out-of-home placement, even if no school change is being considered.
- C. Each placement of a child/youth shall take into account the appropriateness of the current educational setting and the proximity to the "school of origin" as defined in § 22-32-138(1)(g), C.R.S. See Section 7.301.24, E.
- D. It is presumed to be in a child/youth's best interest to remain in the "school of origin." If transportation is necessary to maintain the child/youth in the "school of origin," this shall be provided in accordance with section 7.301.241, E.

The county shall make a best interest determination prior to any school move resulting from a change in placements unless remaining in the "school of origin" poses a specific, documented threat to the child/youth's safety. The best interest determination process is as follows:

1. The best interest discussion and determination shall occur as an in-person meeting when warranted and possible. When an in-person meeting is not warranted or not possible, or for participants unable to attend the meeting, the county department shall consult participants by other means, such as phone or email.
2. The county department shall invite the following people to participate in the best interest determination. If a participant is unavailable or cannot be located, the county shall document the various ways in which attempts were made to engage that participant.
 - a. Child/youth,
 - b. Parents,

For purposes of this subsection 7.301.241, the term “parents” includes a natural parent having sole or joint custody, regardless of whether the parent is designated as the primary residential custodian, or a parent allocated parental responsibilities with respect to a child, or an adoptive parent. Parent does not include a person whose parental rights have been terminated pursuant to the provisions of Title 19 of the Colorado Revised Statutes, the parent of an emancipated minor, or the parent of a youth participating in the Foster Youth in Transition program.
 - c. Caseworker or appropriate designee,
 - d. Guardian ad litem and/or counsel for youth if one is appointed,
 - e. Representative from the “school of origin” who knows the child/youth, as determined by the “education provider,”
 - f. Educational surrogate parent, if any, and
 - g. Others as relevant and appropriate as determined by the county, which may include but are not limited to future caregiver, court appointed special advocate (CASA), current caregiver, representatives from potential new school, support person for the child/youth.
3. Best interest determination meetings may be incorporated into family engagement meetings. The county department shall protect the family’s confidentiality by including school personnel only in the portion of the meeting regarding the child/youth’s educational needs, unless members consent to their ongoing participation in the meeting.
4. The best interest determination shall address whether it is in the child/youth’s best interests to either:
 - a. Remain in the same school, or
 - b. Attend another appropriate school.

The potential new school(s) to consider may include any school in which the child/youth may enroll pursuant to state law and “education provider” policy, including but not limited to C.R.S. § 22-1-102 (defining residence of child), C.R.S. § 22-32-116 (defining exception to exclusion of non-residents), or C.R.S. § 22-20-107.5 (defining residence of child who receives special education). The county department need not consider every possible school; rather the county should identify which school or schools they are considering so the attributes of the specific schools can be considered.

If it is determined to be in the child/youth's best interest to attend a new school, the best interest determination shall also include the date when the child/youth will change schools. The child/youth shall remain in the "school of origin" until this date. It is presumed to be in a child/youth's best interest to be in the least restrictive environment and to transfer at natural transitions such as the beginning of the school year or academic term.

5. The county department shall make the best interest determination in collaboration with the "education provider" and other participants and in consideration of the following non-exhaustive factors, as relevant:
 - a. Child/youth's wishes,
 - b. Child/youth's safety,
 - c. How the "school of origin" can meet the child/youth's academic and non-academic needs (including special education, extra-curricular activities, social, emotional, and other needs). In considering the child/youth's needs, the county department shall give special weight to whether the child/youth has a meaningful and appropriate relationship with an adult at the "school of origin,"
 - d. How the potential new school could meet the child/youth's academic and non-academic needs, including special education, extra-curricular activities, social, emotional, and other needs,
 - e. How the decision impacts the child/youth's permanency goal(s), and
 - f. The length of travel and impact on the child/youth.
 - g. The cost of transportation is not a permissible consideration in determining the child/youth's best interest.
6. If the county determines that it is not in a child/youth's best interest to remain in the same school, the "education provider" shall immediately, on the date designated in the best interest determination, enroll the child/youth in a new school, even without records normally required for enrollment, pursuant to the Every Student Succeeds Act, 42 U.S.C. § 675(1)(G)(ii). In order to facilitate transfers at natural academic transitions whenever possible, "immediately" means the date designated in the best interest determination, not necessarily the date the determination is made.
7. The county department shall inform the CHILD/youth, parent(s), guardian ad litem and/or counsel for youth, and educational surrogate parent, if any, of the best interest determination within one business day of making the determination. The notification shall serve as the first day in the dispute resolution time frames described in section 7.301.24, D, 8.
 - a. Parents of a youth participating in the Foster Youth in transition program are not required to be notified.

8. Disputes regarding best interest determinations shall be handled in a manner that promotes the child/youth's safety and stability, as follows:

If the parent(s), guardian ad litem, child/youth twelve (12) years of age or older, and/or educational surrogate parent, if any, is a party to an accompanying court case and disagrees with the county department's best interest determination, he or she must file a motion with the juvenile court to seek judicial resolution. Such a motion must be filed within three business days of the notice of the county's determination. If the county receives such a motion, the child/youth shall remain in the "school of origin" pending dispute resolution, unless remaining in the school poses a specific, documented threat to the child/youth's safety. If such parties indicate their agreement to a school move, the county need not delay the move pending the three-day appeal period.
- E. County departments and "education providers" shall collaborate to ensure that children in foster care needing transportation to the "school of origin" will promptly receive transportation in a cost-effective manner. County departments and "education providers" shall collaborate to develop systems-level transportation plans, including how transportation will be provided, arranged, and funded for the duration of time the child/youth is in out-of-home placement and, if accepted by the family, the remainder of the academic term during which a child/youth exits out-of-home placement. Transportation plans may be developed at the local and/or regional levels.
- F. County departments shall document efforts to ensure the child/youth meets the state compulsory attendance requirements.
- G. Procedures for special education evaluations when children are in out-of-home care:
 1. If a child/youth is suspected to have a disability affecting his or her education, the caseworker shall make a written referral for a special education evaluation to the designated representatives of the child/youth's "education provider" of jurisdiction, which is the "education provider" where the child is a resident for educational purposes, before a non-emergency placement in a residential child care facility.
 2. Upon any placement of a child/youth with a disability or suspected of having a disability into a residential child care facility, the caseworker shall make a verbal notification within five working days and a written notification within fifteen calendar days to the "education provider" of jurisdiction after the placement.
 3. Educational costs of placements are not reimbursable to the county department until after notice of the placement is given to the "education provider" of jurisdiction.
 4. If the special education evaluation results in a determination that the child/youth is disabled pursuant to section 504 of the Rehabilitation Act and/or the Individuals with Disabilities Education Act, which means that the child/youth qualifies for disability accommodations and/or special education services, the county and "education provider" of jurisdiction shall meet to determine if the educational needs of the child/youth can be met in the placement or the Core Services program.
 5. If the child/youth is not eligible for disability accommodations and/or special education services, the county may be responsible for educational costs.

7.301.242 Procedures for Maintaining Education Records [Rev. eff. 4/1/12]

For children/youth in out-of-home placement, the county department shall maintain records within the case file and/or in the fields available in the education section of the automated system that include, but are not limited to, identification of:

- A. School name and address at the time of removal from the home.
- B. Current school name, address, and telephone number.
- C. Grade or classroom designation.
- D. Most recent end-of-term grades or other school district approved progress reporting method if grades are not issued.
- E. Educational needs including, but not limited to, special education and summaries of the efforts of the county department to address the needs.
- F. Educational plans based on individual needs, including an IEP.
- G. Educationally based evaluations.

7.301.243 Early Intervention and Supports for Children Birth to Age of 3 in Out-of-Home Placement, Part C, of the Individuals with Disabilities Education Act (IDEA)

- A. Documentation of referral, services, and planning shall be recorded in the education section of the automated system.
- B. Infants and children under age 3 who may have delays in development or established conditions associated with a disability shall be referred to the local "Child Find" effort. The local "Child Find" may be the School District/Board of Cooperative Educational Services (BOCES), Early Childhood Connections (ECC) organization, or an appropriate community resource for assessment for the identification of needs that may impact the child's development.
- C. The county department shall participate with the school district and/or ECC; or community resource, family, and other pertinent individuals to develop a plan to address identified service and support needs and for transition planning.

7.301.244 COUNTY RESPONSIBILITIES WHEN A CHILD/YOUTH'S TREATMENT NEEDS ARE MOST APPROPRIATELY MET IN A QUALIFIED RESIDENTIAL TREATMENT PROGRAM (QRTP) LEVEL OF CARE.

When a child/youth who may need treatment is identified, the county department of human/social services (county department) shall review the child/youth's treatment options through a county-specific review process. When the county department has custody and believes treatment in a QRTP is in the best interest of the child/youth, the county department shall make a referral for a Qualified Individual to complete an independent assessment. The county department shall hold a Family and Permanency Team Meeting within fourteen (14) calendar days of the acceptance of the referral. If after the county department has held the Family and Permanency Team Meeting and when the Qualified Individual indicates that treatment in a QRTP is warranted, the county department may admit the child/youth to a QRTP.

- A. If a county department places a child/youth in a QRTP on an emergency basis, the county department shall make a referral for a Qualified Individual to complete an independent assessment within five (5) calendar days.
- B. When a child/youth is in need of respite care, it shall be at the same level of current care or a lower level of care. If the county department wants a child/youth to be in respite care in a QRTP, the county department shall follow the requirements for making a referral for a Qualified Individual to complete an independent assessment.

- C. The recommendation of the Qualified Individual shall be documented in the permanency plan of the state automated case management system.
- D. The county department shall enter a corresponding record of contact (ROC) note with the following information from the Child and Adolescent Needs and Strengths (CANS) tool which is updated every ninety (90) days: what is the level of treatment recommended for the child/youth, are there any outstanding treatment needs that remain, and are there any notable changes since the last CANS tool was completed.
- E. The Family and Permanency Team Meeting may be facilitated and shall be documented in the framework of the state automated case management system. The Family and Permanency Team Meeting shall invite the following attendees (when available):
 - 1. Parents or Legal Guardians;
 - 2. Relatives;
 - 3. Kin;
 - 4. Professionals who are a resource to the family of the child/youth;
 - 5. The youth if age fourteen (14) or older;
 - 6. If the child is age fourteen (14) or older, the team must also include the members of the permanency planning team for the child that are selected by the child in accordance with the Title IV-E case planning requirements (section 475a(c)(1)(B)(i) and (ii) of the family first prevention services act);
 - 7. The Qualified Individual; and,
 - 8. The Guardian ad Litem or Counsel for Youth.
 - 9. If the child is under age fourteen (14) the county department shall consider the appropriateness of their participation in the Family and Permanency Team Meeting.
- F. The county department shall share the independent assessment summary with all family participants at the Family and Permanency Team Meeting.
- G. If the treatment recommendations made by the Qualified Individual at the time of the independent assessment are not available to the county department, this shall be documented in the state automated case management system and alternative treatment recommendations will be discussed at the Family and Permanency Team Meeting.
- H. If the recommendations made by the Qualified Individual are not followed by the county department or are considered not appropriate at the time the independent assessment is completed, the county department shall provide a thorough explanation to support their decision.
- I. Prior to release from a QRTP, the county department shall work with the QRTP provider to develop a plan for six (6) months of aftercare services to either be provided by the QRTP provider or by an identified community-based provider that will meet the individual needs of the child/youth and family.

7.301.245 COUNTY RESPONSIBILITIES WHEN A CHILD/YOUTH IS REACHING THEIR LIFETIME LIMIT IN A QUALIFIED RESIDENTIAL TREATMENT PROGRAM (QRTP)

If a child/youth's length of treatment in a QRTP is approaching twelve (12) consecutive months; or approaching eighteen (18) non-consecutive months, or the length of treatment for a child who has not reached age thirteen (13) is approaching six (6) consecutive or non-consecutive months; and, the child/youth receiving treatment in a QRTP may need continued treatment beyond the limits defined by the Family First Prevention Services Act (Family First), the county department shall request extended treatment by submitting a length of stay waiver request to the Executive Director of the Colorado Department of Human Services (CDHS):

- A. No later than forty-five (45) days prior to the child or youth reaching the applicable length of stay limit as described above, the county department will submit the following documents to the CDHS Executive Director:
 - 1. A letter from the county department's director or their designee requesting the waiver including details regarding:
 - a. An explanation of the need for the waiver;
 - b. The county's plan during the waiver extension period if granted;
 - c. An outline of what reasonable efforts were made prior to the waiver request for stepping down the child or youth's level of out-of-home care from QRTP; and,
 - d. An outline of what reasonable efforts are being made to achieve permanency for the child or youth.
 - 2. A copy of the most recent independent assessment summary;
 - 3. The estimated discharge date from the QRTP;
 - 4. A copy of the most recent 90-day review; and,
 - 5. All Child and Adolescent Needs and Strengths (CANS) tools completed for the child/youth along with a treatment progress summary.
- B. For a child/youth entering a QRTP after the federal maximum length of stay has been reached, these documents need to be received by the CDHS executive director at the completion of the independent assessment process.
- C. If the waiver is granted by the CDHS Executive Director for Title IV-E reimbursement, it will continue to be funded in the same manner as the original service authorization. The waiver will expire upon the anticipated discharge date from the QRTP or six (6) months after the date the waiver goes into effect, whichever occurs first. The CDHS Executive Director has the ability to approve the length of stay waiver request in its entirety or with limitations. A new length of stay waiver request must be submitted no later than forty-five (45) days prior to the waiver expiring when an initial length of stay waiver is granted.
- D. If the waiver is not granted by the CDHS Executive Director for Title IV-E reimbursement, and the child/youth remains in a QRTP past the child/youth's lifetime limit, then the county department will be responsible for payment for the child/youth remaining in a QRTP at the CDHS expenditure requirement.

- E. The county department shall be responsible for gathering all necessary documentation for submission of the court report, which shall include the Qualified Individual's final summary report.
- F. If a child/youth has exceeded their lifetime limit prior to treatment in a QRTP, an independent assessment would be required and after the Qualified Individual recommendation has approved the QRTP then a waiver request will be required within thirty (30) days of the approved independent assessment summary report.

7.301.3 FAMILY SERVICES PLAN REVIEW AND UPDATES

A continuing reassessment and documentation of the Family Services Plan in relationship to progress to goals shall be done. If a significant change in client service needs occurs, a redetermination of eligibility and/or a reassessment of services shall occur and the Family Services Plan shall be amended, if applicable.

- A. The reassessment should be performed jointly with the client and in situations where joint evaluation cannot occur, the reasons shall be documented in the case record.
- B. When assessment indicates reunification is appropriate, the treatment/prevention Plan shall be updated to reflect the specific time frame and services necessary for the child to be safely returned to and maintained in the home.
- C. The treatment/prevention plan shall be reviewed in conference with the caseworker and the supervisor. Documentation by the caseworker and approval by the supervisor shall be entered in the state automated case management system within 90 calendar days from the initial treatment/prevention plan and then within 90 calendar days from the prior review and thereafter. The court report, when entered in the state automated case management system, or a six month administrative review of children in out of home placement, may substitute for a 90 day review. The conference shall address:
 - 1. The Safety needs of the child to include: if a new referral was received how it was managed, and if a new assessment was completed a summary of the outcome;
 - 2. The appropriateness of the child's current residence and how it meets the child's needs;
 - 3. Whether the child, parents, family members, and placement providers if applicable, are receiving the specific services mandated by the family services plan, and services are appropriate, time frames are current and progress is being made toward the specific objectives identified in the plan;
 - a. If a child/youth's parent is incarcerated, the county department shall communicate or document the efforts to communicate with the parent who is incarcerated and the person designated as the Family Services Coordinator or other designated communications liaison of the facility or jail where the parent is incarcerated regarding the requirements of the court-ordered Family Services Plan.
 - 4. Identification of the barriers hindering progress and how they are being addressed. What strengths are being used to mitigate barriers;
 - 5. Appropriateness of the child's permanency goal, time frames to achieve permanency and the efforts to finalize a permanent plan;
 - 6. Summary of initial and ongoing family search and engagement efforts and steps taken to develop ongoing support. These efforts shall continue per section 7.304.52, C, 1-4.

- D. The following cases are to be set for further review by the county department:
1. All cases in which a child has been placed in four different placements, excluding a return home;
 2. All cases in which a child has a current goal of return home for more than twenty four months;
 3. All cases in which the child has had a permanency goal of adoption for more than one year and has not been placed in an adoptive home; and,
 4. All children who have been returned home and have re- entered care more than twice and have a current plan of return home.
 5. All children for whom the permanency goal is another planned permanent living arrangement.
- E. if the child/youth is in a qualified residential treatment program (QRTP) or has spent any time during this review period in a QRTP, additional information shall be documented in the comprehensive child welfare information system (CCWIS) as outlined in section 7.705.205-208.

7.302 CHILD WELFARE CHILD CARE [Rev. eff. 4/1/12]

Child Welfare Child Care is a service to maintain children in their own homes or in the least restrictive out-of-home care when there are no other child care options available. Child Welfare Child Care is not twenty-four (24) hour care.

Child care services for school-age children during regular school hours must be different from, and cannot be substituted for, educational services that school districts are required to provide under the Colorado Exceptional Children's Act.

7.302.1 ELIGIBILITY CRITERIA

In addition to meeting eligibility requirements in the General Information and Policies section, the county department shall ensure that there are no other child care options available and the child is eligible for Program Area 4, 5, or 6 as described in this manual.

7.302.2 CHILD CARE ARRANGEMENT AND FAMILY SERVICES PLAN [Rev. eff. 4/1/12]

The county department shall:

- A. Complete the relevant sections of the Family Services Plan.
- B. Document how the child care plan provides for effective intervention for maintaining children in their own homes or in the least restrictive out-of-home care.
- C. Provide the client with information concerning child care services.
- D. Have face-to-face or telephone contact with the child and/or family a minimum of once a month, and with the provider a minimum of quarterly when the reason for the child care is child protection. These contacts shall include a discussion of current progress and future direction. If the child is in placement, the contact requirements in Section 7.001.6 (12 CCR 2509-1) shall be used.
- E. Assess a client fee when applicable. Refer to Section 3.905, B (9 CCR 2503-1).

- F. Develop written criteria to be used to determine when the State set parental fee should be waived.
- G. Follow State rules for the Colorado Child Care Assistance Program (CCCAP) as found in rule manual Volume 3 "Income Maintenance", Section 3.900 et seq. (9 CCR 2503-1).

7.303 CORE SERVICES PROGRAM

7.303.1 DEFINITIONS [Rev. eff. 1/1/15]

The Core Services Program consists of the following services:

- A. "Aftercare Services": any of the Core services provided to prepare a child for reunification with his/her family or other permanent placement and to prevent future out-of-home placement of the child.
- B. "County Designed Services": innovative and/or otherwise unavailable services proposed by a county that meet the goals of the Core Services Program.
- C. "Day Treatment": comprehensive, highly structured services that provide education to children and therapy to children and their families.
- D. "Home Based Intervention": services provided primarily in the home of the client and includes a variety of services which can include therapeutic services, concrete services, collateral services and crisis intervention directed to meet the needs of the child and family. See Section 7.303.14 for service elements of therapeutic, concrete, collateral, and crisis intervention services.
- E. "Intensive Family Therapy": therapeutic intervention typically with all family members to improve family communication, functioning, and relationships.
- F. "Life Skills": services provided primarily in the home that teach household management, effectively accessing community resources, parenting techniques, and family conflict management.
- G. "Mental Health Services": diagnostic and/or therapeutic services to assist in the development of the family services plan, to assess and/or improve family communication, functioning, and relationships.
- H. "Sexual Abuse Treatment": therapeutic intervention designed to address issues and behaviors related to sexual abuse victimization, sexual dysfunction, sexual abuse perpetration, and to prevent further sexual abuse and victimization.
- I. "Special Economic Assistance" means emergency financial assistance of not more than \$2,000 per family per year in the form of cash and/or vendor payment to purchase hard services. See Section 7.303.14 for service elements of hard services.
- J. "Substance Abuse Treatment Services": diagnostic and/or therapeutic services to assist in the development of the family service plan, to assess and/or improve family communication, functioning and relationships, and to prevent further abuse of drugs or alcohol.

7.303.11 Program Goals

The goals of the Core Services Program are to:

- A. Focus on the family strengths by directing intensive services that support and strengthen the family and/or protect the child;
- B. Prevent out-of-home placement of the child;
- C. Return children in placement to their own home; or
- D. Unite children with their permanent families.
- E. Provide services that protect the child.

“To return children in placement to their own home or to unite children with their permanent families” is defined as return to the home of a parent, an adoptive placement, guardianship, supervised independent living placement, foster-adoption placement or to live with a relative/kin if the goal for the child in the Family Services Plan is to remain in the placement on a permanent basis.

7.303.12 Access

County departments must make all of the Core services, except for county designed services, available to any client who meets the criteria for the service as documented in the Family Services Plan.

7.303.13 Program Eligibility [Rev. eff. 1/1/14]

In order to be eligible for the Core Services Program, each child, youth, and family shall:

- A. Meet Program Area Three eligibility criteria; or,
- B. Meet the criteria for Program Area 4, 5, or 6 target group; and,
 - 1. Meet the Colorado out-of-home placement criteria at the time of each placement in any Core Services Program; and/or,
 - 2. Require a more restrictive level of care but may be maintained at a less restrictive out-of-home placement or in his/her own home with Core Services.

7.303.14 Service Elements

Core Services Programs may include any of the following elements of service:

- A. “Collateral Services”: teaching families to work with community agencies such as health care, mental health treatment services, substance abuse treatment services, job training, information and referral, advocacy groups, housing assistance agencies, and schools.
- B. “Concrete Services”: concentrated assistance in the development and enhancement of parenting skills, stress reduction, problem solving, communication skills, budget and household management and recreational activities.
- C. “Crisis Intervention Services”: phone or in-home counseling, medical services, respite or other interventions available on a 24-hour basis.
- D. “Diagnostic and Treatment Planning Services”: various evaluations of the child and family to facilitate the development of the Family Services Plan and the move of the child to a permanent placement.
- E. “Hard Services”: the purchase of services or distribution of cash payments for the following:

- housing funds, including rent, repairs, utilities, or rent deposits
 - food or money for food
 - clothing
 - transportation to include fares, auto repair, auto fuel, auto insurance or bus pass
 - uncovered medical or dental expenses
 - appliances, furniture
 - emergency shelter
 - employment related expenses, such as tools or dues
- F. "Therapeutic Services": interactive parenting, family therapy, support groups, educational groups, problem solving methods, communication skills, and parent-child conflict management.

7.303.15 Service Time Frames

- A. Services may be provided for up to eighteen (18) months.
- B. One or more six month extensions to the initial eighteen months placement are optional if approved by an internal county department administrative review and documentation of approval is in the case record. The in-house review shall include casework or supervisory staff and one or more administrators not providing direct services to the family.

7.303.16 Workload Standards

- A. Each worker engaged in home based intervention, intensive family therapy, and sexual abuse treatment programs shall have at least two (2) and not more than twelve (12) at risk families depending on the intensity of service needed per family.
- B. Life skills shall have staff persons assigned to work no more than twenty (20) families.
- C. Supervisory workload ratio shall be six (6) caseworkers per supervisor. Contractors shall provide comparable supervision.

7.303.17 Performance Indicators [Rev. eff. 4/1/12]

Core Services Program success shall be measured by the degree to which the following performance indicators identified in the Family Services Plan are achieved by clients.

- A. "Family Conflict Management": The family shall demonstrate capacity to resolve conflicts and disagreements contributing to child maltreatment, running away, status offenses and delinquent behavior.
- B. "Parental Competency": Parents will show ability to maintain sound relationships with their children and provide care, nutrition, hygiene, discipline, protection, instructions, and supervision.
- C. "Household Management Competency": Parents will be able to provide safe environment for their children through competent household cleaning and maintenance, budgeting and purchasing, and structuring mealtime and families activities.

- D. "Resources Access Competency": Parents will demonstrate ability to obtain help from the community and within the local, state, and federal governments.
- E. "Personal and Individual Competency": Families will show awareness in terms of self-esteem, victim awareness, management of one's own history of victimization, sex education, peer relationships enhancement establishing appropriate physical and emotional boundaries for themselves and for their children, demonstrating assertive behavior, and assuming responsibility for one's own behavior.
- F. "Academic, Behavioral and Emotional Competency": Children involved in day treatment settings will demonstrate ability to meet school requirements, to control behavior, and to control and communicate feelings.
- G. "Competence in Maintaining Sobriety": Parents will be able to maintain sobriety and/or develop relapse plans to provide for the care, nutrition, hygiene, discipline, protection, instruction, and supervision of the child(ren). Child(ren) will be able to maintain sobriety and/or develop relapse plans to avoid running away, status offenses, or delinquent behavior.

The county department shall identify the degree to which the client met the treatment goals by entering the appropriate service leave reason on the Department's automated reporting system when closing the service on the Department's automated reporting system.

7.303.2 INTEGRATED CARE MANAGEMENT PROGRAM

7.303.21 Definition

Integrated Care Management (ICM) allows a county-optional, State-approved plan for the provision of selected child and family services. County ICM plans shall identify specific principles, activities, and program components to improve outcomes for children, youth, and families; to support best practices; to advance selected care management strategies; to improve quality and accountability; and, to provide cost efficient delivery of needed services.

7.303.22 Program Goals

The goals of the Integrated Care Management program shall include:

- A. More efficient and responsive services systems for children, youth and families.
- B. Increased flexibility and collaboration across multiple agencies and funding streams to meet consumer needs and avoid cost shifting between systems.
- C. Encouragement and authorization for an integrated services system that incorporates blended funding and administration.
- D. Focus on quality and outcome driven services with accountability for an entire array of services that families need.
- E. Development of data systems to support these goals and to allow administrators and policy makers to better manage and evaluate.

7.303.23 Availability

Integrated Care Management is an optional program for individual county or groups of counties. Counties may elect to participate by operating a State approved Integrated Care Management program.

7.303.24 Program Eligibility

County departments shall define program eligibility criteria in the proposed plan, which must include all program components and define how each principle will be implemented. The county programs will be approved by the State Department.

7.303.25 Program Components

Each plan must contain the following program components. Counties may operationalize the program components as listed beneath each component or in another manner approved by the State Department.

- A. Utilization Management (UM) - A system of inter-agency services review and approval procedures designed to ensure that the services provided to a specific child or family at a given time are cost-effective, clinically appropriate and least restrictive. The goal of utilization management is to provide the most appropriate, least restrictive service that meets the needs of the child and the family. Utilization management may include:
 - 1. Application implemented with any or all of the services used by the county departments.
 - 2. Concurrent review activities that focus on reducing or increasing any level of service and may be conducted by dedicated staff and/or a multi-agency review team.
 - 3. Written UM guidelines including standardized UM processes and criteria for UM that may include definitions for key levels of care.
 - 4. Provider profiling where data is supplementally tracked, differentiating provider performance and competencies.
- B. Case Management (CM) - Refers to a process by which the services provided to a specific child or family are tracked and managed to achieve optimum, cost effective outcomes. Case management activities may include:
 - 1. Identification and tracking of selected cases or types of cases.
 - 2. Systematic management approach that integrates tracking and targeting of cases for identified, targeted interventions and outcomes.
 - 3. Varying levels of case management across different providers integrating provider profiling and collaborative activities, such as involving providers in case management activities.
 - 4. Procedures which minimize time between referral and delivery of care, and provide dedicated resources and support for any or all of service referrals.
 - 5. Prevention and early intervention in which the county offers supports before more intensive intervention is needed.
- C. Resource Strategies - Involve efforts to organize and manage resources to achieve the goals of the county department paying for care. Resource strategies may include:
 - 1. Contract incentives employing shared risks or performance incentives to influence provider behavior and service delivery.
 - 2. Provider resource structure offering efficiencies and standardized care approaches that promote efficient and appropriate care delivery.

3. Resource blending using collaborative efforts with other child and family serving agencies.
- D. Information Management Strategies (IM) - the identification, collection, analysis and use of various types of data to further the county's mission and goals. IM may include:
1. Tracking information related to service use including identifying service utilization costs, aggregating and reporting.
 2. Creating routine reports and IM activities including trend analyses by case type, provider, services category and other variables; or using complex multi-level analyses to identify cost drivers and adjust risks.
- E. Collaborative Integration (CI) - Inclusion of consumers and agencies in the community in the development of the agency's vision, mission and goals and in the implementation of the ICM program. Formal efforts may be directed at coordinating services, integrating care and cooperation between agencies and consumers and may include:
1. Plans for integration, contractual agreements or blending of resources with community agencies.
 2. Strategies to utilize formal and informal community based organizations and family support networks to ensure child safety and promote child and family well-being.
 3. Plans to have formal inter-agency agreements, Memorandums of Understanding and contracts with community based organizations and a process to engage community partners.
- F. Quality Improvement (QI) - Formal organizational processes that emphasize the ongoing improvement of both the process of service delivery and client outcomes through the incorporation of data driven approaches and the institution of systems of monitoring, feedback and organizational learning. QI activities may include:
1. Implementing a formal QI process, which may be narrowly, implemented expanding over time to agency-wide including a written plan and formal process.
 2. Implementing a training schedule that trains staff on some aspect of any of the ICM principles or information obtained as a result of use of the principles, such as the outcome of the quality improvement process.
 3. Implementing Quality Improvement activities for at least one high cost driver and having dedicated staff for QI activities.

7.303.3 COLLABORATIVE MANAGEMENT PROGRAM [Rev. eff. 8/1/15]

The Collaborative Management Program (CMP) is an optional county program approved by the Department of Human Services for a uniform system for agencies to share resources or to manage and integrate the treatment and services provided to children, youth, and families who would benefit from a multi-system approach to services and service delivery.

7.303.31 Program Goals [Rev. eff. 8/1/15]

The goals of the Collaborative Management Program include:

- A. Reducing duplication and fragmentation of services to children, youth, and/or families who would benefit from integrated multi-agency services or approach;
- B. Increasing the quality, appropriateness, and effectiveness of services provided to children, youth or families who would benefit from integrated multi-agency services or approach; and,
- C. Encouraging cost sharing among service providers.

7.303.32 Availability [Rev. eff. 8/1/15]

- A. Collaborative Management is an optional program for an individual county or groups of counties. Counties may elect to participate by entering into a Memorandum of Understanding (MOU) that is designed to promote a collaborative system to coordinate and manage the provision of services to children, youth, and families who would benefit from an integrated multi-system approach to service and service delivery. Counties must use the MOU template provided by the State and developed in conjunction with the Colorado Judicial Districts.
- B. The MOU shall be between interested county departments of human/social services and local representatives of each of the following agencies:
 - 1. The local judicial district(s), including probation services;
 - 2. The health department, whether a county, district, or regional health department;
 - 3. The local school district(s);
 - 4. Each comprehensive behavioral health safety net provider as identified by the behavioral health administration;
 - 5. Each behavioral health administrative services organization;
 - 6. The Division of Youth Services;
 - 7. A managed service organization for the provision of treatment of services for alcohol and drug abuse; and,
 - 8. A community domestic abuse program, if representation is available.
- C. Counties electing to participate in the MOU may add non-mandatory partners or organizations and are encouraged to include a family member or family advocacy organization, and a youth member or youth advocacy organization.
- D. Counties will be provided with guidance/instructions for the completion of the MOU established by the State Department to help in the completion of the MOU process.
- E. MOUs must be submitted to the Colorado Department of Human Services on or before May 1st of the fiscal year prior to the MOU agreement year for review and feedback. Completed MOUs, including all signatures, are due on June 30th of the fiscal year prior to the MOU agreement year. Any MOU received after that date will not be accepted and will result in a loss of funding for the next fiscal year.
- F. Reviews of each county's MOU will be completed by the State Department and will consist of a review and completion of the MOU review checklist. The review checklist consists of the following areas:

1. A list of mandated partners;
 2. MOU deadlines;
 3. Oversight group documentation;
 4. Target population review;
 5. Services provided review;
 6. Funding sources review;
 7. Reinvestment of funds review;
 8. Collaborative Management process review;
 9. Confidentiality compliance review; and,
 10. Review of required signatures.
- G. Each Collaborative Management Program that meets the criteria will receive a signed letter of acceptance from the State Department approving the MOU for the next fiscal year within fifteen (15) days of such approval.

7.303.33 Program Components [Rev. eff. 8/1/15]

Each Memorandum of Understanding (MOU) shall contain the following program components.

A. Interagency Oversight Group (IOG)

A system of inter-agency oversight will be developed in the MOU through the creation of an Interagency Oversight Group (IOG). Each IOG must include a local representative of each party to the MOU, each of whom shall be a voting member of the IOG. In addition, the IOG may include advisory members.

1. The MOU shall define the following components of the IOG:
 - a. Membership requirements;
 - b. The status of each party as a voting member or advisory member;
 - c. Procedures for election of officers;
 - d. Procedures for resolving disputes by a majority vote of voting members; and,
 - e. Procedures for the development of subcommittee groups.
2. These components shall be maintained in each IOG's by-laws or procedure guide.
3. Process measures shall be identified in the mou annually.

B. Target Population

The CMP target population consists of at-risk children and youth ages birth through twenty one (21) years of age and their families who would benefit from a multi-system approach or integrated service plan as defined in the MOU. Each MOU must include the population that will be served through the designated Individualized Service and Support Team (ISST) or multi-system involved team(s) and CMP prevention programs. Children and youth who are at-risk will be determined in accordance with parties to the MOU.

1. An individualized service and support team (ISST) includes two (2) or more system representatives that are present to assist a child/youth/family with developing an integrated service plan directed by family need. The ISST identifies goals and facilitates collaboration and is a family-driven model for service planning. The child/youth/family members are present at and participating in the development of their plan.
2. CMP prevention programs must demonstrate a multi-systemic approach. Programs must demonstrate in the MOU that multiple disciplines were involved in the development or enhancement of the program or that multiple agencies are involved in the delivery of the service.
3. Programs must demonstrate that the program was developed to reduce bifurcated services aimed at the same outcome and demonstrate, if not provided through CMP, the bifurcated approach would bestow a burden to each of the systems. Each MOU must articulate how the joint approach will benefit children, youth, and/or families in their communities.

C. Elements of Collaborative Management

Each county/region MOU must establish a collaborative management process that addresses:

1. Risk sharing;
2. Resource pooling;
3. Performance expectations;
4. Outcome monitoring; and,
5. Staff training.

The definitions of each for the elements of Collaborative Management shall be maintained by each IOG's by-laws or procedure guide and provided as an appendix to the MOU on an annual basis.

D. Monitoring

The Department will monitor at least one CMP per quarter to ensure implementation of the collaborative management program in accordance with statutes, rules, and the MOU.

1. CMP monitoring will include:
 - a. A review of the IOG process;
 - b. A review of the by-laws or procedure guide ensuring it includes the elements required in statute and rule; and,

- c. The accuracy and reliability of county-level program data.
- 2. A review of prevention programs to ensure that each is in compliance with the definitions outlined under target population in the MOU.
- 3. A review of the data reporting for all program components and expenditure data.
- 4. Each county/region must enter all participants served through the CMP program's target populations: demographics, services, outcomes, and expenditures in the designated data collection system as determined by the Department, so that it can be tracked and monitored.

7.303.34 Reporting [Rev. eff. 8/1/15]

Each IOG must provide an annual report to the State Department that includes:

- A. The actual number of children, youth and/or families served through the Individualized Service and Support Team (ISST) or multi-system involved staffing and a description of the recommended services; the outcomes of the services provided, the number, age, race, gender, and, if known, the disability status of the children served; a description of the outcomes for children served; a description of any reduction in duplication or fragmentation of services provided and a description of any significant improvement in outcomes for children, youth and/or families;
- B. The actual number of children, youth, and/or families served through the multi-systemic prevention program and the outcomes of the services provided, including a description of any reduction in duplication or fragmentation of services provided and a description of any significant improvement in outcomes for children, youth, and or families;
- C. A description of estimated costs of implementing the Collaborative Management Program and any estimated cost-shifting or cost-savings that may have occurred;
- D. The number of children and families who were referred to a local Collaborative Management Program and did not receive recommended services, including a description of the services that were recommended but not provided; a description of the barriers to providing such services; and the age, race, gender, and, if known, the disability status of the children;
- E. The number of children, by age, served by a local Collaborative Management Program, who were referred by the juvenile justice system (including courts, probation, division of youth services, Colorado Youth Detention Continuum (CYDC), diversion, or law enforcement);
- F. The number of children, by age, who were served by a local Collaborative Management Program, who were referred by a county department of human or social services, including referrals through a dependency and neglect case;
- G. The number of children, by age, who were served by a local Collaborative Management Program and who identified themselves to the local Collaborative Management Program as:
 - 1. A named victim in a criminal protection order pursuant to Section 18-1-1001 or in a juvenile delinquency or criminal case;
 - 2. A recipient of victim compensation pursuant to Part 4.1 of this title 24; or
 - 3. A protected party in a protection order pursuant to Part 14 of title 13, Section 19-2-707 as it existed prior to its repeal in 2021, or Section 18-1-1001;

- H. An accounting of funds that were reinvested in additional services provided to children, youth, and/or families due to cost-savings; and,
- I. A description of any identified barriers to provide effective services.

7.303.35 Allocation Funding Formula

In order to receive collaborative management program (CMP) funds, the county must implement Collaborative Management components and have a signed Collaborative Management MOU accepted by the Colorado Department of Human Services on or before June 30 of the current fiscal year.

A CMP task group, made up of CMP coordinators, CDHS staff, local IOG members, and CMP state agency stakeholders must be formed to review and make proposed changes to the allocation funding formula. In the event that the CMP taskgroup does not reach an agreement on the allocation formula, the Executive Director of the Department of Human Services shall submit the final proposal for the allocation of moneys to the State Board of Human Services.

7.303.36 General Fund Savings and Distribution [Rev. eff. 8/1/15]

County departments must elect to either retain the state general share of the county under-expenditure of the General Fund county child welfare block allocation or participate in surplus distribution for each fiscal year in their MOU. If a county/region chooses to retain the savings realized, they must specify the procedure by which such savings will be reinvested, including to which parties to the MOU such reinvested savings will be available.

The Department, after input from the Child Welfare Allocations Committee, shall develop the method for determining General Fund savings realized as the result of counties' implementation of a collaborative system of management of multi-agency services provided to children and families related to the funding sources specified in an MOU.

7.303.4 HUMAN TRAFFICKING

- A. When the county department of human or social services has reason to believe a child/youth subject to an open assessment or for whom the county agency has responsibility for placement, care or supervision is, or is at risk of being, a victim of human trafficking, the county department shall:
 - 1. screen the child/youth for risk of human trafficking using the state-approved human trafficking screen;
 - 2. determine service needs;
 - 3. Document the details of the human trafficking screen, assessment, and services in the comprehensive child welfare information system;
 - 4. Report immediately, and no later than twenty-four (24) hours from when the county department becomes aware, to the local law enforcement agency; and,
 - 5. Document the details of the report to law enforcement in the comprehensive child welfare information system.
- B. If a child/youth who is in the legal custody of the county department of human or social services or for whom the county department of human or social services has authority for placement is missing, then the county department shall:

1. Report immediately and no later than twenty-four (24) hours from when the county department receives notification that the child/youth is missing, to the local law enforcement agency of the child/youth's last known residence and to the National Center for Missing and Exploited Children (NCMEC). The county department shall document the details of the reports in the comprehensive child welfare information system. The report submitted to law enforcement and NCMEC shall include when reasonably possible:
 - a. A recent or current photo of the missing youth/child;
 - b. a description of the child's or youth's physical features, such as height, weight, sex, ethnicity, hair color, and eye color; and
 - c. Endangerment information such as pregnancy status, prescription medications, suicidal tendencies, vulnerability for human trafficking, and other health or risk factors.
2. Make reasonable efforts to locate a child/youth who is missing and document those efforts a minimum of once per month in the comprehensive child welfare information system:
 - a. Efforts shall include regular contact with law enforcement and NCMEC related to efforts to recover the child/youth.
3. Upon confirmation of the return of the child/youth, make reasonable efforts to complete the following activities and document those efforts in the comprehensive child welfare information system:
 - a. Determine the primary factors that contributed to the child/youth being missing;
 - b. Determine the child/youth's experiences while missing, including conducting the human trafficking screen to determine if the child/youth is a possible human trafficking victim; and,
 - c. Respond to factors identified in 7.303.4.B.3.a-b, above, in current and subsequent services.
 - d. Contact and provide information to the local law enforcement agency and NCMEC related to circumstances of the child or youth's recovery.
- c. If a child/youth for whom the county department of human or social services has responsibility for care or supervision is missing and is believed to be, or is at risk of being, a victim of human trafficking, then the county department shall:
 1. Report immediately, and no later than twenty-four (24) hours from when the county department receives notification that the child/youth is missing, to the local law enforcement agency of the child/youth's last known residence and to NCMEC. The county department shall document the details of the reports in the comprehensive child welfare information system. The report submitted to law enforcement and NCMEC shall include when reasonably possible:
 - a. A recent or current photo of the missing youth/child;
 - b. A description of the child's or youth's physical features such as height, weight, sex, ethnicity, hair color, and eye color; and

- c. Endangerment information such as pregnancy status, prescription medications, suicidal tendencies, vulnerability for human trafficking, and other health or risk factors.
- 2. For as long as a child/youth is under the responsibility of the county department of human or social services for care and supervision, make reasonable efforts to locate a child/youth who is missing and document those efforts once per month in the comprehensive child welfare information system:
 - a. Efforts shall include regular contact with law enforcement and NCMEC related to efforts to recover the child/youth.
- 3. Upon confirmation of the return of the child/youth, make reasonable efforts to complete the following activities and document those efforts in the comprehensive child welfare information system:
 - a. Determine the primary factors that contributed to the child/youth being missing;
 - b. Determine the child/youth's experiences while missing, including conducting the human trafficking screen to determine if the child/youth is a possible human trafficking victim; and,
 - c. Respond to factors identified in 7.303.4.c.3.a-b, above, in current and subsequent services.
 - d. Contact and provide information to the local law enforcement agency and NCMEC related to circumstances of the child or youth's recovery.

7.304 PLACEMENT SERVICES

7.304.1 DESCRIPTION [Rev. eff. 1/1/16]

- A. Placement services are services provided to children in Program Areas 4, 5, and 6 who:
 - 1. Meet the criteria for out-of-home placement and the target group criteria; and,
 - 2. Are placed outside their homes because of a temporary emergency removal by law enforcement, court action, a voluntary placement agreement, or a voluntary services agreement; and,
 - 3. Are in a placement approved by the county department.
- B. The range of placement services for children for whom the goal is to return home includes kinship care, foster care homes, specialized group facilities, and residential child care facilities.
- C. The range of placement services for children for whom the goal is not to return home includes adoption, kinship care, foster care homes, specialized group facilities, and residential child care facilities.
- D. Placement options in this section do not apply to American Indian/Native Alaskan children. Refer to Section 7.309.7 for order of placement preference as required by the Indian Child Welfare Act.

7.304.2 PLACEMENT OPTIONS

7.304.201 Sibling Placement

When the child/youth is part of a sibling group and the sibling group is being placed out of the home, it shall be presumed that placement of the entire sibling group in the joint placement is in the best interests of the children/youth, in order to sustain family and/or family like relationships. Such presumption may be rebutted by the county by a preponderance of the evidence that placement of the entire sibling group in the joint placement is not in the best interests of a child/youth or of the children/youth. The county shall make reasonable and continued efforts to locate a joint placement for all of the children/youth in the sibling group unless (1) it is not in the best interests of the children/youth to be placed as a group as determined by the county in consultation with the family, youth, and gal when possible, and (2) these efforts do not unreasonably delay permanency for any child/youth. These efforts depend upon the county's ability to locate an appropriate, capable, willing, and available joint placement for all of the children/youth in the sibling group. As soon as practicable after making a decision affecting sibling placement, the county department shall notify the gal(s) appointed to the case. Efforts to place siblings as a group shall be documented in the Colorado Child Welfare Information System (CCWIS).

Sibling children/youth in foster and/or kinship care shall have the following rights unless:

1. They are not in the best interests of each sibling regardless of whether the parental rights of one or more of the foster children/youth's parents have been terminated
 2. Youth are in the custody of the division of youth services or a state hospital for persons with mental health disorders who may have different rights based on the rules and regulations where they reside
- A. To be placed in foster care homes with the child/youth's siblings, when it is in the best interests of each sibling and when the county department locates an appropriate, capable, willing, and available joint placement for the children/youth siblings, in order to sustain family relationships,
 - B. To be placed in close geographical distance to the child/youth's siblings in order to promote continuity in the siblings' relationship;
 - C. To obtain temporary respite placements together, when possible;
 - D. To be placed with foster parents, placed with potential adoptive parents, and assigned to child welfare caseworkers who have been provided with training on the importance of sibling relationships;
 - E. To be notified, as permitted pursuant to state or federal law, about changes in their sibling's placement, discharge from foster care, catastrophic events, or other circumstances, including but not limited to significant life events as defined by the county department and in consultation with the family, youth and gal when possible. As soon as practicable after making a decision to notify or not notify the sibling, the county department shall notify the gal(s) appointed to the case.
 - F. To be included in permanency planning discussions or meetings for siblings, if appropriate;
 - G. To maintain frequent and meaningful contact with the child/youth's siblings if placement together is not possible;
 - H. To be actively involved in each other's lives and share celebrations, if the siblings choose to do so, including but not limited to birthdays, graduations, holidays, school and extracurricular activities, cultural customs in the siblings' native language, and other milestones;

- I. To annually receive contact information for all siblings in foster care, which may include a telephone number, address, social media accounts, and e-mail address, unless a foster parent has requested the foster parent's identifiable information not be disclosed pursuant to section 19-1-303 (2.7)(a), C.R.S. (2019) and to receive updated photos of siblings regularly by mail or e-mail, as appropriate;
- J. To have more private or less restrictive communication with siblings as compared to communication with others who are not siblings;
- K. To be provided with an explanation if contact with a sibling is restricted or denied, as permitted pursuant to state or federal law;
- L. Pursuant to section 19-7-203(l), C.R.S., sibling youth in foster care shall have the right to expect that the youth's guardian ad litem will advocate on behalf of the youth for frequent contact and visits with siblings, unless the guardian ad litem determines through the guardian ad litem's independent investigation that the contact is not in the best interests of the youth;
- M. To have contact with siblings encouraged in any adoptive or guardianship placement; and
- N. To receive an age-appropriate and developmentally appropriate document that reflects the child/youths primary/preferred language from the department of human services setting forth the rights described in this section:
 - 1. Within thirty days of the date of any placement or any change in placement;
 - 2. On each occasion that a youth's case plan is modified;
 - 3. At each placement where the youth resides; and
 - 4. On at least an annual basis.
- O. To have adult siblings of children/youth in foster care be considered as foster care providers, adoptive parents, and relative custodians for their siblings, if they so choose.

7.304.21 KINSHIP CARE

- A. Definitions: Refer to Section 7.000.2 (12 CCR 2509-1) for the definition of "kin" and "non-certified kinship care". However, these rules for kinship care do not apply to a biological parent as defined in 7.000.2(105) with parental rights intact, guardians, adoptive parents, or current stepparents as defined in 7.000.2(136).
- B. Utilizing kinship care
 - 1. Kinship placements and living arrangements:
 - a) Maintain child(ren)/youth's meaningful, emotional and cultural ties with family across their lifespan by placing them with family or a person ascribed by the family as having a family-like or prior significant relationship with the child/youth.
 - b) Minimize the trauma of out-of-home placement.
 - c) Support and strengthen families' ability to protect their child(ren)/youth and to provide permanency.

2. The child(ren)/youth shall be eligible for services through program area (PA) 4, 5, or 6 as defined in Section 7.000.1.
 - a) Kinship care when the county department has legal custody:
 - 1) Shall satisfy out-of-home placement criteria; and/or
 - 2) The county department shall have legal authority for placement as defined in section 7.304.51 and the Children's Code, Sections 19-1-101 through 19-7-315, C.R.S., through a court order, a dependency and neglect or delinquency action, emergency removal by law enforcement, or an approved voluntary placement, followed by a Petition for Review of Need for Placement (PRNP) in accordance with Section 19-1-115(8), C.R.S.
 - b) Kinship care living arrangements when the county department does not have legal custody but there is court involvement either through a dependency & neglect or delinquency case:
 - 1) Parent(s)/guardians and kinship caregivers consent to these arrangements; or
 - 2) The court ordered these arrangements.
 - c) Kinship care living arrangements when the county department does not have legal custody and there is no court involvement:
 - 1) Parent(s)/guardians and kinship caregivers consent to these arrangements.
 3. Advisement of services and supports kin may be eligible for:
 - a) Kinship caregivers shall be advised of the types of services and support available to them through the county department. These services and supports may include, but are not limited to:
 - 1) Family preservation;
 - 2) In-home services and support;
 - 3) Non-certified kinship care reimbursement;
 - 4) Certification for kinship foster care;
 - 5) The Relative Guardianship Assistance Program; and
 - 6) The additional supports listed in section F.3 of these kinship care rules.
 - b) The family shall be advised of the potential options to make voluntary arrangements for temporary legal custody or guardianship by kin, including supports and services available, with each option for both the short-term and long-term.
- C. Kinship care: assessment and decision-making

1. If during an assessment it is discovered that the child(ren)/youth are not living with their parents/guardians but living with kin due to the concerns outlined in the referral, and the living arrangement was made prior to the department's involvement:
 - a) If a child welfare case is not opened, the rules for assessment found at 7.104 through 7.104.15 apply.
 - b) If the assessment transitions into a child welfare case being opened, and the child(ren)/youth remain with kin. The child(ren)/youth are considered to be in kinship care. A removal may or may not be opened dependent on who has legal custody. The rules for kinship care in Section 7.304.21.D-F apply.
 - c) Kinship caregivers may be eligible for forms of support listed in Section 7.304.21.F.3.
2. If during an assessment or child welfare case, it is determined that the child(ren)/youth are in current or impending danger with their caregiver(s) and the family agrees to a temporary living arrangement with kin through the use of a safety plan:
 - a) If a child welfare case is not opened, the rules for assessment found at 7.104 through 7.104.15 apply. The child(ren)/youth are not considered to be in out-of-home care as the arrangements are made through a safety plan.
 - 1) The assessment cannot be closed until a family meeting and one of the following occurs:
 - (a) The child(ren)/youth have been returned to the care of their caregiver(s);
 - (b) Documentation is obtained demonstrating that legal authority has been granted to kin (documented in the Comprehensive Child Welfare Information System [CCWIS]); or,
 - (c) A child welfare case has been opened.
 - b) If the assessment results in a child welfare case being opened, or there is a current open case, and the child(ren)/youth remain with kin, the child(ren)/youth are considered to be in kinship care. A removal must not be opened and the rules for kinship care stated in Section 7.304.21.D-F apply. The permanency goal must be identified as return home from kinship care.
 - c) The kinship caregiver(s) may be eligible for forms of support listed in Section 7.304.21.F.3. Eligibility will be determined on a case-by-case basis.
 3. If during an assessment it is determined that the child(ren)/youth are in current or impending danger with their caregiver(s) and the family will not agree to a temporary living arrangement with kin through the use of a safety plan, and the county obtains legal custody:
 - a) The assessment cannot be closed until a family meeting and one of the following occurs:
 - 1) The child(ren)/youth have been returned to the care of their caregiver(s);

- 2) Documentation is obtained demonstrating that legal authority has been granted to kin, and that documentation is in the CCWIS; or
- 3) A child welfare case has been opened.
- b) Child(ren)/youth are then considered to be in out-of-home care and a removal is required to be documented in the CCWIS.
- c) Kinship caregivers may be eligible for forms of support listed in Section 7.304.21.F.3. Eligibility will be determined on a case-by-case basis.
- d) The rules for kinship care stated in Section 7.304.21.D-F apply.

D. Kinship care requirements

- 1. Whenever considering a kinship placement or living arrangement (as outlined in Section C above), the following must occur and be documented in the CCWIS to ensure the child(ren)/youth are residing with a safe caregiver:
 - a) Non-fingerprint-based background checks for each adult (18 years and older) living in the home must be completed no more than 90 days prior or at the time of the living arrangement, placement, or change in the child(ren)/youth's primary caregiver to kin. The background check shall include:
 - 1) The CCWIS to determine whether the relative, kin and any adult in the home has a substantiated finding of child abuse or neglect;
 - 2) The Colorado Courts data access system to determine the status or disposition of any criminal charges;
 - 3) The CBI Sex Offender Registry and the National Sex Offender Public Website operated by the United States Department of Justice to determine whether the relative, kin or any adult in the home is a registered sex offender, including:
 - (a) Known names and addresses of each adult residing in the home; and
 - (b) Address only of the non-certified kinship care home.
 - b) Ensure a signed "Original Application to Provide Care" for child(ren)/youth or a state approved, county specific kinship application is initiated. Application must be completed and signed no more than 90 days prior or within 14 days of placement/living arrangement. The state will not approve county-specific applications that add to or create additional burdens for kin or applications that remove any safety requirements from the state-approved form.
 - c) A safety walk-through of the kinship caregiver's home using either the state template or state-approved county-specific template completed no more than 60 days prior or at the time of the living arrangement, placement, or change in the child(ren)/youth's primary caregiver to a kin. The state will not approve county-specific safety walk-throughs that add to or create additional burdens for kin or safety walk-through forms that remove any safety requirements from the state-approved form.

2. When an emergency placement is necessary and a prospective relative, kin or any adult that resides in the home is identified, and child(ren)/youth are placed into the temporary custody of the county department of human services by law enforcement or the court, the following actions shall occur prior to placement of child(ren)/youth in the home:
 - a) The county department shall contact local law enforcement to conduct an initial name-based state and federal criminal history record check (NCIC). The county department shall accept a verbal response for the relative, kin, and any adult who resides in the home. The results regarding each person's criminal history shall be documented in the CCWIS.
 - b) The child(ren)/youth shall not be placed with the relative, kin, and any other adult who resides in the home if the initial criminal history record information check (NCIC) reflects one or more convictions of the criminal offenses listed in subsection 7.304.21.D.5.e.
3. Checks for child abuse and neglect records in every state where any adult residing in the home has lived in the five years immediately preceding the date of application shall be initiated no later than fourteen (14) calendar days following the date of becoming aware of the out of state address. Checks shall be documented in the CCWIS.
 - a) A county department needs to make at least three (3) attempts to obtain the information from other states within forty-five (45) calendar days from the date of becoming aware of the out of state address. If information cannot be received, this needs to be documented in the state automated case management system. Each attempt needs to be spread out over a period of not less than seven (7) consecutive days.
4. The county department shall complete an assessment to evaluate the non-certified kinship family's ability to meet the mental, physical, and emotional needs of the child(ren)/youth by addressing and documenting, in the CCWIS, the areas of: safety, parenting skills, potential for permanency, needs of the kinship family, a support system of the kinship family, strengths and any other areas deemed necessary by the county department as it relates to the safety of the child(ren)/youth.
 - a) The child(ren)/youth's and parents' preferences regarding placement must be considered. Whether placement with the kin would hinder reunification shall also be considered. However, a parents objection to placement with a particular relative or kin is not alone sufficient to show that the proposed placement would hinder reunification.
 - b) The following shall not be considered unless they would threaten the mental, physical, or emotional health or safety of the child(ren)/youth:
 - 1) The size of the home and whether the child(ren)/youth would have a separate room;
 - 2) The socioeconomic status of the relative or kin;
 - 3) The ability of the relative or kin to support the child(ren)/youth's participation in extracurricular activities;
 - 4) The ordinary bonding and attachment that occurred during time spent in a foster home;

- 5) The immigration status of the relative or kin; and/or
 - 6) Age or disability of the relative or kin.
5. Fingerprint-based criminal history record information checks from the Colorado Bureau of Investigation (CBI) and the Federal Bureau of Investigation (FBI) shall be conducted for each adult (18 years and older) living in the home. Fingerprints shall be submitted to the designated third-party vendor approved by CBI. The county shall confirm timely submission of fingerprints and document the same in the CCWIS according to the following timeframes:
- a) For emergency placements made pursuant to Section 19-3-405, C.R.S., fingerprints shall be submitted within seven (7) calendar days after the child(ren)/youth are placed in the home or no later than fourteen (14) calendar days when documented urgent circumstances exist. Fingerprints completed within ninety (90) days prior to the placement will also be accepted.
 - b) For safety plans that turn into a case and where there is a change in the child(ren)/youth's primary caregiver, fingerprints shall be submitted within seven (7) calendar days from the date the county department decides to open the case or no later than fourteen (14) calendar days when documented urgent circumstances exist. The date the county department decides to open a case shall be documented in the assessment closure summary.
 - 1) If a case is already open, the fingerprints shall be submitted within seven (7) calendar days from the date the safety plan was implemented or no later than fourteen (14) calendar days when documented urgent circumstances exist.
 - c) For family-made arrangements that turn into a case due to the concerns outlined in the referral and the child(ren)/youth remain with the kinship caregiver, fingerprints shall be submitted within seven (7) calendar days from the date the county department decides to open a case or no later than fourteen (14) calendar days when documented urgent circumstances exist. The date the county department decides to open a case shall be documented in the assessment closure summary.
 - d) For non-emergency placements, fingerprints shall be initiated no more than ninety (90) days prior to the placement or living arrangement.
 - e) The purpose of the CBI & FBI criminal history checks is to determine if any adult who resides in the home has been convicted of an offense which would preclude placement of the child(ren)/youth in the home pursuant to Section 19-3-406(5), C.R.S. These offenses are:
 - 1) Felony child abuse, as specified in Section 18-6-401, C.R.S.;
 - 2) Murder in the first and second degree, as described in Section 18-3-102 and 18-3-103, C.R.S.; manslaughter, as described in Section 18-3-104, C.R.S.; criminally negligent homicide, as described in Section 18-3-105, C.R.S.; and vehicular homicide, as described in Section 18-3-106, C.R.S.;

- 3) Kidnapping in the first or second degree, as described in Sections 18-3-301 and 18-3-302, C.R.S.; or felony false imprisonment, as described in Section 18-3-303, C.R.S.;
- 4) Felony crime of violence enhancer, as defined in Section 18-1.3-406 (2)(a)(i), C.R.S., excluding the conviction of escape. If this may be applicable, consider consulting a county attorney or other pertinent staff;
- 5) An offense involving unlawful sexual behavior, as defined in Section 16-22-102 (9), C.R.S., including but not limited to sexual exploitation of a child, human trafficking for sexual servitude, and human trafficking of a minor for sexual servitude;
- 6) A felony, the underlying factual basis of which has been found by the court to include an act of domestic violence, as defined in Section 18-6-800.3, C.R.S., within the preceding five years;
- 7) A felony involving physical assault, as described in Section 18-3-202 or 18-3-203, C.R.S., within the preceding five years;
- 8) A felony drug-related offense within the preceding three years. If the relative or kin has a felony drug-related conviction less than five years prior, any kinship or guardianship assistance payments on behalf of the child or youth must not be made with federal money provided pursuant to Title IV-E of the Federal "Social Security Act", as amended;
- 9) A pattern of two or more misdemeanor convictions related to domestic violence, within the preceding five years as defined in Section 18-6-800.3 C.R.S.; or
- 10) Any offense in any other state, the elements of which are substantially similar to the elements as described in 1) – 9) above.

E. Placement or continued placement/living arrangements

1. When the county has legal authority for placement and in accordance with Section 19-3-406 (2)(b), C.R.S., if the relative, kin or any adult that resides in the home fails to submit a complete set of fingerprints within 14 calendar days, following must occur:
 - a) The county department shall notify the parties to the case within seventy-two (72) hours of missing the fourteen (14) calendar day deadline;
 - b) Any party, including the county department, wanting the child(ren)/ youth to remain in the home shall file a motion within seventy-two (72) hours of receiving notice of the failure to submit fingerprints regarding placement of the child(ren)/youth; and
 - c) If a motion is not filed, or the court orders the removal, the county department or law enforcement shall remove the child(ren)/youth from the physical custody of the relative/kin.
2. When the county has legal authority for placement and in accordance with Section 19-3-406 (4)(b), C.R.S., if information is found as a result of any background checks, outlined in Section D: kinship care requirements above, of the relative, kin and any adult who lives in the home who has a disqualifying factor, following must occur:

- a) The county department shall notify the parties to the case within seventy-two (72) hours of identification of the disqualifying factor;
 - b) Any party, including the county department, wanting the child(ren)/youth to remain in the home shall file a motion regarding placement of child(ren)/youth within seventy-two (72) hours of notice that a disqualifying factor has been identified. If the county department is supporting the child(ren)/youth remaining in the home, they may file a remediation plan with the court; and
 - c) If a motion is not filed, or the court orders the removal, the county department or law enforcement shall remove the child(ren)/youth from the physical custody of the relative/kin.
3. When there is a child(ren)/youth in a non-court involved case and a fingerprint-based background check is required and a disqualifying factor is identified, the county director or their designee may affirm the living arrangement upon an approved remediation plan as outlined in Section 7.304.21.E.4. See below.
4. If a disqualifying factor as defined in Section 7.000.2.A is identified following the placement/living arrangement of the child(ren)/youth, the department shall evaluate whether disqualifying factors can be mitigated. If concerns can be mitigated, a remediation plan shall be developed to address the concerns within seventy-two (72) hours of identification of the disqualifying factor. The following shall be documented in the CCWIS:
- a) Review the circumstances of the placement;
 - b) Evaluate the vulnerability of the child(ren)/youth, including age and development;
 - c) Consider the disqualifying criminal convictions including rehabilitation, length of time since conviction, and any impact on child safety;
 - d) Supports needed by the kinship caregiver(s); and
 - e) Identify alternative solutions to removal of the child(ren)/youth from the placement, and document the solution in the remediation plan including, but not limited to, the family's current status in the following domains:
 - 1) Risk and safety;
 - 2) Level of functioning;
 - 3) Strengths;
 - 4) Specific areas of concern to be addressed;
 - 5) Services and supports needed; and
 - 6) Changes that must occur to mitigate the concerns.
5. If relatives or kin are interested in certification, the county department shall assess the suitability of relatives or kin in accordance with the kinship foster care certification requirements found at Sections 7.500 and 7.707.

6. Parent(s), children and youth shall be included as part of the planning discussion when considering placement with kin. If the county department believes that an available and willing kin or relative is able to meet the mental, physical, and emotional needs of the child(ren)/youth but any parent, Guardian ad Litem (GAL), or Counsel for Youth (CFY) objects to the placement, the county department shall file a motion requesting the court place the child(ren)/youth with the available kin placement.
 7. When removal occurs on an emergency basis and child(ren)/youth are placed with relatives or kin, the relatives or kin have the right to be provisionally certified as a kinship foster care home in accordance with Section 7.500.311.C-D.
 8. Substitution of fingerprints for foster care certification:
 - a) If the county department of human or social services or a child placement agency (when applicable) intends to accept an application for foster care, CBI shall be notified within five (5) calendar days after requesting fingerprint-based criminal history record information checks in order to prompt flagging and automatic notification to the county department of human or social services or child placement agency when there are new criminal charges; and
 - b) The substitute fingerprint process meets the requirement for an applicant for foster care certification pursuant to Section 26-6-910, C.R.S.
- F. Decision making for the care and planning of a child(ren)/youth
1. Parents, relatives and kin shall be encouraged to participate in case planning, whether or not they are the current caregiver. Child(ren)/youth shall also be encouraged to participate in case planning as appropriate to their age and developmental level. Parents and children/youth shall be consulted regarding their preferences for relative and/or kin participation in case planning. Participation may include, but is not limited to the following:
 - a) Identifying the strengths and needs of the child(ren)/youth and the child(ren)/youth's parent;
 - b) Identifying and/or providing services and resources that meet the individualized needs of the child(ren)/youth and the child(ren)/youth's parent. The following activities may be provided by relatives and/or kin, but shall not be required:
 - 1) Be considered as the relative or kinship placement with the child/youth pursuant to subsection 3.6.a.iv.d. of this Section;
 - 2) Supervising family time when authorized pursuant to section 19-3-217 C.R.S.;
 - 3) Providing respite care for the child(ren)/youth and having family vacation time with the child(ren)/youth;
 - 4) Providing transportation;
 - 5) Helping maintain the child(ren)/youth's familiar and regular activities, as well as contact with the child(ren)/youth's friends, relatives, and kin, including providing supervision of the child(ren)/youth at family gatherings and events;

- 6) Participating in the child/youth's family and permanency team if the child/youth is placed in a Qualified Residential Treatment Program;
 - 7) Acting as a support person for the child(ren)/youth, the child(ren)/youth's parent, and the child(ren)/youth's current caregiver, including collaborating with foster parents to support a healthy transition for a child(ren)/youth to family time or placement with a relative or kin, when appropriate; and/or
 - 8) Suggesting other relatives or kin who may be able to participate in the case planning or whom the county department of human or social services, or other social services agency, may consider for the placement of the child(ren)/youth. The county department of human or social services, or other social services agency, shall send a notice to each relative or kin identified by other relatives or kin, unless a relative or kin received the notice earlier in the case or was ruled out as a resource or placement by the court.
2. A relative or kinship caregiver has the right to:
- a) Be treated with dignity and respect;
 - b) Be considered as an important member of the child(ren)/youth's team;
 - c) Receive training and support to improve the caregiver's skills in providing daily care to meet the individualized needs of the child(ren)/youth in their care;
 - d) Be informed about how to reach after-hours contacts and support; and
 - e) Be informed about available financial assistance and the financial consequences of not pursuing certification as a kinship foster home, including ineligibility for the state's Relative Guardianship Assistance Program.
 - f) If the sole issue preventing an emergency placement of a child with a relative or kin is a lack of resources, the county department shall use reasonable efforts to assist the relative or kin with obtaining the necessary items within existing available resources.
 - g) Kinship care providers shall be advised of the types of support available to them through the county department noted in Section 7.304.21.F.3. The information provided, including the date(s) information was provided, shall be documented in the statewide automated child welfare information system.
 - h) Funding and types of support including:
 - 1) Kinship care may be considered a means of family preservation rather than a placement service;
 - 2) The kinship caregiver(s) may become a kinship foster care home (if eligible); and
 - 3) Other funding and support services, including in-kind or concrete services, can be put into place as mutually agreed upon with the provider.

3. Support and services options
 - a) As part of the assessment process, the county department of human or social services shall determine, with the kinship caregiver(s), which funding options and support services will be necessary to support the placement. If the child(ren)/youth is eligible, at a minimum, the following funding sources shall be considered to support the child(ren)/youth in a kinship care placement:
 - 1) Child support by the absent parent(s). When the county has legal custody, a referral may be made to Child Support Services if the county department finds that a referral is appropriate pursuant to 7.601.712. If a referral is made, the county department must review the case every six (6) months to re-assess the appropriateness of the referral. The county department may consult with the Child Support Services unit during the reassessment;
 - 2) Social Security and/or other death benefits.
 - 3) Supplemental Security Income (SSI);
 - 4) Social Security Disability Insurance (SSDI);
 - 5) Supplemental Nutrition Assistance Program (SNAP);
 - 6) Temporary Assistance to Needy Families (TANF);
 - 7) Tricare or other medical benefits;
 - 8) Medicaid;
 - 9) Core Services, pursuant to Section 7.303;
 - 10) Child Welfare Child Care/Protective Services Child Care;
 - 11) Colorado Child Care Assistance Program;
 - 12) In-kind services or donations;
 - 13) Non-certified kinship care reimbursement;
 - 14) Foster care maintenance payment;
 - 15) Title IV-E or state Relative Guardianship Assistance Program pursuant to Section 7.311; and
 - 16) Title IV-E or state Adoption Assistance.
 - b) This decision-making process shall address the needs of the child(ren)/youth, family and kin and focus on how the goals of safety, permanency, and child(ren)/youth well-being can be most effectively achieved for the child(ren)/youth. The department shall work with any relative or kinship caregiver or prospective caregiver to resolve barriers to placement or participation in case planning.
 - c) The kinship caregiver shall be advised of all support options available.

- d) The kinship caregiver shall be advised of any available complaint resolution process.
 - e) The kinship caregiver shall be advised of training, support and services specific to the needs of kinship care providers in order to meet the needs of the child(ren)/youth in their care.
 - 1) The Reasonable and Prudent Parent Standard: the county department of human or social services or child placement agency shall advise/educate the kinship caregiver on the rights of the child(ren)/youth and how to determine whether an extracurricular, enrichment, cultural, or social activity is consistent with the Reasonable and Prudent Parent Standard, when approving an age or developmentally appropriate activity identified in Section 7.701.200.
4. Permanency planning in kinship care
- a) When a child(ren)/youth has been placed by the county department into temporary kinship care and reasonable efforts to reunite the child(ren)/youth with the parents are not successful, the county department shall consider permanent placement with the kinship care provider or other appropriate kin. The preferred permanent placement shall be adoption, legal guardianship, or permanent custody.
 - b) The county shall document all efforts in the Family Services Plan for the child(ren)/youth, including efforts to maintain child(ren)/youth in a relative or kin placement as well as any decisions not to place child(ren)/youth with a relative or kin. Documentation shall include the consideration given to reunification efforts and the child(ren)/youth's mental, physical, and emotional needs.

7.304.21.1 NON-CERTIFIED KINSHIP CARE REVIEW PROCESS

The process and timing of reviews of non-certified kinship care provider files shall occur in accordance with 12 CCR 2501-1 Section 1.150 through 1.151. Unless otherwise provided herein and is performed utilizing the current review tool accessible via contact with the State Department (Child Welfare).

- A. Review schedule and process:
- 1. Reviews may occur on a 3-year rotation assigned by state staff.
 - 2. Counties that pass with a score of 80% or better will remain on their assigned rotation schedule.
 - 3. Counties that do not pass with a score of 80% or better will be reviewed yearly until they pass with a score of 80% or better. Once passing, counties will resume their previously assigned rotation.
 - 4. If a county fails to pass three (3) consecutive reviews, progressive disciplinary action will be initiated per 12 CCR 2501-1 Section 1.150 through 1.151.
 - 5. Reviews will be performed virtually unless an onsite review is requested by the county and agreed upon by the reviewer(s). If an onsite review is requested, the county is to contact the reviewer at the earliest possible time, but no later than, five (5) state working days from receipt of the notification to schedule the review.

6. The period under review is six (6) months for a large county and one (1) year for mid-size and small counties. The review period will end the previous quarter before the county review. For example, a September review would have a sample period of June through May.
 7. The State Department shall conduct a review of a sample of non-certified kinship caregivers for county being reviewed. The sample sizes will be up to 25 providers for large counties (randomized), up to 12 providers for mid-size counties, and up to 5 providers for small counties. For small and mid-size counties, all files will be reviewed up to the maximum sample size.
 - (a) The samples will be obtained from the comprehensive child welfare information system prescribed by the State.
 - (b) The samples will be obtained from all kinship providers when the children/youth are living in a non-certified kinship home, regardless of their length of stay (may include safety plans).
 - (c) The samples will not include biological parents who have parental rights intact, ICPC cases, kinship foster care homes, or closed cases.
- B. Entrance conference:
1. An entrance conference will be offered in accordance with 12 CCR 2501-1 Section 1.151.
- C. Scoring:
1. The State Department reviewer shall issue scores for the individual records and an overall score for the county practice.
 2. Reviews are scored utilizing the state-approved non-emergency placement, emergency placement, and overall county scoring sheets and can be found at <https://cdhs.colorado.gov/our-services/child-and-family-services/child-welfare/child-welfare-forms-and-policies>.
 3. Scores are based upon the number of applicable points which may vary based on case-specific circumstances.
- D. Disputes:
1. If a county department disputes a score and requests to submit additional information in support of its dispute, the county department must submit the additional information by the close of business on the day the score is issued, or at a later time as may be negotiated by the reviewer and the county department. If the documentation is not produced within the specified time, the original score will remain.
 2. If a county disputes a score or record, it may follow the appeals process pursuant to 12 CCR 2501-1 Section 1.151.
- E. Exit conference:
1. An exit conference will be scheduled with the county department. In most circumstances, the exit conference will be held on the same day as the review, last day of the review, or as negotiated with the reviewer(s).

7.304.3 OUT-OF-HOME PLACEMENT CRITERIA

Not every child at risk needs out-of-home placement. These criteria are designed to provide a decision making model to assist in determining whether Core Service Program services and/or out-of-home placement are indicated. All three criteria must be met unless the youth is eligible for the foster youth transition program as described in 12 CCR 2509-3, 7.203.4.

Criterion 1: The child may be at imminent risk of out-of-home placement, as defined in Section 26-5.3-102(1)(b), C.R.S., because one or more of the following conditions exist:

- A. Abandonment by or incarceration of parents/relatives/caretakers;
- B. Abuse/neglect - as defined in the Children's Code;
- C. Domestic violence - as defined in Section 18-6-800.3, C.R.S.;
- D. Conditions that exist to such a degree for either the child or caretaker so that the caretaker is unable to care for the child:
 - 1. substance abuse; drug exposed infants
 - 2. mental illness
 - 3. disability
 - 4. physical illness
 - 5. homelessness
- E. Beyond control of parents;
- F. Danger to self, others, or community;
- G. Infant or young child of teen parent in placement;
- H. Delinquency - adjudicated delinquent meeting current out-of-home placement criteria written pursuant to Section 19-2-212, C.R.S.;
- I. Relinquishment or termination of parental rights;
- J. Child returning home from out-of-home placement or moving to less restrictive level-of-care.

Criterion 2: Before considering placement, an assessment is completed to determine the level of risk. If assessment of risk determines that the child is at imminent risk of out-of-home placement, then child/family strengths are determined, and the appropriate services and/or community supports (reasonable efforts) needed to address the existing Criterion #1 conditions are identified. When these services are not immediately available, or are absent, unsuccessful, or exhausted, placement in the Core Services Program and/or out-of-home may be considered.

Reasonable efforts include the intervention strategies and advocacy efforts used:

- A. To identify/locate appropriate parent/relative/caretakers if necessary to prevent out-of-home placement;
- B. To assess the parent/relative/caretaker's ability to protect children;

- C. To assist the parent/relative/caretaker and/or child in accessing and utilizing the identified services to address the presenting conditions.

Criterion 3: When placement is the best choice of available options/alternatives at this time to reduce risk to the child while continuing reasonable efforts to resolve the conditions which led to imminent risk, then, placement in the Core Services Program and/or out-of-home may occur.

7.304.4 AGE AND RESIDENCY REQUIREMENTS AND PAYMENT RESPONSIBILITY FOR CHILDREN/YOUTH IN OUT-OF-HOME CARE [Rev. eff. 4/1/13]

- A. A child is eligible for placement services on the basis of need from birth to age 18 when the child meets target group eligibility and all three of the placement criteria, regardless of whether the placement is voluntary or court ordered. A youth continues to be eligible for placement services if the court had jurisdiction prior to the 18th birthday or the youth is eligible for and receiving services through the youth in transition program as described in 7.203.4 (12 CCR 2509-3).
- B. All children residing or present in the state are eligible for placement services when the criteria in the Target Group sections 7.201, 7.202, and 7.203, the Out-of-Home Placement Criteria section 7.304.3, and the Authority for Placement section 7.304.51, are met.
- C. The child's county of residence shall be the county department which has financial and case decision-making responsibility for a child in out-of-home placement shall be the child's county of residence. The child's residence follows the parents' residence unless one or more of the following circumstances exist:
1. When the parent-child legal relationship has been terminated, the child's residence is the county in which the county department has legal custody of the child.
 2. When the court has transferred legal custody to a county department and the parent-child legal relationship has not been terminated, the child's residence is that county until the court transfers custody to some other entity, including changes of venue as described in the following section, 7.304.4, E.
 3. When a county department has legal custody and the court has also appointed a guardian, the child's residence is that of the county department holding legal custody.
 4. When a child is in parental custody, the child's residence is that of the parents, or of the last caretaker parent, unless there is a court order giving custody to one of the parents. In that case, the child's residence is that of the parent with legal custody.
 5. When a child is in the legal custody of an individual, the child's residence is that of the individual.
 6. When the youth is receiving services through the Foster Youth in Transition Program, the youth's residence shall be the county in which the youth resides, based on their self attestation. Any changes of jurisdiction for this population shall be determined as described in 7.203.43(A)(4).
- D. Residence for school purposes may be determined on other factors, such as the type of facility in which the child is placed or the legal status of the child. See Educational Assessments in the Assessment and Case Planning section.
- E. The county department shall transfer financial and service planning, and financial responsibility as follows:

If a parent whose residence is used to determine the county department's financial responsibility for a child in out-of-home placement moves to another Colorado county, the county department shall initiate procedures to transfer the financial responsibility to the new county, unless:

1. The court or the county department finds that the transfer of jurisdiction would be detrimental to the best interest of the child(ren); or,
 2. The legal custodian has a history of frequent moves, except when there is evidence of stability in the most recent move, such as a signed lease whose term is six or more months, or there is other firm evidence of the intent to remain in the new residence for six or more months; or,
 3. The case is within 3-6 months of resolution; or,
 4. The custodial parent is committed to a state mental institute or correctional facility; or,
 5. The custodial parent is residing temporarily in the receiving county to receive rehabilitation services, employment training, education, medical care, or shelter services; or,
 6. Adjudication has not taken place; or,
 7. Change in venue hinders achieving the child's permanency goal; or,
 8. The case is an expedited permanency planning case, unless pursuant to Section 19-3-201(2), C.R.S., wherein it states that it shall be presumed that any transfer of proceedings without good cause shown that results in a delay in the judicial proceedings would be detrimental to the child's best interest. Such presumption may be rebutted in court by preponderance of evidence; or,
 9. When parental rights have been terminated for the child(ren); or,
 10. If the case involves a juvenile for whom a juvenile delinquency filing has been made, pursuant to Section 19-2-105(1)(b), C.R.S.
- F. Each county shall designate a Change of Venue coordinator.
- G. When a motion for a Change of Venue has been made by the sending county, the sending county shall mail the Change of Venue motion to all parties and attorneys of record in the case and to the county attorney in the receiving county.
- H. Within fifteen (15) calendar days after a court signs an order granting a Change of Venue and transferring jurisdiction, the sending county shall:
1. Provide written case information, if not located in the state automated system, to the designated Change of Venue coordinator in the receiving county which shall include, but need not be limited to:
 - a. Permanency goals;
 - b. Target dates related to the case;
 - c. Evaluations;
 - d. A current Family Services Plan;

- e. Court reports;
 - f. Dates of placement moves;
 - g. Progress of the child(ren) in placement;
 - h. All Title IV-E eligibility determinations; and,
 - i. Recommendations for continuing progress in the case.
- 2. Update all documentation in the case file and in the state automated system.
- 3. Provide information, to the extent known, concerning the physical location of the child's parents, guardians, legal custodians, and relatives.
- 4. Prepare the case for transfer by:
 - a. Scheduling a family engagement meeting involving all parties, county department caseworkers and supervisors, and community providers; or,
 - b. Conducting a case staffing between county caseworkers and supervisors in the sending and receiving county departments; or,
 - c. Submitting a written case transfer summary.
- 5. Forward a complete copy of the case file from the sending county attorney's office to the receiving county attorney's office. Privileged attorney-client communications do not need to be included in the transferred case file.
- I. The child, family, and foster care provider shall be prepared for the transition by the sending county department.
- J. The sending county department is responsible for financial and service planning for the case and for payment of services through the calendar month in which the Change of Venue becomes effective. This date is to be confirmed by the sending county department in writing and there shall be no lapse in financial coverage during this process. If venue does not change, the sending county department retains financial responsibility.
- K. The receiving county department shall provide courtesy supervision and available services during this transition. If venue does not change, the sending county department retains financial responsibility.
- L. If a child is born while the mother is committed to a state mental institute or correctional facility, the county of residence prior to commitment shall be the county of fiscal responsibility.
- M. When a child is placed for adoption, the county department holding legal custody and guardianship shall have fiscal responsibility for the child until the adoption is finalized.
- N. If a child needs placement out of the home following finalization of adoption, the child's residence is that of the adoptive parents.
- O. Residence related to subsidized adoption is addressed in the Adoption Services section.

7.304.5 SPECIFIC PROCEDURES FOR OUT-OF-HOME PLACEMENT

7.304.51 Authority for Placement

The county department shall ensure that a child may enter any out-of-home placement only when:

- A. Target group and placement criteria are met; and,
- B. An emergency is determined to exist and s/he is removed from the home by a law enforcement officer, with or without a court order, or,
- C. A parent has signed a voluntary placement agreement under conditions established by the county department and according to the Children's Code; or,
- D. A juvenile court, or a court acting as a juvenile court (including a tribal court), has ordered the child to be placed out of the home and has transferred legal custody to the county department or a social services department of a federally recognized Indian tribe, for placement in a family care home or other child care facility.; OR,
- E. A youth who is eligible for the Foster Youth in Transition Program as described in 7.203.41 (12 CCR 2509-3) has entered into a voluntary services agreement with the county department.

7.304.52 Family Search and Engagement

- A. When a child(ren)/youth has been placed in the legal custody of the county department, family search and engagement shall:
 - 1. Be commenced for the noncustodial parent within three (3) working days. The county department must provide notification to the absent parent of the following:
 - a) The child(ren)/youth has been removed from the home; and,
 - b) The option to participate in the care, treatment, or placement of the child(ren)/youth.
 - 2. Be completed within thirty (30) calendar days for all grandparent(s), other adult relatives, or any identified kin. The county department of human or social services shall provide notification of the following information:
 - a) The child(ren)/youth has been removed from the home;
 - b) Options to participate in the care and planning for the child(ren)/youth including other options for contact between the relatives and kin and child(ren)/youth, with the primary goal of reunification; AND
 - c) Information regarding placement of the child(ren)/youth, including:
 - 1) Required background checks;
 - 2) How relatives and kin may request the court review decisions to deny placement based on background checks;
 - 3) Available services and supports, including information regarding the state's entitlement plans and options as outlined in Section 7.304.21.F.3;

- 4) Information about kinship foster care certification, including:
 - (a) The requirements to become certified;
 - (b) How kinship foster care certification standards differ from traditional foster care standards;
 - (c) Why certification as a kinship foster home may be denied;
 - (d) Supports that are available for relatives and kin who are certified;
 - (e) A description of the relative guardianship assistance program; and
 - (f) A description of the adoption assistance program.
 - 5) Information about non-certified kinship care.
- d) The relative or kinship caregiver's right to intervene with or without an attorney following adjudication.
- e). Options that may be lost by failing to respond to the notice.
- B. The county department shall assure that:
 - 1. Parents are consulted regarding their suggestions for appropriate relative(s) or kinship caregivers.
 - 2. Child(ren)/youth are consulted as appropriate regarding their suggested relative(s) or kinship caregivers.
 - 3. When the court orders a delay in contacting specific relatives for good cause including, but not limited to, domestic or other family violence, then the county department shall discontinue the family search and engagement involving that relative(s) or kin until otherwise authorized by the court.
- C. Family search and engagement shall occur for all child(ren)/youth including American Indian/Alaskan Native child(ren)/youth at least every six (6) months throughout the life of the case until the child(ren)/youth has achieved permanency, except as noted in Section 7.304.52.B.3, or when the following conditions exist:
 - 1. A placement is stable with a relative or kin a minimum of six (6) consecutive months; and,
 - 2. The relative or kin has committed to the legal permanence of the child(ren)/youth; and,
 - 3. There is agreement among the parties that the relative or kin is the appropriate permanent option, the juvenile or district court finds it is the appropriate permanency plan, and it is in the best interest of the child(ren)/youth that family search and engagement be discontinued.

4. A non-relative foster care parent without a prior relationship to a youth twelve (12) years of age or older and his/her siblings residing in the same placement commits to the permanency of the child(ren)/youth. In addition, the juvenile or district court adopted a permanency plan of guardianship or Allocation of Parental Responsibilities (APR) and the requirements in Section 7.311.1.C.2 (Relative Guardianship Assistance Program) are met.
- D. A family engagement meeting shall occur within thirty (30) calendar days when any of the following conditions exist:
 1. The child(ren)/youth is in a family-like permanent setting without the provider expressing formal intent to provide legal permanence at the time that any of the following conditions exist:
 - a) The child(ren)/youth has been in out-of-home placement fifteen (15) of twenty-two (22) months; or,
 - b) The child(ren)/youth has had two (2) or more unplanned moves within a twelve (12) month period; or,
 - c) The child(ren)/youth is assigned a permanency goal of Other Planned Permanent Living Arrangement (OPPLA).
 2. The child(ren)/youth is in out-of-home placement in a non-family-like setting without an approved permanency plan and any of the conditions in Section 7.304.52, D, 1, a-c, exist.
- E. 7.304.52 does not apply to youth who are participating in the Foster Youth in Transition Program unless the youth consents and signs all applicable releases of information. The services described in this section shall be offered to these youth.
- F. The county shall document all efforts in the Family Services Plan for the child(ren)/youth. Initial and ongoing family search and engagement results shall be reviewed and documented during ninety (90) day supervisory reviews, including documenting that relative(s) and kinship caregivers have been provided notice as required by Section 19-3-403(3.6)(a)(iv), C.R.S.

7.304.53 Court-Related Procedures

- A. County department staff shall work with the courts in order to best serve families, children, and adults. This includes, but is not limited to:
 1. Providing competent and appropriate testimony. When the case involves the Indian Child Welfare Act, testimony shall be provided by a qualified expert witness (see Indian Child Welfare Act, "Definitions", Section 7.309.1, L).
 2. Identifying witnesses and evidence to be presented.
 3. Being in compliance with the Indian Child Welfare Act.
 4. Working with the legal representative of the county department and all other attorneys involved to serve the best interest of the child(ren) and family.
 5. Ensuring that the court is provided names and addresses of parents, foster parents, pre-adoptive parents, and kin who are providing out of home care for a child in order that the court can inform and allow these individuals an opportunity to be heard at all hearings and reviews involving the child.

B. The county department shall document the following court related procedures in the case file:

1. The child and family's legal status including custody, guardianship, parental rights, and other judgments issued by the court(s) of jurisdiction. The term "allocation of parental responsibilities" when used by the court shall be interpreted to mean custody for child welfare purposes. The term "allocation of parental responsibilities" shall not be used as a permanency goal.
2. Title IV-E related documents described in Section 7.601.71.
3. The reasonable efforts which have been made to prevent removal of the child from her/his home, the reasonable efforts that have been or will be made to return the child to her/his home, and the reasonable efforts to finalize a permanent plan. The specific actions taken shall be documented and submitted to the court. When the case involves the Indian Child Welfare Act, "active efforts" rather than "reasonable efforts" must be provided (see Indian Child Welfare Act, "Definitions", Section 7.309.1, A).

When applicable, the county department shall document and submit to the court existing circumstances in which the court may determine that reasonable efforts are not required to prevent a child's removal from the home or to reunify the child and family. These circumstances are:

- a. A court has determined that the parent has subjected the child to aggravated circumstances as specified in Section 19-3-604(1) and (2), C.R.S.
 - b. A court has determined that the parent has been convicted of:
 - 1) murder or voluntary manslaughter of another child of the parent; or,
 - 2) aiding or abetting, attempting, conspiring, or soliciting to commit murder; or, voluntary manslaughter of another child of the parent; or,
 - 3) felony assault that results in serious injury to the child or another child of the parent.
 - c. The parental rights of the parent with respect to a sibling have been terminated involuntarily unless the prior sibling termination resulted from a parent delivering a child to a firefighter or a hospital staff member pursuant to the provisions of Section 19-3-304.5, C.R.S.
 - d. Youth who are participating in the Foster Youth in Transition program as described in 12 CCR 2509-03, Section 7.203.4, et seq., pursuant to Section 19-7-307(2), C.R.S.
4. That the court and the parents are notified of any change in placement before the change unless the child is in immediate danger.
 5. That a record is kept of all family time and of reasons planned visits did not occur.
 6. That the court, the parents, and the child are given written notice ten days before any determination which affects the parent's family time rights unless the child's health or well-being is endangered by delaying action or would be endangered if prior notice was given. The caseworker shall keep a copy of this notification in the case record.

7. The treatment plans, including the Family Services Plan and court ordered plan, that have been attempted to return the child to the family home.
 8. That the county has requested the court, in its periodic reviews, to make findings regarding the continued necessity and appropriateness of placement, the extent of compliance with the case plan, the extent of progress which has been made toward alleviating or mitigating the causes necessitating the placement, and projecting a likely date by which the child may be returned home or placed in an alternate permanent living arrangement.
- C. The county department shall file a dependency and neglect petition when there are protective service issues that either present imminent danger or indicate that the environment is injurious and the case requires court jurisdiction.
- D. When protective issues are not significant, county departments may refer children with intellectual, physical, or emotional disabilities to community or home-based services. If home-based or community services are not sufficient or successful, the county department may offer voluntary out-of-home placements for children who meet the criteria. If voluntary out-of-home placements are not offered, the county department shall have a written policy stating that voluntary placements are not provided.

The county department shall ensure that a placement contract is signed before a voluntary placement is made. The county department shall:

1. File a Petition for Review of Need for Placement within 90 calendar days of placement, if the placement is expected to exceed 90 calendar days.
 2. Ensure that the child's parents, guardian, and legal custodian are informed of the substance of the Petition for Review of Need for Placement.
 3. File a review report with the court every six months, thereafter, or more frequently, when ordered by the court, until the placement is ended. When an Administrative Review conducted by the Administrative Review Division substitutes for a court review, a summary containing the same information as would be submitted to the court shall be completed and filed in the case record in accordance with 12 CCR 2509-7, Section 7.601.6, B. The county department shall submit this written summary with the Administrative Review findings to the court.
 4. Ensure that a court decree giving the county placement and care responsibility is obtained within 180 calendar days of placement. The order must state that continued placement is in the best interests of the child and either that reasonable efforts have been made to reunite the child and family or that the plan is for the child not to return home.
 5. Ensure that the permanency planning hearing order for voluntary placements conforms with the requirements discussed under that section.
- E. When a child is returned to the home, the county shall request the court to return legal custody of the child to the parent or guardian, except in cases covered by the Interstate Compact for the Placement of Children.
- F. When a child is removed from the home, the county department must initiate a request for temporary custody hearing per Sections 19-3-312, 19-3-401, and 19-3-403, C.R.S. The Family Services Plan shall be used as an Interim Treatment Plan in Court involved cases, to be available 30 calendar days after the child's removal from the home or 30 calendar days after filing of the petition, whichever is earlier.

- G. The county department shall notify the court of jurisdiction and other parties within 10 calendar days of receipt of a report that a child has run away from placement.
- H. Copies of Administrative Review findings shall be filed in the case record and a summary of those findings shall be included in court reports. For those cases in which an Administrative Review substitutes for court reviews, counties shall submit a copy of the actual review findings to the court with the county's court report.
- I. Recommendations to the court regarding out-of-home placement of a child who has been adjudicated a delinquent, shall contain specific facts and reasons supporting the recommendations and the cost of the recommended placement.
- J. When a child is temporarily absent from placement because he or she is in detention, psychiatric or medical hospitalization, or on a trial visit home, the placement is considered to be continuous for up to six months for federal review purposes if the county retains legal custody or has placement and care responsibility through a voluntary placement agreement or Petition to Review the Need for Placement. If the child returns to out-of-home placement during this time, a new removal order is not needed. Within the trial home visit time period, when the agency determines it is in the best interest of the child to continue to live in the planned permanent home, the county agency shall request the court to consider relieving the department of custody in these cases.
- K. A trial home visit shall occur when it is necessary to assess the child's or youth's safety and well-being while residing in the planned permanent home. The time period of the trial home visit shall be determined by the agency and reviewed by the court as part of the reunification process prior to the permanent custodial return of the child or youth to the parents or planned caregivers.
 - 1. Trial home visits shall be documented in the State Department's automated data system.
 - 2. A trial home visit may exceed six months in duration if a court orders a longer trial home visit. If a trial home visit extends beyond six months and has not been authorized by the court or exceeds the time period the court has deemed appropriate, and the child is subsequently returned to foster care, that removal must then be considered a new removal and Title IV-E eligibility must be newly established. Under these circumstances, the judicial determination regarding contrary to the welfare and reasonable efforts to prevent removal are required.
- L. Change in Venue procedures are outlined in Section 7.304.4, F, G, and H.
- M. When court-ordered, the county department of human or social services shall share a foster care home, kinship foster care home, and/or non-certified kinship care home provider's reports of fingerprint-based criminal history record information check generated from the Colorado Bureau of Investigation (CBI) and Federal Bureau of Investigation (FBI) with the guardian ad litem, related to the placement of a child and/or youth in out-of-home care..

7.304.54 Court Procedures Related to Permanency Planning [Rev. eff. 3/1/16]

- A. The county department must develop a permanent plan for any child who is in out-of-home placement and is the subject of any court action, including Dependency and Neglect, Delinquency, Petition to Review the Need for Placement, or a Foster Youth in Transition Program case and a concurrent plan for cases filed under Section 19-3-102(2), C.R.S., regarding habitual abuse. The purpose of the plan is to establish treatment needs related to the stated goal for the child and to decide a method to provide a safe, stable, permanent environment for the child as quickly as possible

- B. The county department shall submit this plan at the permanency court hearing. That hearing must be held before twelve (12) months have elapsed from the date of the child's original out-of-home placement, and shall be held as soon as possible following the dispositional hearing. Following the initial permanency hearing, subsequent permanency hearings must be held every twelve months thereafter while the child remains in out-of-home care. These hearings shall be combined with a periodic review when possible.
- C. The county department shall provide the court with documentation of the efforts made by the department to finalize the permanency plan for the child. The county department shall request the court to make a finding (if the evidence so warrants) that the department made reasonable efforts to finalize the permanency plan for the child.
- D. Paper reviews, ex parte hearings, agreed orders or other actions or hearings which are not open to the participation of the parents of the child (if appropriate age) and foster parents or pre-adoptive parents are not permanency hearings.
- E. When the court determines that reasonable efforts to return the child home are not required, the county shall request that the permanency hearing be held no later than thirty (30) calendar days after such court determination, unless the requirements of the permanency hearing are fulfilled at the hearing in which such a determination is made.
- F. The county department shall ensure and document that a request is made to the court for such a hearing in sufficient time to assure that the hearing is held within the twelve (12) month time frame. Permanency hearings shall be combined with a review hearing when possible.
- G. The county department shall include, in the permanency plan, recommendations to the court on either:
 - 1. Returning the child to his/her parent or guardian within the next six months; or,
 - 2. Permanent placement with a relative through adoption; or,
 - 3. Permanent placement with a relative through guardianship or permanent custody; or,
 - 4. Adoption (non-relative); or,
 - 5. Legal guardianship/permanent custody (no-relative); or,
 - 6. Return home through reinstatement of parental rights; or,
 - 7. Other planned permanent living arrangement through emancipation; or,
 - 8. Other planned permanent living arrangement through relative long term foster care; or,
 - 9. Other planned permanent living arrangement through non-relative long term foster care.
- H. For permanency goals 8 or 9, the county department shall ensure that the plan contains the name or other identifier, such as the system provider number, if the name of the provider must be kept confidential, of the specific placement and the date that placement shall end.
- I. For permanency goals 7, 8, and 9, the following requirements shall apply to the county department of human or social services for purposes of approving the case plan and the case review procedure for youth, except for youth participating in the Foster Youth in Transition Program:

1. At each permanency hearing held with respect to the youth, provide documentation of the intensive, ongoing, and, as of the date of the hearing, unsuccessful efforts made to address the following:
 - a. Return the youth home;
 - b. Secure a placement for the youth with a fit and willing relative (including adult siblings), a legal guardian, or an adoptive parent; and,
 - c. Include efforts that utilize search technology (including social media) to find biological family members for the youth.
 2. Provide compelling reasons why it continues not to be in the best interests of the youth to return home, be placed for adoption, with a legal guardian, or with a fit and willing relative.
- J. The county department shall request that the court order contain specific findings regarding the above goals.
- K. The county department shall assure that the permanency hearings determine whether an out-of-state placement continues to be appropriate and is in the best interest of the child.
- L. The county department shall assure that the permanency hearings determine whether the permanency plan includes services for a successful adulthood for a child fourteen years of age or older.
- M. Permanency hearings are required to be held if a termination is under appeal, for children placed in a permanent foster home with a specific caregiver, and for children who are free for adoption and are placed in adoptive homes pending the finalization of the adoption.
- N. The county department shall file for termination of parental rights no later than the end of the 15th month of placement for any child who has been in foster care under the responsibility of the state for 15 of the last 22 months unless there is a compelling reason submitted to the court identifying why it is in the child's best interest to not terminate parental rights.
- O. The county department shall file for termination of parental rights no later than sixty (60) calendar days after the court determines that the child is an abandoned infant, unless there is a compelling reason submitted to the court identifying why it is in the child's best interest to not terminate parental rights.
- P. The county department shall file for termination of parental rights no later than sixty (60) calendar days after a judicial determination is made that reasonable efforts to reunify the child with the parent are not required, unless there is a compelling reason submitted to the court identifying why it is in the child's best interest to not terminate parental rights.
- Q. The county department shall discuss the purpose and responsibilities of relative guardianship with the parents or legal custodian of a youth or child and the importance of achieving permanency.

7.304.55 Court Procedures Related to Termination of the Parent-Child Legal Relationship

- A. The county department shall consider termination of the parent-child legal relationship as a part of the permanency planning process. Termination is a court action that permanently divests the child and parent of all legal rights and responsibilities with respect to each other. It does not modify the child's status as an heir at law, which occurs when there is a final decree of adoption. Termination of the parent-child legal relationship with both parents frees a child for adoption.
- B. When the county department files a petition for dependency and neglect, the petition shall include a statement related to termination of the parent-child legal relationship as required in the Colorado Children's Code, Section 19-3-502(3)(a), C.R.S..
- C. The county department shall give primary consideration to the physical, mental, and emotional conditions and needs of the child when considering filing a motion for termination, and when making any reports and recommendations to the court.
- D. The county department shall ensure that the child's psychological and medical conditions have been evaluated and that the results of those evaluations indicate that termination is in the best interest of the child.
- E. The county department shall consider termination of the parent-child legal relationship based on a finding of parental unfitness as outlined in the Colorado Children's Code, Sections 19-3-604(1)(a) through 19-3-604(1)(c), C.R.S. and 19-5-105 (3.1), C.R.S.
- F. The county department shall gather information to present the court with clear and convincing evidence regarding the criteria for termination and evidence beyond a reasonable doubt in the case of children eligible under the Indian Child Welfare Act.
- G. In planning for termination of the parent-child legal relationship, the county department shall:
 - 1. Work with the county's attorney in preparation of the court case.
 - 2. Provide a treatment plan for the court's approval.
 - 3. Cooperate with any guardian ad litem AND/OR COUNSEL FOR YOUTH for the case.
 - 4. Provide prepared staff to testify at the termination hearing, identify other witnesses, and assist in preparation of witnesses.
 - 5. Keep parents, children, and appropriate interested parties informed regarding hearings and the status of the case.
 - 6. File a motion for termination no less than 30 calendar days before the hearing.
- H. Prior to and following termination of the parent-child legal relationship by the court, the county department shall:
 - 1. Consider legal custody or adoption by relatives when in the child's best interests.
 - 2. Determine resources available for an adoptive placement or alternative permanent plan which best meets the needs of the child.
 - 3. When filing a motion to terminate parental rights, county staff shall begin efforts to recruit, identify, process and approve a qualified adoptive family for the child and document such efforts in the Family Services Plan.

4. Prepare a report for the court to be presented at a hearing scheduled within 90 calendar days following the date of termination. The report shall indicate what disposition of the child's case has occurred.
- I. Permanency hearings are required to be held if a termination is under appeal or if a child is in a pre-adoptive placement following termination.
- J. When the county department has legal custody/guardianship following termination of the parent-child legal relationship, the county department shall not close the child's case until:
 1. The child is adopted; or,
 2. The child reaches 18 years of age and the court does not continue its jurisdiction; or,
 3. The child is emancipated before 18 years of age; or,
 4. The court transfers legal custody to another individual or agency; or,
 5. The court otherwise terminates the county department's legal responsibility.

7.304.6 PLACEMENT ACTIVITIES

7.304.61 Pre-Placement Activities

- A. The child/youth shall have a medical examination before placement or a screening as soon as is reasonably possible after placement. The county department shall assure that the screening is consistent with the Early Periodic Screening Diagnosis and Treatment initial screening described in Section 8.286.01 of the Department of Health Care Policy and Financing's Medical Assistance manual (10 CCR 2505-10). If a medical, dental, or psychological evaluation is necessary and cannot be covered under Medicaid, third-party insurance, or other sources, the county department may purchase it under program services. See General Information and Policies section (7.000) and Resources, Reimbursement, and Reporting Section (7.400) of this manual.
- B. Prior to the placement of a child/youth in a child placement agency or county foster care home, the placing agency may review the written family assessment, home study, and background checks of the foster parent(s) for use in determining if the home is appropriate for the needs of the child/youth.
- C. When the child/youth is part of a sibling group and the sibling group is being placed out of the home, it shall be presumed that placement of the entire sibling group in the joint placement is in the best interests of the children/youth in order to sustain family relationships. Such presumption may be rebutted by the county by a preponderance of the evidence that placement of the entire sibling group in the joint placement is not in the best interests of a child/youth or of the children/youth. The county shall make thorough efforts to locate a joint placement for all of the children/youth in the sibling group unless:
 - 1) It is not in the best interests of the children/youth to be placed as a group and
 - 2) These efforts do not unreasonably delay permanency for any child.

These efforts depend upon the county's ability to locate an appropriate, capable, willing, and available joint placement for all of the children/youth in the sibling group. Efforts to place siblings as a group shall be documented in the child/youth's case record.

- D. The county department shall share all available information about the child, including relevant social, medical, and educational history, behavior problems, court involvement, family time plans, and other specific characteristics of the child, with the provider before placement. It shall share additional information when obtained. The county department shall inform foster parents of court hearings involving children in care.
- E. A child's foster care placement shall not be delayed in order to recruit a same race home when a foster family is available who is of other ethnic or racial identity than that of the child.
- F. The county department shall document all pre-placement activities in the case file.
 - 1. an infant that is six (6) months of age or younger must not be placed in a foster care home where any caretaker in the home is not current on influenza and pertussis vaccinations. if the provider is providing care for infant(s) under 6 months of age, the provider must be current on the influenza and pertussis vaccinations. a medical exemption is allowed when an individual has a medical condition that prevents them from receiving a vaccine. a non-medical exemption is allowed when an individual has religious beliefs whose teachings are opposed to immunizations or a personal belief that is opposed to immunizations.

if an exemption applies, the provider(s) must provide a written statement detailing the basis for the applicable exemption to the agency that licenses the provider(s).
- G. The county department shall execute the Provider Contract and Agreement with county department certified foster homes and county department sponsored group homes, and the agreement to purchase Child Placement Agency or Residential Child Care Facility services with Child Placement Agencies and Residential Child Care Facilities before placement. The Agreement to Purchase form is child specific and shall be completed for each child placed through a Child Placement Agency or with a Residential Child Care Facility.
 - 1. Placement contracts shall specify the responsibilities of the provider and the county department in the services to be delivered to the child and family in conjunction with the Family Services Plan. The placement contracts shall also require twenty-four (24) hour out-of-home care facilities to have staff present and trained in how to make decisions using the reasonable and prudent parent standard when approving extracurricular, enrichment, cultural, and social activities; and,
 - 2. County departments shall provide twenty-four (24) hour out-of-home care providers with a copy of the policy that identifies activities that providers trained in the reasonable and prudent parent standard may approve, and activities that require county department approval.
- H. When a youth is participating in the Foster Youth in Transition Program:
 - 1. With the participating youth's consent, the youth's housing may be in any placement approved by the county or the court for which the youth is otherwise eligible, including a supervised independent living arrangement as described in 7.305.2(D), and is the least restrictive option to meet the participating youth's needs; or
 - 2. If the participating youth needs placement in a qualified residential treatment program, then the placement must follow all of the requirements required for the county to place a child/youth in a qualified residential treatment program.

7.304.62 Placement Activities

The county department shall:

- A. Give the provider a written record of the child's/youth's admission to the home at the time of placement.
- B. Give the provider a written procedure or authorization for obtaining medical care for the child and assure that the provider receives the child's/youth's state identification number and Medicaid card for Medicaid eligible children in a timely manner.
- C. Give the provider a copy of the Family Services Plan for the child/youth at the time of placement or when it is completed following placement.
- D. Document the above placement activities in the case file.
- E. Add the placement in the Department's automated reporting system prior to the next payroll.
- F. Within four weeks of the initial placement, give the provider a complete medical history for the child. The medical history shall contain, to the maximum degree possible, the information listed in the Department of Human Services Health Passport.
- G. Provide the child/youth with a full medical examination scheduled within fourteen (14) calendar days after placement and a full dental examination scheduled within eight (8) weeks after placement. The schedule of the appointments shall be documented in the case record. The county department shall maintain the medical and dental information in a record which is kept with the child/youth during placement and upon return home, emancipation, or adoption. The county department shall document that ongoing medical and dental care is provided in a timely manner as defined by the department and by the health care provider. If the child/youth received the required full medical examination at the time of the placement, then the regular schedule of appointments should be maintained in subsequent placements.

If the governor or local government declares a disaster or emergency, and because of the declared disaster or emergency the medical and dental exams cannot be completed for the child/youth in the required time frame, the medical exam and dental exam must be completed as soon as possible, but no later than 45 calendar days after the declared conclusion of the disaster or emergency.

- H. Document the exceptional circumstances which require an emergency or temporary placement to last longer than sixty (60) calendar days.
- I. Except in emergency situations, make subsequent placements according to court order and shall notify all parties to the extent possible.
- J. Not move a child from one short-term emergency placement to another unless all reasonable efforts to return the child to the child's home or to place the child in a more permanent setting have been exhausted and are documented in the Family Services Plan.
- K. Not move a child more than twice unless such move results in a permanent placement or is determined to be in the best interests of the child and the reasons for the additional move are documented in the child's Family Services Plan.
- L. Notify the guardian ad litem and/or counsel for youth, parent(s) or legal guardian within one (1) business day upon a child/youth's placement into a foster care home. The Guardian Ad Litem's AND/OR COUNSEL FOR YOUTH'S contact information shall be provided to the foster parents.

- M. If it is in the best interest of each sibling, the county department shall notify the siblings of any child/youth in foster care or kinship care, of sibling placement and changes in sibling placement, catastrophic events, or other circumstances, including but not limited to significant life events, as defined by the county department and in consultation with the family, youth and GAL when possible.
- N. Provide notice of, and a right to be heard at, any Administrative Review to the child/youth (if age appropriate), foster parents, pre-adoptive parents, or relatives providing care to a child/youth and, upon written request, a written notice of the court hearing, which identifies the following:
 - 1. The child/youth's current court case number;
 - 2. The date and time of the next court hearing; and,
 - 3. The name of the magistrate or judge and the court division to which the case was assigned.
- O. Upon receipt of written notice by a foster parent, employees of State and county departments, or others with the need to know, are prohibited from releasing personally identifying information about a foster parent, other than the first name, to any adult member of the foster child/youth's family, unless the foster parent subsequently provides written consent for the release of information.
- P. Provide at the time of initial placement and at least annually thereafter to the child(ren)/youth contact information for all siblings in foster care, which may include a telephone number, address, social media accounts, and e-mail address, unless a foster parent has requested the foster parent's identifying information not be disclosed, and to receive updated photos of siblings regularly by mail or e-mail, as appropriate.
- Q. Refer to Section 7.406.1, F, for the applicable criteria when a child/youth will be absent from the designated out-of-home placement and the county elects to reimburse the provider using the seven (7) day or thirty (30) day policy.
- R. Allow out-of-home care providers, who are trained in a reasonable and prudent parent standard, to authorize children and youth to participate in community-based activities without the need for a fingerprint-based criminal record background check for the adult(s) involved in the activities. A decision to allow participation shall be based on trained providers using a reasonable and prudent parent standard, as defined in Section 7.701.200, A (12 CCR 2509-1), and the procedures defined in Section 7.701.200 (12 CCR 2509-8).
- S. Respond to issues related to human trafficking as outlined in Section 7.303.4.
- T. If a disqualifying factor (refer to Section 7.000.2 (12 CCR 2509-1)) is identified following the placement of a child and/or youth in a non-certified kinship care home, the county department of human or social services shall evaluate the appropriateness of continuing the placement. A plan shall be developed to address the concerns as soon as possible, and the concerns shall be remedied no later than two weeks after the date of placement. The following shall be documented in the state automated case management system in the contact log in the resource section or in the record:
 - 1. The circumstances of the placement;
 - 2. The vulnerability of the child and/or youth, including age and development;
 - 3. Safety issues impacting the child and/or youth;

4. Supports needed by the non-certified kinship caregiver(s);
 5. Identify alternative solutions to removal of the child and/or youth from the placement and document the solution in the family service plan including, but not limited to, the family's current status in the following domains:
 - a. Risk and safety;
 - b. Level of functioning;
 - c. Strengths;
 - d. Specific concerns to be addressed;
 - e. Services and supports needed; and,
 - f. Changes that must occur to mitigate the concerns.
 6. When the disqualifying factor cannot be mitigated, the alternative solution and plan does not resolve the concerns about appropriateness of the placement, or timeframes are not met, the county department shall remove the child /youth from the placement.
- U. Assure that each child or youth in out –of –home care is accompanied to psychiatric appointments by an adult who has knowledge about the daily functioning and behavior of the child or youth, except for youth receiving services through the Foster Youth in Transition Program.

7.304.63 Out of State Placement Activities

- A. All out-of-state placements for kinship, foster, group, or residential care must comply with the Interstate Compact for the Placement of Children, Section 7.307.
- B. County departments must follow federal guidelines and shall not place children out of state who are in care under a placement contract (voluntary placements). Such placements can only be made by a parent or guardian.

7.304.64 Family Time and Supervision

- A. in all cases where counties have primary responsibility for a child/youth in out-of-home placement, including all types of kinship placements, an appropriate family time plan shall be established and documented in the comprehensive child welfare information system (CCWIS). The family time plan shall specify:
 1. The frequency, location, and duration type of contact by the parents/caregiver(s).
 2. The persons that may be present during family time.
 3. Method of family time, which shall include if family time should be supervised or unsupervised and the level of supervision and by whom; it is presumed that supervision be conducted by informal supports, when available, and occur in the community, a homelike environment, or other agreed upon location unless the child/youth's safety, or mental, emotional, or physical health requires professional supervision.
 4. The child or youth's opportunity to communicate with the parents, siblings, or other relatives outside of family time.

5. The purpose of the family time.
 6. Special considerations or restrictions such as federal or state disability laws.
 7. The county department and the court shall consider a parent's preferences when determining supervision, location, and timing of family time.
 8. The county department and the court shall consider a child's or youth's preferences when determining supervision, location, and timing of family time, including the child/youth's refusal to participate in the family time.
- B. Within thirty (30) days of the child/youth's removal, the county shall provide the court with family time recommendations that are consistent with the child's or youth's age and developmental needs and best interests. This shall be documented in the comprehensive child welfare information system (CCWIS).
- C. Whenever possible, the family time plan shall be developed in collaboration with the family; all family time is to include the maximum contact possible.
- D. Child(ren)/youth in out-of-home care shall receive an age-appropriate and developmentally appropriate document from the county department detailing their rights regarding sibling contact:
1. Within thirty days of the date of any placement or any change in placement;
 2. On each occasion that a child/youth's case plan is modified;
 3. At each placement where the child(ren)/youth resides; and
 4. On at least an annual basis.
- E. the county department shall include information regarding sibling contact in the family time plan. The child(ren)/youth shall be consulted about their wishes as to sibling contact. In developing the family time plan, if it is in the best interests of each sibling, the county department shall:
1. Promote frequent contact between siblings in foster care, which may include telephone calls, text messages, social media, video calls, and in-person time;
 2. Clarify that sibling contact should not be contingent upon parental contact.
 3. Clarify that restriction of sibling contact should not be a consequence for behavioral problems.
 4. Ensure that timely and regularly scheduled sibling time are based on individual circumstances and needs of the child(ren)/youth.
- F. Sibling contact should occur with sufficient frequency to promote the continuity of the relationships unless:
1. The county department has determined that it is not in the best interests of one or both children/youth or
 2. It has been determined in consultation with the county/city attorney and the district attorney that criminal action is pending in any jurisdiction where either sibling is a victim or witness and that such sibling contact may have a detrimental effect upon the prosecution of the pending criminal action, or

3. Contact is not permitted because it would violate a known existing protection order pending in any state.
 4. If, in arranging sibling contact, a county department determines that such contact would not be in the best interests of one or both of the siblings, the county department shall deny the request, document its reasons for making the determination in the comprehensive child welfare information system (CCWIS), and provide the siblings with an explanation for the denial, as permitted under state and federal law. as soon as practicable after making a decision affecting sibling contact, the county department shall notify the GAL(s) or counsel for youth (CFY) appointed to the case.
- G. The family time plan shall be reviewed and modified on an ongoing basis for the duration of the case and shall be aligned with the families' needs. Any such changes in the family time plan shall be documented in the Child Welfare Information System (CCWIS) and in every court report.
- H. Youth participating in the foster youth in transition program are not required to have a family time plan with their parent(s).
- I. Family time with parents who are incarcerated
1. In addition to the requirements listed in 7.304.64, The County Department shall:
 - a. Contact the parent who is incarcerated and the Family Services Coordinator or other designated communications liaison of the facility to determine what options are available for in-person family time, to make reasonable efforts to support in-person family time, and to make reasonable efforts to facilitate family time through audio-visual communication and/or other emerging available technology when in-person family time is not reasonably practicable.
 - b. Document the efforts to coordinate and facilitate in-person family time or family time through audio-visual communication or other available technology in the CCWIS and in every court report.

7.304.641 RESTRICTING OR SUSPENDING FAMILY TIME

- A. Family time is not required if it violates an existing protection order in Colorado or any other state with lawful jurisdiction.
- B. If in-person family time is made impossible due to the policies of a facility where a parent is incarcerated or in treatment or if a county department is certain that a parent will not be present for a planned visit based on communication with the parent and child/youth, the county department is not required to transport a child/youth for planned family time.
- C. If restricting or suspending ongoing family time is necessary to protect the child's or youth's safety or mental, emotional, or physical health, the caseworker shall contact the county attorney to notify the court and request a hearing to determine whether ongoing family time shall be reduced or suspended. This procedure is necessary when any of the following ongoing changes are necessary to protect the child or youth:
1. A change in the level of supervision to a more restrictive level of supervision.
 2. A change from in-person to virtual or other forms of contact that are not in-person;
 3. A change in the location of supervision to a more restrictive environment.

- D. It shall not be necessary for the county department to seek a court order to reduce or suspend family time in the following circumstances:
 - 1. Circumstantial time-limited cancellation of scheduled family time;
 - a. When allowing the family time to proceed as scheduled would endanger the child's or youth's safety or mental, emotional, or physical health at that visit or,
 - b. Unforeseen circumstances such as inclement weather and illness or,
 - c. A parent has consented to or requested cancellation.
 - 2. All parties in a dependency and neglect action have consented in writing, after speaking with their legal representative, to an ongoing alteration to a family time schedule, level of supervision, location of family time, or other terms and conditions of family time.
 - 3. The community supervisor or kin is no longer available or willing to supervise family time, and another community supervisor or informal support has not been identified, but the department or agreed upon third party supervisor is able to supervise the current court-ordered frequency and duration of family time.
- E. At a hearing when the county department requests a reduction or suspension of family time, the county shall ensure the court has up-to-date information about the status of family time and make relevant information, including the information it is basing the decision to request a reduction or suspension in family time, available to all parties.
- F. family time or contact between a child or youth and the child's or youth's parent or sibling shall not be limited as a sanction for the child's or youth's behavior or as an incentive to change the child's or youth's behavior.
- G. Family time shall not be reduced or suspended as a sanction for the parent's failure to comply with court orders or services if the child's or youth's safety or mental, emotional, or physical health is not at risk as a result of family time.
- H. Any written agreements should be filed with the court or included in the next submitted written court report.
- I. When making recommendations to suspend or restrict family time, the caseworker should consider whether modifications to the parent's treatment plan, if one exists, are necessary to address the issues leading to a reduction in or suspension of family time and shall make recommendations to the court if necessary.
- J. In the 90-day review, the county shall update whether the continued reduction in or suspension of family time remains necessary to protect the child's/ youth's safety or health and what conditions are necessary for family time to resume.
- K. The state, county department, and child placement agencies may not set a universal policy restricting or denying family time.

7.304.65 Administrative Review

Definition:

Administrative Review means a review conducted by the Colorado Department of Human Services, Administrative Review Division, that is open to the participation of the parents of the child, the child (if age appropriate, as determined by the caseworker), and the out-of-home care provider, pre-adoptive parents, or relatives/kin who are providing out-of-home care for the child; and conducted by an Administrative Reviewer, who is not responsible for the case management of, or the delivery of services to, either the child or the parents who are the subject of the review. If there is no objection by any party to the action, the court may order that an Administrative Review substitute for a six (6) month periodic review. All attorneys of record must be invited to court ordered Administrative Reviews.

- A. The county department shall participate in the statewide Administrative Review system for all children in foster care who meet the criteria for inclusion in the review system.
- B. The county department shall provide all required case records, documentation and information to the Administrative Reviewer no later than 8:00 a.m. the day of the scheduled review to allow the reviewer sufficient time to read the case file in its entirety prior to each scheduled review. If the hard copy case record is not available to the reviewer by 8:00 a.m. the day of the scheduled review, case information shall be obtained through the Department's statewide automated system.
- C. The county department shall provide office space for case record review and face-to-face reviews, access to the Department's statewide automated system, and teleconference capability.
- D. The county department shall coordinate, with the Administrative Reviewer, timely scheduling of all initial and subsequent Administrative Reviews.
- E. The county department shall invite the following to the administrative reviews, so that these individuals will have a right to be heard, and all invitees shall be encouraged to attend:
 - 1. For out-of-home case reviews, the following shall be invited:
 - a. Parents,
 - b. The child (if age-appropriate as determined by the caseworker),
 - c. Out-of-home care providers,
 - d. Pre-adoptive parents,
 - e. Relatives/kin who are providing out-of-home care for the child, and,
 - f. Guardian ad Litem and/or counsel for youth.
 - 2. For Foster Youth in Transition reviews, the youth and counsel for youth and guardian ad litem (if applicable) shall be invited to the review and the youth shall be offered the opportunity to invite the following:
 - a. Parents,
 - b. Out-of-home care providers,
 - c. Pre-adoptive parents,

- d. Relatives/kin who are providing out-of-home care.
- F. If an Administrative Review has been ordered by the court and no objection has been made to the substitution of the Administrative Review for the six (6) month periodic court review, the county department shall also invite to the review all attorneys of record in the case. When an Administrative Review substitutes for a six month periodic court review, the county department shall complete a case summary containing the same information that would be submitted in a court report as required in Section 7.601.6 B, and the county shall submit this written summary with the Administrative Review findings to the court.
- G. The county department shall send letters of invitation to all review participants at least two weeks prior to scheduled reviews, and ensure that invited parties are properly documented in the Department's statewide automated system prior to the time of the review. The parent or Indian custodian and the Indian child's tribe shall be sent letter(s) of invitation at least two weeks prior to the scheduled review by certified or registered mail with return receipt requested. All other invitations may be sent by electronic mail. Invitations shall include date, time, location, and purpose of the review. If the case involves an Indian child, the requirements of the pending court proceedings section of the Indian Child Welfare Act of 1978, 25 U.S.C. § 1912(a), and § 19-1-126, C.R.S.
- H. The county department shall encourage all invitees to attend Administrative Reviews (see Section 7.304.661.A, regarding, provider attendance). If an individual is unable to attend, participation by conference call shall be offered.
- I. Administrative Reviews shall be held at the county department having custody of the child, irrespective of the location of the child's placement.
- J. Administrative Review Findings
 - 1. Copies of Administrative Review findings shall be maintained in the Department's statewide automated system and a summary of those findings shall be included in court reports. For those cases in which an Administrative Review substitutes for a six month periodic court review, counties shall submit a copy of the actual review findings to the court with the county's court report.
 - 2. For all narrative findings that contain "Issues for County Administration", the county is required to respond to the Administrative Review Division within the time frame specified in the narrative depending on the issue identified.
 - a. A county response shall be sent to the Administrative Review Division.
 - b. If the county response is considered sufficient and timely, no further action is taken and the county shall be notified in writing within five (5) working days.
 - c. If the county's response is not timely or sufficient, notification will be given to the county and appropriate division(s) representative for further follow up/action.
 - d. An internal meeting will be held with the appropriate division(s) and their representatives within a maximum of twenty (20) working days to determine next steps and time frames for resolution.
 - e. If the issues are unresolved, a corrective action process may be pursued.
- K. Confidentiality

1. The federal confidentiality requirements at Section 471(a)(8) of the Social Security Act provide safeguards which restrict the use of, or disclosure of, information concerning individuals served by the child welfare agency, and these same rules apply to the Administrative Review process.
2. Audio and/or video recording of Administrative Reviews shall not occur without releases of confidentiality forms signed by all parties to the case prior to recording.

7.304.651 Qualified Residential Treatment Program Placement Reviews

Definition:

A Qualified Residential Treatment Program (QRTP) Placement Review means a review conducted by the State Department's Administrative Review Division (ARD), that is open to the participation of the parents, legal guardian or custodian of each child or youth, the child or youth (if age appropriate as determined by the caseworker), the QRTP staff, and attorneys of record; and conducted by a placement reviewer, who is not responsible for the case management of, or the delivery of services to the child or youth who is subject to the review.

- A. The county department shall participate in the QRTP Placement Review for all children in QRTP placements who meet the criteria for inclusion in the review system.
- B. Identification of youth eligible for an ARD QRTP Placement Review
 1. Children and youth are eligible for a review conducted by the ARD at or before 90 days of placement in a QRTP.
 2. For cases that are court involved, all parties to the case must consent to a review by the ARD. If all parties do not consent the review will remain with the courts.
 3. The determination that all parties consent that the ARD will review the placement at 90 days must happen no later than the 60 day court review.
 4. For cases that are court involved, the county department shall document that each party consented to the QRTP Placement Review to be conducted by the ARD instead of the court. The county department shall document this consent in the Comprehensive Child Welfare Information System.
 5. At each subsequent review the county department will ask the parties in attendance if they consent to the next review being conducted by the ARD. County departments will be responsible for seeking consent for any parties who were not at the review no later than 30 days prior to the next review.
 6. In instances of a voluntary placement, the ARD shall review the child or youth's placement no later than 60 days after placement in a QRTP or within 30 days after placement when the qualified individual does not support the QRTP level of care or the child, juvenile, or youth, guardian ad litem and/or counsel for youth, or any party objects to the placement.
- C. Scheduling process for ARD QRTP Placement Reviews
 1. For cases that are court involved, the county department shall coordinate with the ARD to schedule the review no later than 1 business day after the 60 day court review.
 - a. Scheduling shall include determination of the following:

- i. Day of the review.
 - ii. Time of the review.
 - iii. Venue for the review.
 - 2. In instances of a voluntary placement the county will notify the ARD of the need for review no later than two business days after placement and the scheduling process shall commence.
 - 3. If a child or youth leaves the QRTP level of care after a review has been scheduled, the county department must cancel the review and notify the ARD and all parties as soon as possible.
- D. Invitations
- 1. The county department shall invite parents, legal guardian or custodian, the child members selected by the child (for children 14 years of age and above), kin, out-of-home care providers, and attorneys of record to the QRTP Placement Review. The county department shall encourage all invitees to attend.
 - 2. The county department shall send letters of invitation to all review participants at least two weeks prior to scheduled reviews, and ensure that invited parties are properly documented in the Comprehensive Child Welfare Information System prior to the time of the review. The parent or Indian custodian and the Indian child's tribe shall be sent letter(s) of invitation at least two weeks prior to the scheduled review by certified or registered mail with return receipt requested. All other invitations may be sent by electronic mail. Invitations shall include date, time, location, and purpose of the review. If the case involves an Indian child, the requirements of the pending court proceedings section of the Indian child welfare act applies. 25 U.S.C. § 1912(a) (2020) is hereby incorporated by reference. No later amendments or editions are incorporated. Copies are available for public inspection by contacting the ARD director during regular business hours at Colorado Department of Human Services, Administrative Review Division, 4045 S. Lowell Blvd., Denver, Colorado 80236; or at a state publications depository library.
- E. Review process
- 1. The county department shall submit evidence:
 - a. Demonstrating that ongoing assessment of the strengths and needs of the child, juvenile, or youth continues to support the determination that the needs of the child, juvenile, or youth cannot be met through placement with a parent, legal guardian, legal custodian, kin caregiver, or in a foster family home; that the placement in a Qualified Residential Treatment Program provides the most effective and appropriate level of care for the child, juvenile, or youth in the least restrictive environment; and that the placement is consistent with the short- and long-term goals for the child, juvenile, or youth as specified in the permanency plan for the child, juvenile, or youth, or as outlined in the family services plan;
 - b. Documenting the specific treatment or service needs that will be met for the child, juvenile, or youth in the placement and the length of time the child, juvenile, or youth is expected to need treatment or services; and

- c. Documenting the efforts made by the county department to prepare the child, juvenile, or youth to return home or to be placed with a fit and willing kin caregiver, a legal guardian, legal custodian, or an adoptive parent, or in a foster family.

F. Findings

- 1. The ARD shall enter copies of Administrative Review findings in the department's Comprehensive Child Welfare Information System and the county department shall include a summary of those findings in court reports.
- 2. In the event that the ARD disagrees with the placement of a child in a QRTP, it may result in the placement becoming IV-E non-reimbursable if the child does not step down to a lower level of care within 30 days of the ARD determination.

G. Fiscal sanctions

- 1. Fiscal sanctions and disallowances may occur as a result of QRTP Placement Review that does not identify placement in a QRTP as the most effective and appropriate level of care for the child, juvenile, or youth. Reimbursement is reduced to the average cost of the determined less restrictive type of available placement, unless the child is court-ordered into the more restrictive placement against the recommendation of the county department.
- 2. The county department shall move the child, juvenile or youth to a lower level of care within thirty (30) calendar days of the QRTP Placement Review finding in order for reimbursement to be uninterrupted. The county department shall provide the ARD with confirmation of the change in placement.
- 3. If the county department disagrees with the findings of the ARD's QRTP Placement Review, the county department may appeal in writing. An appeal must be received by the ARD within three (3) working days of the receipt of written results of the review.
- 4. Reimbursement is denied from the date of the review if the county department neither corrects the non-compliance nor appeals the review decision within allotted timelines.

H. Confidentiality

- 1. Federal confidentiality requirements at 42 U.S.C.A. section 5106a(2)(B)(viii) restrict the use of, or disclosure of, information concerning individuals served by the child welfare agency, and these same rules apply to the QRTP Placement Review process.
- 2. Section 19-1-307, C.R.S. requires that reports of child abuse or neglect and the name and address of any child, family, or informant or any other identifying information contained in such reports shall be confidential and shall not be public information. To the extent QRTP Placement Reviews are incorporated in child abuse and neglect records, they shall be confidential.
- 3. Audio and/or video recording of QRTP Placement Reviews shall not occur without releases of confidentiality forms signed by all parties to the case prior to recording.

7.304.66 Monitoring of Purchased Services for Out-of-Home Placement and Core Services

7.304.661 Out-of-Home Placement [Rev. eff/ 4/1/12]

- A. The county department shall contract with providers for specific services using the state-prescribed contracts. The contract shall specify the responsibilities of the provider and the county for services to be provided to the child and family in conjunction with the Family Services Plan. The county department shall monitor the services purchased from Residential Child Care Facilities, Child Placement Agencies, Core Service Programs, and all out-of-home providers at least monthly, by face-to-face or telephone contact with the provider. The county department shall contract with providers to submit written quarterly progress reports to the county department and to attend Administrative Reviews in person or by conference call. The county department shall participate in staffing or planning meetings on a regular basis as defined in the case plan. The county shall contract with providers to comply with the county-designated family time plan as specified in the placement agreement.
- B. The county department shall reassess the case plan with the provider at least every six months and document progress toward goals, including discharge planning. It shall make necessary modifications to the plan based on mutual treatment planning with the provider.
- C. If there are problems or complaints concerning the care or treatment of a child in a purchased Residential Child Care Facility or Child Placement Agency placement, or Core Services Program services, or a report of violations of child care standards, the county department shall report the circumstances to the licensing or certifying authority within 24 hours. If the nature of the complaint involves an allegation of abuse or neglect, a report to the local investigating authority shall be made immediately.

7.304.662 Core Services

- A. Counties with a state-approved Core Service Program plan may directly provide or purchase Core Services Program.
- B. If a Core Service Program is purchased, all state rule requirements shall be followed.
- C. When the county purchases Core Services, the county has the responsibility to select contractors who have the skills and resources to deliver the services for which they are contracting. Counties shall monitor all purchase of services contracts to insure that contracted services are delivered.
- D. Core Services may be purchased and provided for a child placed out-of-state with written state department approval.
- E. County departments shall adhere to state guidelines regarding coding and state reimbursement requirements for provided or purchased services.
- F. County Core Service Programs may only be used for a child in out-of-home placement when services are not available through the contract with the out-of-home provider or the county negotiates a lower rate with the provider.
- G. Core Service Programs may only be used for clients when the client's private insurance and/or other funding sources are exhausted, insufficient, or inappropriate.
- H. Core Service Programs that have duplicative components cannot be provided/purchase at the same time.

7.304.67 Post-Placement Activities

- A. The county department shall update the status of the child in the Department's automated reporting system within seven calendar days following termination of the placement.
- B. The county department shall complete a written summary within 30 calendar days after termination of the placement. This summary may be included as part of a court report, six month summary, or case closing summary. The summary shall document that the caseworker has:
 - 1. Discussed with the child and family the goals that have been achieved and not achieved.
 - 2. Established a clear plan for follow-up services if needed.
 - 3. Involved the foster care provider in the evaluation of services, progress, and the child's further needs.
- C. The county department shall follow all required eligibility and documentation procedures to confirm the placement change.

7.304.7 RIGHTS AND RESPONSIBILITIES OF FOSTER PARENTS AND PROVIDERS

7.304.71 Rights of Foster Parents

- A. The foster parents have a right to a notice of legal status on children in their care and a right to declare their intent to adopt or not to adopt.
- B. For a relinquished child, the foster parents may be given custody of a child who has been in their home for more than a year.
- C. The court may award guardianship of a child to a foster parent.

7.304.72 Rights of Kinship Care Providers

- A. Children may be placed with a relative or other suitable person under the legal status of protective supervision.
- B. The court may, if in the child's best interests, give preference to a grandparent who is appropriate, capable, willing, and available to care for the child in decisions relating to legal custody and determining where and with whom a child shall live.
- C. Evidence of grandparents' past conduct of any child abuse or neglect shall be considered when the grandparents seek the placement or custody of their grandchildren.
- E. When the parent-child relationship is terminated, grandparents, aunts, uncles, brothers, or sisters of a child may request guardianship and legal custody, and the court shall give preference to them if it determines that the placement is in the best interests of the child.

7.304.73 Rights of Denied Foster Parent Applicant [Rev. eff. 4/1/12]

Refer to Section 7.500.351, F, for this information.

7.304.74 Responsibilities of Foster Parents [Rev. eff. 1/1/16]

As the provider, the foster parents shall:

- A. Participate with the county department as an active team member in case planning and service delivery, including attendance at staffings and meetings, as specified in each child's Family Services Plan. The provider's signature on the Family Services Plan is required for each child placed.
- B. Work actively with families of origin as specified in each child's Family Services Plan.
- C. Keep weekly records of each child's behavior and progress and submit those records monthly to the county department. Copies shall be maintained in the child's file kept by the provider.
- D. Provide written notice to employees of the State Department and county departments or other individuals with a need to know, if the foster parent does not want personally identifiable information provided to adult members of the foster child's family. Written notice may be subsequently provided to the parties aforementioned for release of personally identifiable information to the foster child's family; such information shall include the consent to release information, the foster parent's signature, and the date.

7.305 YOUTH SERVICES

7.305.1 PREPARATION FOR ADULTHOOD

Preparation for adulthood includes programs and services to prepare youth in out-of-home care for the transition to a successful adulthood. Services for all children and youth in out-of-home care should include efforts to build life skills, self-sufficiency competencies, and permanent connections; however, such services with the exception of Chafee are mandatory for youth fourteen (14) years of age and older regardless of their permanency goal.

7.305.2 SPECIFIC PROCEDURES

- A. The county department shall assess all youth in foster care who have reached the age of fourteen (14) for services to prepare for adulthood and shall complete the Roadmap to Success part of the Family Services Plan (FSP). This is required regardless of the specified permanency goal of the case plan.
- B. The county department's assessment shall include documentation of:
 - 1. The youth's capacity for self-sufficiency and self-support by reviewing daily living skills, in consideration of their age and appropriate developmental expectations/milestones.
 - 2. An evaluation of individual, family, community, and financial support resources available to promote emancipation or semi-independent living.
- C. Following assessment, the Roadmap to Success (RTS) shall be developed in consultation with the youth, caseworker, care provider(s), and, at the option of the youth, up to two (2) other significant persons chosen by the youth who are not the foster parent or caseworker for the youth and documented in the FSP in the state automated system. If the county Department of Human or Social Services has good cause to believe an individual selected by the youth will not act in his or her best interest, the planning team may designate another advocate for the youth.
 - 1. The case plan and court report following a staffing or meeting shall describe the services to help the youth transition to successful adulthood, including, but not limited to, ongoing opportunities to engage in age and developmentally appropriate activities and, if the youth is pregnant and/or a parent, the parenting supports provided to the youth.

2. The case plan shall document the rights of the youth to education, health, family time, court participation, the right to stay safe and avoid exploitation, and the right to receive a credit report annually. A signed acknowledgment that the youth was provided a copy of these rights and that they were explained in an age or developmentally appropriate way shall be included in the case plan.
- D. A Supervised Independent Living Placement is an out-of-home placement.
1. The county department may utilize a supervised independent living placement for youth at least sixteen (16) years of age through the last day of the month of their twenty-first (21) birthday when the county has placement and care responsibility.
 2. Approved supervised independent living placement settings may include an approved college dormitory, transitional living program, an apartment or other private housing, or another age or developmentally appropriate placement
 3. The use of a supervised independent living placement for youth ages sixteen (16) up to eighteen (18) may only be utilized after considering the youth's developmental needs and assets, supports that are available to the youth, and documentation in case notes that all other options have been exhausted.
 4. For youth ages sixteen (16) up to eighteen (18), placement in a supervised independent living placement must follow a period in out-of-home care.
 5. When the placement is not a college dormitory operated by an institution of higher education, adults residing in the household with the youth shall be required to successfully complete background checks as described in 12 CCR 2509-5.
 6. An update to the existing Roadmap to Success (RTS) must be completed, preferably within 30 days prior to, but no later than 30 days after, the start date of the supervised independent living placement.
 7. The county department shall establish a written policy for the use of supervised independent living placement. The policy shall address the following:
 - a. Assessing each youth's readiness to be successful in a supervised independent living placement, the safety of the placement, the availability of supportive services and resources for youth transitioning into adulthood, any county-specific policies around caseworker contact with the youth, and the process for ongoing review.
 - b. Supervised independent living placement funds shall be provided to the youth and be sufficient to have their needs met as identified in 12 CCR 2509-8 Sections 7.708.26, 7.708.31, 7.708.41, 7.708.42, 7.708.43, and 7.708.44, as well as having access to a working telephone and internet.
 - c. Additional supervised independent living placement funds may be provided to the youth as an incentive for progress towards and/or achievement of goals.
 - d. Decisions to withhold supervised independent living placement funds provided to the youth per section (c) shall not reduce the amount provided per subsection (b) and must be according to defined guidelines found in the county policy.
 - e. Defined appeal process and notification procedures for youth whose supervised independent living placement funds under subsection (c) are withheld.

- f. Defined process for how and when a supervised independent living placement may be terminated. The policy must address potential termination reasons including, but not limited to, concerns for current or impending danger or court case closure.
 - 8. A signed copy of the supervised independent living placement agreement and a signed expectations/acknowledgement that the youth was provided a copy of the county guidelines. These documents shall be explained in an age or developmentally appropriate way and shall be included in the case file.
- E. Free Annual Credit Record Report for Youth Fourteen (14) Years of Age and Older in Foster Care

The following steps shall be taken:

 - 1. The county department shall obtain free annual credit report information from the three credit reporting agencies designated by the Department for youth who are in foster care and are at least fourteen (14) years of age, and provide the information to the youth and Guardian ad Litem (GAL) and/or counsel for youth;
 - 2. If the youth objects to obtaining the credit report, the county department shall inform the court and request that the court issue an order authorizing the county to obtain the credit report.
 - 3. The county department shall maintain a copy of each credit report in the case record; and,
 - 4. Should the annual report show evidence of any inaccuracies, the county department shall inform the court of the inaccuracies, refer the youth to a Colorado Department of Human Services approved governmental or non-profit entity to resolve the inaccuracies, and inform the GAL and/or counsel for youth of the referral.
- F. The youth, county department caseworker, provider(s), and other representatives of the youth as appropriate, shall jointly develop a detailed, formal emancipation transition plan no more than ninety (90) days prior to the emancipation date of the youth. The plan, signed by all parties, shall include, but need not be limited to, the following:
 - 1. Assurance that the plan meets the specific self-sufficiency/cost of living standard in the county or state where the youth plans to reside.
 - 2. a plan shall be developed with the youth based on the information from the assessment and the youth's goals.
 - 3. Personalization at the direction of the youth to meet the individual emancipation needs in order to help prevent homelessness.
 - 4. Copies of verifiable vital documents required in Section 7.305.5.
 - 5. Specific options for:
 - a. Housing,
 - b. Health insurance and health care decision-making information,
 - c. Education,

- d. Local opportunities for safe mentors,
 - e. Continuing after-care support services, and
 - f. Work force supports and employment services.
- 6. The plan shall be documented in the State Department's automated system in the Family Services Plan, and a copy given to the youth free of charge.

7.305.3 NATIONAL YOUTH IN TRANSITION DATABASE (NYTD) [Rev. eff. 11/1/15]

The National Youth in Transition Database (NYTD) is a federal reporting requirement. Information is collected in NYTD about youth in foster care, including sex, race, ethnicity, date of birth, and foster care status. Information is also collected about the outcomes of youth who are in or have exited foster care.

7.305.31 Served Population [Eff. 10/1/10]

The served population consists of youth and children in out-of-home care, regardless of age, receiving independent living services that are paid for or provided by the state or county.

The county department shall enter the following information into various fields of the State's automated data system:

- A. Basic Demographic Information
 - 1. Date of birth;
 - 2. Sex;
 - 3. Race;
 - 4. Hispanic/Latino ethnicity.
- B. Youth/Child Characteristics
 - 1. Adjudicated delinquent;
 - 2. Out-of-home status;
 - 3. Federally-recognized tribe;
 - 4. Educational level;
 - 5. Special education.
- C. Independent Living Services
 - 1. Independent living needs assessment;
 - 2. Academic support;
 - 3. Post-secondary educational support;
 - 4. Career preparation;

5. Employment programs or vocational training;
6. Budget and financial management;
7. Housing education and home management training;
8. Health education and risk prevention;
9. Family support and healthy marriage education;
10. Mentoring;
11. Supervised independent living;
12. "Room and board" financial assistance;
13. Educational financial assistance; and,
14. Other financial assistance.

7.305.32 Baseline Population [Eff. 10/1/10]

The "Baseline Population" consists of any youth who is in out-of-home placement, for even one day, and that has reached age seventeen (17) as of October 1, 2010 through September 30, 2011, and every third year thereafter.

The county department shall assure that surveys for the "Baseline Population" are completed within forty-five (45) days of the youth turning age seventeen (17).

7.305.33 Follow-Up Population [Rev. eff. 11/1/15]

The "Follow-Up Population" consists of young people who were in the baseline population at age seventeen (17) who reach age nineteen (19) or age twenty-one (21) during the six-month survey period and who appear in the survey population or sample indicated in the Trails NYTD screen.

For youth open in a case and who are in the "Follow-Up Population", the county department or Division of Youth Services shall assure that the "follow-up surveys" are completed by the youth within the six (6) month period to which they are assigned.

For youth who have discharged from care who are in the "follow-up population", the county department or Division of Youth Services shall assist the Division of Child Welfare in locating and engaging youth to complete the survey during the period to which they are assigned.

7.305.34 [Eff. 10/1/10]

When a youth in either the Baseline or Follow-Up population is unable to participate, the county shall document the reason in the State's automated system. The reasons that shall be given are:

- A. Youth declined participation;
- B. Parent declined on behalf of the youth;
- C. Youth is incapacitated;
- D. Youth is incarcerated;

- E. Runaway/missing youth;
- F. Unable to locate the youth;
- G. Youth has died.

7.305.4 CHAFEE PROGRAM – TITLE IV-E INDEPENDENT LIVING GRANT INITIATIVE

The purpose of the Chafee Program is to provide age or developmentally appropriate services and resources to support a successful transition to adulthood for eligible current and former foster youth. These services are voluntary and complement the youth's own efforts towards self-sufficiency. The services shall supplement existing independent living resources and programs in county departments, residential child care facilities and child placement agencies, and by federal statute, shall not replace or duplicate existing services. Chafee Program funds shall not be used for room and board for a youth under eighteen (18) years of participating as child in open child welfare case. See section 7.305.42 for eligibility requirements.

7.305.41 County Responsibilities [Rev. eff. 11/1/15]

- A. The designated host county department or program shall submit a county plan for State approval.
- B. The county department or program shall comply in format, content, and time lines with the instructions for Chafee Program plans as published by the State Department in an agency letter which will also contain required instructions for program and financial reporting.
- C. The county department or program shall administer the State approved plan in accordance with provisions of the plan.
- D. Funds shall be used exclusively for the purposes specified in the plan.
- E. Chafee programs must submit amendments to approved plans when the county or program is proposing to add or delete a service to the plan. The program shall submit amendments TO the plan with signature from agency designee for approval to the State Department no less than thirty (30) business days before the amendment is to be effective. Written approval will be provided by the state department within thirty (30) business days after submission of the updated changes.
- F. The county department must consider the following factors, in the prioritization of Chafee services on an individual basis:
 - 1. Transfer of Chafee services from another county, provider, or state;
 - 2. Risk or history of homelessness;
 - 3. Risk or history of human trafficking or exploitation;
 - 4. Youth has discharged from an out-of-home placement or exited from an eligible placement through the division of youth services after attaining age eighteen (18);
 - 5. In an out-of-home placement at age sixteen (16) up to twenty-one (21) years of age;
 - 6. Remaining eligible populations.
- G. Chafee referral requirements:
 - 1. Referrals for youth in care:

- A. Approved program referral form,
 - B. Copy of Roadmap to Success signed by youth and caseworker (or DYS case plan), and
 - C. Documented proof of citizenship or legal presence.
2. Self-referrals and youth who are no longer in care:
- A. Program referral form (to be filled out with the youth),
 - B. Verification of Chafee eligibility, and
 - C. Documented proof of citizenship or legal presence.

7.305.42 Eligibility

Effective October 1, 2020, eligibility for the Chafee program will align with the standards put forth in the John H. Chafee Foster Care Program for Successful Transition to Adulthood section of the Social Security Act [SSA section 477. [42 U.S.C. 677](a)] and all federal guidance that pertains to that section.

7.305.43 Colorado Fostering Success Voucher Program

The purpose of the Colorado Fostering Success Voucher Program is to provide rental assistance vouchers to recipients along with age, developmentally, and culturally appropriate case management.

- A. Colorado Fostering Success Voucher Program youth/participant eligibility
- 1. In order to be eligible for the Colorado Fostering Success Voucher Program, youth must:
 - A. Be at least 18 years of age but less than 26 years of age;
 - b. Reside in Colorado;
 - c. Be currently experiencing homelessness or be at imminent risk of homelessness, as defined by the Department's Foster Youth Successful Transition to Adulthood Grant Program Advisory Board described in section 19-7-314(3), C.R.S., and have voluntarily agreed to participate in services offered and provided by a case management agency;
 - i. The definition of imminent risk of homelessness established by the Foster Youth Successful Transition to Adulthood Grant Program Advisory Board shall provide the flexibility necessary to meet the unique needs of this population and shall ensure that a youth's participation in programs intended to support a successful transition to adulthood shall not exclude or prohibit a youth's ability to access the program.
 - d. Have income that does not exceed a level determined pursuant to section 19-7-314.5(2)(b)(v), C.R.S.; and
 - e. Meet one of the following foster care (as defined by section 19-1-103(66), C.R.S.) eligibility requirements:
 - i. Was in foster care on or after their 14th birthday; or

- ii. Was in noncertified kinship care (as defined by section 19-1-103(102), C.R.S.) on or after their 14th birthday and adjudicated dependent and neglected pursuant to article 3 of title 19; or
 - iii. Turned 18 years of age when the youth was a named child or youth in a dependency and neglect case.
 - f. Voucher recipients must continue to participate in case management services provided by the case management agency in order to remain eligible for the rental assistance voucher.
 - g. The state Department of Human Services will work in partnership with the Colorado Department of Local Affairs and the Foster Youth Successful Transition to Adulthood Grant Program Advisory Board described in section 19-7-314(3), C.R.S. to develop an appeals process for program applications that are denied due to eligibility.
- B. Case management agency eligibility and application process
 - 1. Organizations that are eligible to apply for the Colorado Foster Success Voucher Program must be:
 - A. A current grant recipient of the Foster Youth Successful Transition to Adulthood Grant Program; or
 - b. Currently operating a Chafee Foster Care Program for Successful Transition to Adulthood Program in Colorado.
- C. Case management requirements for case management agencies
 - 1. Case management service providers shall follow the Chafee and/or Colorado Foster Youth Successful Transition to Adulthood State Grant Program plan submitted to and approved by the Department.
 - A. A case management agency shall make reasonable efforts to engage a youth in case management activities and to support the youth with coming into compliance with voucher requirements prior to terminating the voucher or case management services.

7.305.5 Vital Life Documents Prior to Emancipation

- A. All youth in foster care who have reached the age of eighteen (18), and who have been in foster care at least six (6) months, shall be provided with the following documents no more than ninety (90) days prior to the emancipation date of the youth, unless there is no record of the youth's birth or the identity of the youth cannot be established, in which case the basis for this shall be documented in the State automated system:
 - 1. A certified birth certificate or, when applicable, an alien registration card (green card);
 - 2. Tribal affiliation information for American Indian/Alaskan Native youth (see section 7.309.21, A and B);
 - 3. A Social Security card;
 - 4. A state identification card or a state driver's license;

5. A Health Passport and other pertinent health-related records, to include health care decision-making information, and health insurance information; and,
 6. Educational records (see Section 7.301.242).
 7. Official documentation to prove the youth was in out-of-home placement.
- B. For all male youth with a permanency goal of "Other Planned Permanent Living Arrangement", the county shall facilitate registration for the Selective Service System.

7.306 Adoption Services

The county department shall ensure that adoption services are provided as a service on the continuum of protective services to children. All children/youth who are unable to return to their own home should be considered for adoption. Proceeding with termination of parental rights implies that the county department will actively pursue adoption as the permanent plan for the child(ren)/youth.

7.306.1 Pre-Adoption Services

7.306.11 The Evaluation of Child/Youth's Needs

The county department shall assess the child/youth's readiness for adoption.

- A. The county department shall make thorough efforts to place siblings together in the adoptive family and document such efforts in the Family Services Plan. When the child/youth is part of a sibling group and the sibling group is being placed out of the home, it shall be presumed that placement of the entire sibling group in the joint placement is in the best interests of the children/youth in order to sustain family relationships. Such presumption may be rebutted by the county department by a preponderance of evidence that placement of the entire sibling group in the joint placement is not in the best interests and the needs of a child/youth or of the children/youth.
- B. If the current caregiver is an approved adoptive resource for the identified child/youth, the worker will complete the Colorado Adoption Resource Registry (CARR) exclusion form and send the form to the state's adoption unit.
- C. Conduct an ongoing comprehensive search of the child(ren)/youth's record for possible permanent placement(s) or other permanent connections unless the child/youth meets the family search and engagement exclusion criteria in section 7.304.52.C (12 CCR 2509-4). Any possible resources should be interviewed/contacted as to their willingness and/or availability as a placement for the child/youth.
- D. Available resources for adoption shall be assessed and a recruitment plan developed if there is no adoptive family identified. Recruitment efforts begin when the permanency goal becomes adoption and should use all resources available. The county department shall document, in the Family Services Plan, efforts to recruit and locate a permanent home for any child/youth whose parental rights have been terminated and who is in the guardianship of the county department with the right to consent to adoption.
- E. A child/youth's best interests and special needs shall be the primary consideration in determining placement.

7.306.12 Child And Family Study

Within 90 calendar days following relinquishment or termination of the parent-child relationship, the family history and medical information shall be collected and documented in the state prescribed child and family study.

- A. Information shall include, but not be limited to:
 - 1. Birth certificate
 - 2. Legal custody documents
 - 3. Record of placements, including previous adoption(s) if applicable
 - 4. Emotional, physical, medical, psychological, trauma, and developmental evaluations.
- B. Information in the record should be updated when changes occur or additional information is available that would affect the child/youth's readiness for adoption.
- C. The child and family study shall be updated annually from the date of the initial child and family study until the child/youth achieves permanency.

7.306.13 Colorado Adoption Resource Registry (CARR)

The county department shall submit either an initial child/youth referral form for recruitment services or a request for exclusion from the CARR, 90 calendar days following relinquishment or termination of parent-child relationship.

- A. Referral to the Colorado Adoption Resource Registry
 - 1. If no adoptive home has been found for the child/youth within 90 calendar days following relinquishment or termination of the parent-child relationship.
 - 2. Following a disruption of an adoptive placement before legal finalization the child/youth shall be listed or excluded within 90 calendar days from the date of the disruption.
 - 3. Registration with the CARR will be sent to the state adoption specialist or the state contracted service provider.

B. Exclusion from the CARR

The county department may decide that the best interest of the child/youth will not be served by a CARR photo listing. The county department shall determine the reason for the exclusion from listing and send the request for exclusion to the state department. The county department shall use the following criteria for determining reasons for exclusion:

- 1. If an approved family has been identified as an adoptive home for a child/youth. If the child/youth has not moved into the adoptive placement within 90 calendar days of termination of parental rights, the county department shall photo list the child/youth with the CARR. If there is a compelling reason that the county department and the State Department agree is appropriate for delaying filing of the adoption petition, this reason is to be submitted to the state review team by the county department. If the compelling reason for delaying filing the petition is approved, the state review team will review the foster care placement until such time as the petition to adopt is filed or the child/youth is photo listed with the CARR.

2. The child/youth is:
 - a. One whose court-approved and court-ordered permanency goal is legal guardianship or other planned permanent living arrangement.
 - b. Placed with a relative or a relative is being considered as a placement resource for the child/youth (adoption or foster care). All relatives who are providing care for a child/youth who is legally free for adoption shall be counseled by a professional who is knowledgeable about permanency options regarding the importance of permanency through adoption, guardianship, or permanent custody. When a relative is being considered, the placement shall be made 90 calendar days from the date the child/youth is legally free for adoption unless there is a documented extenuating circumstance in the case record.
 - c. The CARR exclusion will be considered and approved or denied by the State Department. The following are conditions that are not necessarily appropriate for denying any child/youth the possibility of a permanent placement or a permanent connection in his/her life.
 - 1) Placement in a residential child care facility, detention or corrective center, or mental hospital, and placement is not indicated by the treatment plan for the child/youth.
 - 2) In therapy and adoptive placement is not indicated by the treatment plan for the child/youth. the county department shall provide the review team with documentation that a therapist and others (e.g., guardians ad litem) have determined that it would not be in the child(ren)/youth's best interest to recruit an adoptive home.
 - 3) A child/youth who is still being evaluated by specialists. The county department shall photo list the child(ren)/youth with the Colorado Adoption Resource Registry if the evaluation is not completed within 90 calendar days of termination of parental rights.
 - 4) A child/youth who is twelve (12) years or older and is refusing adoption. The child/youth shall be counseled by a professional who is knowledgeable about adoption and permanency for teens, recognizing that their consent is still required to proceed with an adoption.

7.306.14 Selection of an Adoptive Family for a Child/Youth

- A. The county department shall use all resources available to find an adoptive family home for the child/youth. Unless it is in the best interest of the child/youth, the county department shall not deny or delay the placement of a child/youth for adoption when an approved prospective adoptive family is available outside of the county department or state. If a family with an approved home assessment from another county department or state requests a fair hearing, it shall be provided to the family.
- B. The county department shall comply with the Indian Child Welfare Act in placing any eligible Native American child/youth. See Indian Child Welfare Act of 1978, 25 U.S.C. sections 1901 - 1963 (2019), which are hereby incorporated by reference. No later editions or amendments are incorporated. These regulations are available at no cost from the U.S. Department of Justice, http://www.ssa.gov/op_home/comp2/f095-608.html. These regulations are also available for public inspection and copying at the Colorado Department of Human Services, Office of Children Youth and Families, 1575 Sherman St Denver, Colorado 80203, during regular business hours.

- C. An adoptive placement shall not be delayed or denied solely because the prospective adoptive family is of another race, color, or national origin than that of the child/youth.
- D. Race, color, and national origin can only be considered in extraordinary circumstances.

7.306.2 Adoption Placement Services

The county department shall complete the following most recent, approved, state prescribed documents and reports:

- A. As soon as the county department has identified a prospective adoptive family, the county department shall conduct a face-to-face presentation interview with the prospective adoptive parent(s) within 90 days of termination of parental rights. If the adoptive resource is a two-parent family, both parents shall be present for the interview.

If attending a face-to-face presentation will create an undue hardship for the prospective adoptive family, the presentation meeting may be conducted via phone or video conference chat to accommodate the prospective family during the presentation.

- 1. The guardian ad litem and/or counsel for youth shall be invited to attend the presentation interview.
 - 2. The county department shall provide the prospective adoptive parent(s) with the child and family study and any supplemental information (example: medical records, educational records, etc). All documentation provided to the prospective adoptive parents will be redacted to remove all identifying information.
 - 3. The presentation shall be audio-recorded. Two copies of the recording shall be made.
 - a. One copy shall be kept with the child/youth file until the adoption is finalized, at which time it will be placed in the sealed file.
 - b. The second copy shall be provided to the prospective adoptive family.
- B. If requested by the prospective adoptive family or deemed necessary by the county department, the prospective adoptive family shall have a minimum of 48 business hours to review all of the written and audio information in order to make an informed decision before any further steps are made toward finalizing the adoption.
- C. All of the information provided shall be documented on the state's approved form (entitled "information sharing acknowledgement"), signed by the family, then placed in the child/youth's record until the adoption is finalized, at which time it will be placed in the sealed file.
- D. If the family decides at a later time not to move forward with adoption or maintain a permanent relationship with the child/youth, the county department will request all information provided to the prospective adoptive family must be returned to the county department.

7.306.21 Adoption Placement Activities

The county department shall complete the following most recent approved prescribed documents and reports:

- A. The Adoption Placement Agreement, at the time the child/youth is legally free and placed in the home.

- B. The information sharing form, at the time a child/youth is legally free for adoption and placed in the home. When a child in an adoptive placement whose adoption is not finalized has a name change, and case and client I.D. number(s) change entered into the department's statewide automated system, the county department shall provide the following information to the administrative reviewer: the child's biological name, trails case and client I.D. numbers, and the new name, and new trails case and client I.D. numbers.
- C. The county department shall request that the court finalize the adoption when the child/youth to be adopted has been in the prospective adoptive home for at least six months prior to the filing of the petition to adopt. If adoption is requested to be expedited prior to six months of the child/youth being in the prospective adoptive home, the county department may request finalization of the adoption if all parties are in agreement. Written documentation of these requests shall be in the case file.
- D. The county department shall file a motion with the court to close the hearing to the public when all parties have consented and when it is in the best interests of the child/youth who is the subject of the adoption hearing.
- E. When a child/youth is placed for adoption into another Colorado county department, the county department of residence where the child/youth is placed shall open Medicaid when the child/youth is receiving subsidized adoption assistance. The placing county department shall send written notification to the resident county department to expedite timely opening of the Medicaid benefits.

7.306.3 POST-PLACEMENT SERVICES

Following placement in the adoptive home, the county department shall:

- A. Provide services to the child/youth and the adoptive parents to integrate the child/youth into the family.
- B. Re-review the information sharing acknowledgment form with the adoptive parent(s); all parties identified on the form shall date and initial it before the finalization of the adoption.
- C. Inform the family of the legal procedure for adoption, and complete and submit all documents to the court regarding the adoptive placement as required by the Colorado Children's Code (C.R.S. 19-1-107).

7.306.31 Adoption Placement Disruption

The county with custody of the child/youth shall formulate an appropriate SMART (specific, measurable, achievable, result focused and relevant, and time limited) plan if the adoptive placement disrupts prior to finalization.

7.306.32 Post Finalization of Adoption

Adoption assistance is a post-placement service (see adoption assistance services, section 7.306.4).

- A. At the time the county department changes the child/youth's status from foster care to adoption, the case in the Comprehensive Child Welfare Information System (CCWIS) shall be closed in the child/youth's birth name and opened under the new adoptive name. In addition, a new state identification number shall be reissued in the child/youth's adoptive name.

- B. When a child/youth is placed for adoption into another Colorado county department, the county department of residence where the child/youth is placed shall open Medicaid when the child/youth is receiving subsidized adoption assistance. The placing county department shall send written notification to the resident county department to expedite timely opening of the Medicaid benefits.

7.306.4 Adoption Assistance Services

Colorado operates two adoption assistance programs: the Title IV-E program and the state and county-only (non-Title IV-E) program.

A. Applicable to Both Programs:

1. The federal government participates in adoption assistance agreements on behalf of children/youth who meet the eligibility criteria for the Title IV-E adoption assistance program.
2. The state and county departments participate in adoption assistance agreements on behalf of children/youth who are not eligible for the Title IV-E program.
3. Prospective adoptive parents must be informed of the adoption assistance program. Adoption assistance is a program that provides assistance to adoptive parent(s) in certain defined and limited ways to provide for the needs of an eligible adopted child/youth. Adoption assistance is intended to help or remove financial or other barriers to the adoption of eligible Colorado children/youth with identified needs by providing assistance to the parent(s) in caring for and raising the child/youth.
 - a. The county department may make adoption assistance payments and/or provide Medicaid or medical assistance at the time of adoptive placement, continue them after the adoption has been finalized and continue them until the adopted child/youth has reached the age of eighteen (18). As defined in section 7.306.54, adoption assistance may continue to the 21st birthday. In situations where adoption assistance continues through the 21st birthday of the adoptee, adoption Medicaid will still continue through the end of the month of the 21st birthday.
 - b. The determination for expiration of the agreement must be made and documented in the original negotiation and noted in the original paperwork for the adoption assistance agreement. The county department shall extend the adoption assistance agreement upon the approaching expiration date if the youth meets criteria for extension per section 7.306.54 and the extension is requested by the adoptive parent(s).
 - c. The county department must determine that in each case a reasonable, but unsuccessful, effort to place the child/youth for adoption without adoption assistance has been made before negotiating adoption assistance, unless the best interests of the child/youth would not be served by such an effort. Reasonable effort requires listing with the Colorado Adoption Resource Registry (CARR) and may include presentation in the media and consultation with the state. Exceptions to the requirement:
 - 1) The current caregiver will be given priority as the prospective adoptive family, when appropriate.
 - 2) In situations where it would be against the best interests of the child/youth, due to such factors as:

- a. The existence of significant emotional ties with the prospective adoptive parents while in their care as a foster child/youth, or
 - b. Adoption by a kinship caregiver
 - c. The eligible child/youth is being placed by a birth parent with designated adoptive parents through a non-profit child placement agency.
- d. Eligible child or youth means a child or youth who meets the medical and disability requirements for federal supplemental security income or is a child or youth with one or more specific factors or conditions that would make it reasonable to conclude that a child or youth cannot be adopted without providing benefits to assist in the adoption. Such factors may include but are not limited to:
 - 1) A physical disability, that has been documented by a qualified licensed professional such as hearing, vision, or physical impairment; neurological conditions; disfiguring defects; metabolic disorder; a child or youth infected with the human immunodeficiency virus; or heart defects;
 - 2) A mental, intellectual, or developmental disability that has been documented by a qualified licensed professional, such as a perceptual, speech, or language disability or any disability that results in educational delays or significant learning difficulties;
 - 3) An emotional handicap, such as post-traumatic stress disorder, bipolar disorder, or other mental health disorder that has been documented by a qualified licensed professional;
 - 4) Hereditary factors that have been documented by a qualified licensed professional;
 - 5) An educational disability that qualifies for section 504 of the federal rehabilitation act of 1973, or special education services;
 - 6) Factors that place a child or youth in a "high-risk" category, such as being drug- or alcohol-exposed in utero;
 - 7) Other conditions that act as a barrier to the child's/youth's adoption, including but not limited to, a healthy child or youth over seven years of age or a sibling group that should remain intact and medical conditions that are likely to require further treatment; or,
 - 8) Ethnic background or membership in a minority group which may be difficult to place.
- e. The county department shall not use an income eligibility requirement (income means test) for the prospective adoptive parent(s) in determining eligibility for adoption assistance. Instead, the particular agreement that is negotiated shall be based on the child/youth's current and anticipated needs and the family circumstances.
- f. Available public programs for which the child/youth is eligible shall be used first to address the child's/youth's needs before an adoption assistance agreement is negotiated.

- g. The county department may authorize the following types of adoption assistance agreements:

- 1) "Long-Term Adoption Assistance Agreement" means to partially meet a child's/youth's daily needs unless the adoptive family's or child's/youth's circumstances change or the agreement terminates as outlined in the termination of adoption assistance, section 7.306.48, of the adoption assistance agreement rules and as cited in C.R.S. § 26-7-109. A long-term agreement is made when the family's financial situation and/or the child's/youth's needs are unlikely to change or when a child's/youth's needs take an excessive toll on the family's financial resources.
- 2) "Time-Limited Adoption Assistance Agreement" means to partially meet the everyday needs of the child/youth for a specified period. Agreement partially covers unmet needs that are time limited.
- 3) "Dormant" or "Medicaid Only Adoption Assistance Agreement" means there is no adoption assistance payment provided at the time of the agreement. County departments shall document for the child's/youth's eligibility in the services record and in the Comprehensive Child Welfare Information System (CCWIS) that the potential need for financial adoption assistance exists and may need to be activated at a future time.

4. If the child/youth is legally available for adoption and reunited with their birth parent(s), the child/youth is not eligible for adoption assistance.
5. Medicaid is available to all Colorado children/youth who have an adoption assistance agreement.
6. Families who adopt children/youth who meet the criteria for adoption assistance are eligible for non-recurring adoption expenses.
7. Case services payments may be part of an adoption assistance agreement; these payments can be made directly to the service providers or to the adoptive parent(s).

B. Target Groups for Adoption Assistance Agreements:

1. Children/youth who meet the eligibility criteria to participate in one of Colorado's adoption assistance programs and whose identified needs are a barrier to their adoption are legally available for adoption and are in the custody of a county department and the county has guardianship of the child/youth with the right to consent for adoption; or,
2. Children/youth who are in the custody of a relative, tribe, person to whom custody of the child/youth has been given by proper order of a dependency and neglect court, or licensed non-profit child placement agency and meet the eligibility criteria to participate in one of Colorado's adoption assistance programs; and,
3. The county department, licensed non-profit child placement agency, tribe, person to whom custody of the child/youth has been given by proper order of a dependency and neglect court, or relative requesting the adoption assistance agreement is financially responsible for the care of the child/youth.

C. County Requirements for Adoption Assistance:

1. The county department shall obtain and document the diagnoses and prognoses of the child's/youth's needs that are barriers to the adoption.
2. The documentation shall include specific eligibility factors used to determine eligibility factors as outlined in section 7.306.4 A.
 - A. Placement history
 - B. Eligible child/youth: if the county department determines that the child/youth is an eligible child/youth, with needs for whom services will be purchased, it must confirm the identified needs by a second opinion of a qualified licensed professional who is outside the department.
 - C. Other appropriate reports
3. The county department shall determine the child's/youth's Title IV-E status for adoption assistance in the Comprehensive Child Welfare Information System (CCWIS) prior to adoption finalization and no later than the calendar month the adoption petition is filed.
4. The county department shall ensure that all parties sign the adoption assistance agreement before the adoption is finalized.
5. At the time that the family is matched for adoption of a child/youth who is potentially eligible for adoption assistance benefits, the prospective adoptive family should be informed in writing, with the following information:
 - a. The availability of benefits, with an explanation of the differences between these benefits and foster care maintenance payments;
 - b. The availability of reimbursement for non-recurring expenses incurred in the adoption of an eligible child/youth not to exceed the federal limit;
 - c. The availability of mental health services through the state Medicaid assistance program or other programs;
 - d. The federal adoption tax credit for an individual who is adopting or is considering adopting a child/youth in foster care or through a nonprofit child placement agency;
 - e. Notice of the general right to request a negotiating meeting;
 - f. Notice of the general right to bring to the adoption assistance negotiation process:
 1. Parties who possess relevant information about a child/youth's history and needs, including the child's guardian ad litem or the family's advocate; and
 2. Legal representation for a child/youth or prospective adoptive family.
 - g. Notice of the right to an administrative appeal and be represented by legal counsel, at the prospective adoptive parent's expense.
 - h. The Colorado Adoption Assistance Negotiation Worksheet must be provided to all participants 5 business days prior to the negotiation meeting.

7.306.41 Title IV-E Adoption Assistance Program

A. Pathways to Eligibility

Title IV-E adoption assistance services may be provided to children/youth whose needs are a barrier to their adoption, who are legally available for adoption, and meet one of the following pathways:

1. A child/youth was removed from a specified relative by a court order that contains the requirements in Section 7.601.71.
 - a. For the purposes of Title IV-E adoption assistance only, there is no requirement for a “reasonable efforts” judicial determination at the time of the initial removal.
 - b. The Federal Applicable Child Criteria (delinking) allows for Title IV-E adoption assistance to child(ren)/youth who are two or turn two in the federal fiscal year in which the adoption is finalized.
 - c. For Title IV-E funding to be an option in adoption assistance a removal must have been entered and an initial Title IV-E foster care determination must have been entered into the CCWIS system.
2. Have Social Security Income (SSI) eligibility.
 - a. This factor must be met at any time prior to finalization of the adoption.
 - b. If eligible, the child/youth may simultaneously receive SSI and Title IV-E adoption assistance payments.
 - c. If a child/youth is SSI eligible, there are no requirements for the Federal Applicable Child Criteria or the statement regarding efforts to place the child/youth without adoption assistance.
3. Are IV-E eligible in a previous adoption and the adoptive parents have relinquished, had their parental rights terminated, or died and the child/youth are placed in a subsequent adoptive placement, then the child/youth retain Title IV-E eligibility for adoption assistance in their new adoptive placement. Additional requirements for this pathway to eligibility include:
 - a. A new determination regarding the child/youth’s continuing needs.
 - b. Completion of a new adoption assistance agreement with the new prospective adoptive parent(s).
 - c. If the previous adoptive parent(s) is(are) deceased, a copy of the death certificate must be provided.
4. Is in mutual foster care placement with a county department.
 - a. The child must be placed with their teen parent; and,
 - b. The foster care payment included both the child and the teen parent.

5. Is in foster care by voluntary placement agreement with a county department (a tribe or another public agency with which the state/county has a Title IV-E agreement). The child/youth must meet the requirement outlined in section 7.601.71.
 - a. There must have been at least one Title IV-E foster care maintenance payment made on behalf of the child/youth under the voluntary placement agreement.
 - b. Under this factor, there is no specified amount of time that the child/youth must have been in foster care under the voluntary placement agreement.
6. A child/youth who was voluntarily relinquished to a public or private licensed non-profit agency must meet the requirements in section 7.601.71.F., and:
 - a. A petition was filed in court to place the child/youth outside of the home within six months of the time the child/youth lived with the relinquishing parent; and,
 - b. A subsequent order was issued which included findings that it is in the best interest of the child/youth to be placed out of the home; and,
 - c. Legal orders placing the child/youth in the custody of a public or private licensed non-profit child placement agency with authority to consent to the child/youth's adoption;
 - d. The agency must provide documentation of the efforts the agency made to place the child/youth for adoption without an adoption assistance agreement, except as provided in section 7.306.4.A.3.C., when the child/youth meets the Federal Applicable Child Criteria.
7. If the child/youth does not meet the Federal Applicable Child Criteria, has identified needs, and if they are between the ages of 2 and 18 years in the Federal Fiscal Year in which the adoption assistance agreement is signed by all parties, the child/youth will become categorically eligible for Title IV-E adoption assistance (delinking). A child/youth still must meet removal requirements of section 7.601.71. This requirement is in effect during the period of January 1, 2018, through June 30, 2024. This includes children/youth who turn two during the current federal fiscal year in which they are adopted.
8. County Departments of Human/Social Services shall continue the adoption assistance agreement if the extension is requested by the adoptive parent(s) and claim Title IV-E funds for youth 18 years of age through the 21st birthday (adoption Medicaid will still continue through the end of the month of the 21st birthday) when one of the following criteria is met:
 - a. The county shall document in the record that the youth is enrolled full-time in high school or vocational training and is making progress in the program; or completing secondary education; or is enrolled in a program leading to an equivalent credential; or,
 - b. Enrolled in an institution that provides postsecondary or vocational education (section 7.306.54); or,
 - c. A youth who is identified in the original adoption assistance agreement as having an intellectual and or developmental disability or a physical handicap, is between the age of 18-21, and continues to live at home, may continue to be eligible for the adoption assistance program as long as these disabilities were identified and documented in the original agreement paperwork or is genetic in nature; or,

- d. Participation in a program or activity designed to promote or remove barriers to employment; or,
 - e. Employed for at least eighty hours per month.
 - 9. After a child/youth has been determined eligible for Title IV-E adoption assistance payments and/or Title IV-E Medicaid benefits, Title IV-E eligibility continues as long as there is an adoption assistance agreement in effect as outlined below:
 - a. The child/youth meet the requirements regardless of the family's state of residence.
 - b. Eligibility may continue even though no payments or Medicaid benefit is currently paid; therefore, maintaining the potential Title IV-E benefits if needed later.
 - c. Until the expiration of the original agreement unless all parties to the agreement are in concurrence in a subsequent written and signed document.
 - 10. The county shall obtain annual documentation of school attendance or reasons for inability to attend. The documentation must demonstrate that each child/youth who is eligible for adoption assistance and who has attained the minimum age for compulsory school attendance is:
 - a. Enrolled or in the process of enrolling in an institution that provides elementary or secondary education, or,
 - b. Instructed in elementary or secondary education at home in accordance with the home school statute, or,
 - c. In an independent study elementary or secondary education program in accordance with statute, and which is administered by the local school, school district, or Board of Cooperative Education (BOCES), or,
 - d. Incapable of attending school on a full-time basis due to the medical condition of the youth or child. The reasons shall be supported by regularly updated information in the educational plan maintained by the school, school district, or Boards of Cooperative Educational Services (BOCES).
- B. Out-of-Home Placement of a Child/Youth Who is in the Custody of the County While Receiving Adoption Assistance
 - 1. Title IV-E eligibility must be determined when a child/youth is dually placed in foster care and adoption assistance. The child/youth does not automatically retain the Title IV-E eligibility while in foster care and out of home placement.
 - 2. The State prescribed form must be completed using the adoptive parent(s)' income.
 - 3. The child/youth, upon returning to the adoptive parent(s)' home, continues to be eligible for the Title IV-E adoption assistance agreement.
 - 4. If the adoptive family does not reside in the state of Colorado this does not apply.
- C. Assessment of Parental Fees for Placement Out of the Home for Children/Youth Receiving Title IV-E Adoption Assistance:

1. If the adoptive parent(s) are receiving Title IV-E adoption assistance and the child/youth is under the custody of the department and placed in out-of-home for a duration of over thirty (30) calendar days, the department and the family have two options:
 - a. To assess a parental fee (child support) from the family not to exceed the amount of the adoption assistance payment they are receiving under their adoption assistance agreement; or,
 - b. To execute an amended agreement, which would reduce the adoption assistance payment to \$0 and place it on Medicaid-only status until such time that the child/youth returns to the custody of the parent(s).
2. The parental fee will not be discontinued because the child/youth returns to the home of the adoptive parents for holidays or visits while the child/youth is under the custody of the department.
3. During the time the adoption assistance payment is in Medicaid-only status, the parent(s) will not be assessed a parental share fee for the child/youth's out-of-home placement.

D. Eligibility Determination for Medicaid in Title IV-E Adoption Assistance

1. Children/youth with an effective adoption assistance agreement are eligible for Medicaid in the state they reside. See Medical Resources section, 7.402 Medicaid for children/youth covered by the Interstate Compact on Adoptions and Medical Assistance (ICAMA).
2. An adoption assistance payment is not required to extend Medicaid coverage.
3. Colorado is a member of the Interstate Compact to Adoption and Medicaid Assistance (ICAMA). Procedures for completing and complying with the compact are in the Medical Resources section, Children Moving from Colorado (Section 7.420.3, B.).
4. Medicaid eligibility shall be continued for IV-E eligible children/youth who are out of the home for more than thirty (30) calendar days unless it is determined that they are eligible for Medicaid under another program by completing the State approved form.
5. Medicaid eligibility for all children/youth receiving Medicaid shall be re-determined yearly only if the child/youth continues to be eligible for Medicaid. This can be done by completing the State prescribed form or completing a form letter that the children/youth continue to be eligible for Medicaid. This form letter shall be sent to the other states by the county department to ensure continuation of Medicaid for a child/youth who is residing out of state.
6. Upon verification that Medicaid has been opened by the receiving state, the county department will ensure Colorado Medicaid is closed.

E. County Process for Title IV-E Adoption Assistance Agreements

1. Determine and document a child's/youth's identified needs and eligibility for adoption assistance.
2. Denial of assistance based solely on a means test of the adoptive family is not allowed and must not be substituted for the agreement.

- a. The circumstances of the family, as defined in C.R.S. § 26-7-102(5), should be considered in negotiating the adoption assistance agreement. "Circumstances of the family" is defined as the capacity of the family, including but not limited to financial capacity, to meet the anticipated needs of the eligible child or youth. The county is entitled to request and receive financial information regarding the family, including assets, liabilities, and insurance benefits in negotiating the initial agreement and any subsequent increases in adoption assistance but may not be used as the sole factor.
3. The adoption assistance agreement shall be established in accordance with the state's written policy and is consistent with state and federal regulations. The policy shall outline the criteria used for determining the amount of adoption assistance.
 - a. County departments shall use the Colorado Adoption Assistance Negotiation Worksheet with the potential adoptive family for all adoption assistance determinations and negotiations.
 1. If adoptive parent(s) choose(s) to refuse all adoption assistance including monthly cash assistance, Medicaid, and/or case services, they must sign the permanent refusal of adoption assistance form.
 2. If adoption parent(s) request a Medicaid only adoption assistance agreement and/or non-recurring adoption expenses they may choose to decline completing the Adoption Assistance Negotiation Worksheet and sign the request for Medicaid only adoption assistance form. However, they still must sign an adoption assistance agreement.
 - b. County departments shall adopt the policies and procedures outlined in the State of Colorado's adoption assistance policy. A copy of the written policy shall be provided to adoptive parent(s) at least 5 business days prior to a negotiation meeting.
4. It is not permissible for a county to include a statement in the adoption assistance agreement that IV-E adoption assistance payments and/or services are subject to the appropriation of state funds.
5. The county department shall make a good faith effort to negotiate an adoption assistance agreement with the adoptive parent(s). The county shall base the negotiation on the current and anticipated needs of the child/youth and the circumstances of the adoptive parent(s).
 - a. A good faith negotiation means to deal honestly and fairly with one another. There must be a discussion between the county department and the adoptive parent(s).
 - b. At the negotiation meeting, the county department will explain all aspects of the program and the agreed-upon amount of assistance which considers the needs of the child/youth.
 - c. If the parties cannot come to an agreement, the county department shall establish the adoption assistance amount. If the family disagrees with the decision, a fair hearing can be requested.

6. Negotiate with the adoptive parents to request the amount that is needed by the family to meet the child's/youth's needs. This may be less than the amount for which the child/youth qualifies.
7. The county may negotiate up to the monthly foster care rate in appropriate cases. The amount shall be no more than the rate that is being paid for the child's/youth's current out-of-home care or that would have been paid if the child/youth were in paid out-of-home care today. The monthly respite care payment that is provided under the foster care program is not a benefit under the adoption assistance program. If the county and the prospective adoptive family do not agree to an amount, the county shall make an offer. The adoptive family may reject that offer and take the matter to a fair hearing.
8. If a child/youth with mental, intellectual or developmental disability that is documented and defined by a licensed medical professional is receiving an allowance in addition to the foster care payment at the time the child/youth is placed for adoption, the allowance may continue under the adoption assistance program if the child/youth continues to meet the criteria outlined in "Child with Adoption assistance" Section 7.306.4, A.
9. County departments who pay more than the child's/youth's foster care rate or in the event that the child/youth is not in foster care, the rate that would have been paid based on the child's/youth's original or amended adoption assistance agreement shall reimburse the state for ninety percent (90%) of the payment that is over the foster care rate.
10. Use the State prescribed forms to document the negotiated agreement for IV-E adoption assistance and attach supporting documentation.
11. Complete and sign the adoption assistance agreement form specifying:
 - a. The dollar amount of any adoption assistance and a summary of case services agreed upon being provided, if applicable.
 - b. The duration date of the agreement:
 1. Until the adopted child/youth reaches the age of 18 years; or,
 2. Up to 21 years in the case of a child/youth who has a physical, intellectual or developmental disability; or,
 - a. The county shall document in the record that the youth is enrolled full-time in high school or vocational training and is making progress in the program or completing secondary education or is enrolled in a program leading to an equivalent credential.
 - b. Enrolled in an institution that provides postsecondary or vocational education.
 - c. A youth who is identified in the original adoption assistance agreement has an intellectual and or developmental disability or a physical handicap, is between the age of 18-21, and continues to live at home, may continue to be eligible for the adoption assistance program as long as these disabilities were identified;
 - d. Participating in a program or activity designed to promote or remove barriers to employment; or,

- e. Employed for at least eighty hours per month.
 - 3. On a case-by-case basis, the duration of an agreement may be sooner than this time. All parties must be in agreement with the earlier termination date.
 - 4. The services and dates of services that are covered by an effective adoption assistance agreement.
 - 5. Any reimbursement for non-recurring expenses incurred by or on behalf of the adoptive parent(s) in connection with the adoption.
 - c. That the adoption assistance agreement must be signed and dated by all parties prior to the effective date of the agreement and before the adoption is finalized. If the county fails to completely execute the initial adoption assistance agreement prior to the effective date and prior to the finalization of the adoption, the assistance payment will become non-reimbursable by the State and IV-E moneys.
12. The adoption assistance agreement must be reviewed at least every three years. The county department shall provide written notice of the upcoming review to the adoptive family.
- a. The agreement may be adjusted after a good-faith negotiation and with the concurrence of the adoptive family. An adjustment is reviewable through the administrative law process upon the request of the family. Any party may request a review of the agreement prior to the three-year mandatory review if changes occur in the needs of the adoptive child or youth or in the circumstances of the family.
 - b. Benefits provided through the program must be continued if the adoptive parent(s) leave the state of Colorado with the adopted child or youth (for additional information regarding state-to-state Medicaid services see section 7.402.4 Medicaid for children and youth covered by the Interstate Compact on Adoptions and Medical Assistance (ICAMA)).
13. The county or adoptive family may request to renegotiate an existing adoption assistance agreement at any based on changes in the needs of the adopted child or youth or in the circumstances of the family related to the original eligibility criteria known and documented at the time of the finalization of the adoption.
- a. Any new agreement must include the circumstances under which the county department may suspend adoption assistance payments.
 - b. The agreement may be adjusted after a good faith negotiation and with the concurrence of the adoptive family. An adjustment is reviewable through the administrative law process upon the request of the family. Any party may request a review of the agreement prior to the three-year mandatory review if changes occur in the needs of the adoptive child or youth or in the circumstances of the family.
- F. There are situations after finalization when adoptive parents can request a state level fair hearing before an Administrative Law Judge concerning the adopted child's/youth's eligibility for adoption assistance benefits or the amount of those benefits. These situations include but are not limited to:

1. Relevant facts regarding the child/youth that were known and not presented to the adoptive parent(s) prior to the finalization of the adoption.
2. Denial of assistance based upon a means test of the adoptive family.
3. Erroneous determination that a child/youth is ineligible for adoption assistance.
4. Denial of a request for a change in payment level due to a change in the child/youth's needs and/or in the adoptive parent(s)' circumstances.
5. Failure by the county or non-profit child placement agency to advise the adoptive parent(s) about the availability of adoption assistance for children/youth who have been identified with special needs.
6. Decrease in the amount of adoption assistance without the concurrence of the adoptive parent(s) (for Title IV-E adoption assistance agreements, only).

7.306.42 Non-Title IV-E Adoption Assistance

A. Pathways to Eligibility

The following are ways to become eligible for non-Title IV-E adoption assistance:

1. The county department has guardianship of the person(s) (children/youth) with the authority to consent to adoption.
2. The county department or non-profit child placement agency has guardianship of the person (children/youth) with the right to consent to adoption, but the current caregiver has physical custody of the children/youth.
3. The child(ren)/youth is not a citizen or a qualified citizen but is being adopted by a U.S. citizen or qualified citizen.
4. A person has custody of a child/youth given by proper order of a dependency and neglect court.
5. The child/youth was not Title IV-E eligible in foster care and does not meet the Federal Applicable Child Criteria (delinking).
6. All county departments of human/social services and Title IV-E eligibility staff are required to determine children and youth eligible for Title IV-E adoption assistance, if the following applies:
 - a. The child or youth was in the custody of relatives or kin at the time of termination of parental rights in a dependency and neglect action; and/or,
 - b. The child or youth was in the care or custody of a public or licensed private non-profit child placement agency or Indian tribal organization pursuant to:
 1. An involuntary removal of the child or youth from the home in accordance with a judicial determination to the effect that continuation in the home would be contrary to the welfare of the child or youth; or,
 2. A voluntary placement agreement or voluntary relinquishment; and,

3. The termination of parental rights/relinquishment orders contain the judicial determination to the effect that the county department/Indian tribal organization has guardianship of the child or youth to consent to that child or youth's adoption; and the child or youth has been determined by the county, pursuant to section 7.306.4. a. d. to be an eligible child or youth.
- B. Foster Care Placement of a Child/Youth Under an Adoption Assistance Agreement
1. The State prescribed form must be completed to determine Title IV-E eligibility using the adoptive parent(s)' income.
 2. The child/youth, upon returning to the adoptive parent(s)' home, returns to the previous non-IV-E adoption assistance agreement.
- C. Eligibility Determination for Medicaid in Non-Title IV-E Eligible
1. Colorado children/youth who are eligible for an adoption assistance agreement, but are not Title IV-E are eligible for Medicaid in Colorado or reciprocal states, only.
 2. An adoption assistance payment is not required to extend Medicaid coverage.
 3. Medicaid eligibility may or may not be continued for non-IV-E eligible children/youth who are out of the home for more than thirty (30) calendar days.
 4. Medicaid eligibility for all children/youth receiving Medicaid shall be redetermined yearly only if the child/youth continues to be eligible for Medicaid. This can be done by completing the State prescribed form.
- D. Non-Title IV-E Adoption Assistance Payments
1. Determine and document a child's/youth's identified needs and eligibility for adoption assistance.
 2. Denial of assistance based solely on a means test of the adoptive family is not allowed and must not be substituted for the agreement.
 3. The adoption assistance agreement shall be established in accordance with the State's written policy.
 - a. County departments shall use the Colorado Adoption Assistance Negotiation Worksheet with the potential adoptive family for all adoption assistance determinations and negotiations.
 1. If adoptive parent(s) choose to refuse all adoption assistance including monthly cash assistance, Medicaid, and/or case services, they must sign the permanent refusal of adoption assistance form.
 2. If adoptive parent(s) request a Medicaid only adoption assistance agreement and/or non-recurring adoption expenses they may choose to decline completing the Adoption Assistance Negotiation Worksheet and sign the request for Medicaid only adoption assistance form. However, they still must sign an adoption assistance agreement.

- b. County departments shall adopt the policies and procedures outlined in the State of Colorado's adoption assistance policy. a copy of the written policy shall be provided to adoptive parent(s) at least 5 business days prior to a negotiation meeting.
- 4. Make a good faith effort to negotiate an adoption assistance agreement with the adoptive parent(s). The county shall base the negotiation on the current and anticipated needs of the child/youth and the circumstances of the adoptive parent(s). If the parties cannot come to an agreement, the county department shall establish the adoption assistance amount. If the family disagrees with the decision, a fair hearing can be requested.
- 5. The monthly respite care payment that is provided under the foster care program is not a benefit under the adoption assistance program.
- 6. If a child/youth with physical, mental, intellectual and developmental disabilities is receiving an allowance in addition to the foster care payment at the time the child/youth is placed for adoption, the allowance may continue under the adoption assistance program if the child/youth continues to meet the criteria outlined in "Child with Adoption assistance", Section 7.306.4.A.e.d.
- 7. County departments who pay more than the county's foster care rate or in the event that the child/youth is not in foster care, the rate that would have been paid based on the child's/youth's original or amended adoption assistance agreement shall reimburse the State for ninety percent (90%) of the payment that is over the foster care rate.
- 8. Use the State prescribed forms to document the negotiated agreement for non-Title IV-E adoption assistance and attach supporting documentation.
- 9. Complete and sign the Adoption assistance Agreement form specifying:
 - a. The dollar amount of the adoption assistance being provided, if applicable.
 - b. Duration of the agreement:
 - 1. In non-Title IV-E adoption assistance agreements, duration is decided by the State's written policy, according to the identified needs of the child/youth and family circumstances. The county department shall extend the adoption assistance agreement upon the approaching expiration date if the youth meets criteria for extension and the extension is requested by the adoptive parent(s). As defined in section 7.306.54, adoption assistance may continue to the 21st birthday. In situations where adoption assistance continues through the 21st birthday, adoption Medicaid will still continue through the end of the month of the 21st birthday.
 - 2. On a case-by-case basis, the duration of an agreement may be sooner than this time. All parties must be in agreement with the earlier termination date.
 - 3. The adoption assistance agreement must be reviewed at least every three years. The county department shall provide written notice of the upcoming review to the adoptive family.
 - a. Any new agreement must include the circumstances under which the county department may suspend subsidy payments.

- b. The agreement may be adjusted after good faith negotiation and with the written concurrence of the adoptive family. An adjustment is reviewable through the administrative law process upon the request of the family. Any party may request a review of the agreement prior to the three-year mandatory review if changes occur in the needs of the adoptive child/youth or in the circumstances of the family.
 - c. Benefits provided through the program must be continued if the adoptive parents leave the state of Colorado with the adoptive child or youth.
 - d. The services and dates that are covered by an effective adoption assistance agreement.
 - e. Any reimbursement for non-recurring adoption expenses incurred by or on behalf of the adoptive parent in connection with the adoption.
 - f. That the adoption assistance agreement must be signed and dated by all parties prior to the effective date of the agreement and before the adoption is finalized. If the county fails to completely execute the initial adoption assistance agreement prior to the effective data and prior to the finalization of the adoption, the assistance payment will become non-reimbursable by the State.
- 10. The adoption assistance agreement must be reviewed at least every three years. The county department shall provide written notice of the upcoming review to the adoptive family.
 - a. Any new agreement must include the circumstances under which the county department may suspend adoption assistance payments.
 - b. The agreement may be adjusted after good faith negotiation and with the written concurrence of the adoptive family. An adjustment is reviewable through the administrative law process upon the request of the family. Any party may request a review of the agreement prior to the three-year mandatory review if changes occur in the needs of the adoptive child or youth or in the circumstances of the family.
 - c. Benefits provided through the program must be continued if the adoptive parent(s) leaves the state of Colorado with the adopted child or youth.
- 11. The county or adoptive family may at any time negotiate changes to an existing adoption assistance agreement based on information related to the child's/youth's current and/or anticipated needs or the family's circumstances.

7.306.43 Review Of Eligibility For All Ongoing Adoption Assistance Agreements

The state department will conduct reviews of county departments' adoption assistance programs as follows:

- A. The county shall review the current adoption assistance agreement every three (3) years.

1. The county department shall initiate the written notice of the review for adoption assistance sixty (60) days prior to the three-year anniversary of the agreement.
 2. The adoptive family may request a review of the agreement prior to the three-year review if changes in the needs of the child/youth or family circumstances occur.
 3. The adoptive parents may request a review of the adoption assistance agreement if changes in the needs of the child/youth or family circumstances occur. Any changes in the agreement must be related to the original barriers identified at the time the decision was made that adoption assistance was needed or to the child's/youth's needs that are genetic in nature, regardless of whether those needs were identified prior to adoption.
- B. The county shall annually review documentation of school attendance or reasons for inability to attend. The documentation must demonstrate that each child/youth who is eligible for adoption assistance and who has attained the minimum age for compulsory school attendance is:
1. Enrolled (or in the process of enrolling) in an institution that provides elementary or secondary education, or,
 2. Instructed in elementary or secondary education at home in accordance with the homeschool statute, or,
 3. In an independent study elementary or secondary education program in accordance with statute, and which is administered by the local school, school district, or board of cooperative education (BOCES), or,
 4. Incapable of attending school on a full-time basis due to the medical condition of the child/youth. The reasons shall be supported by regularly updated information in the educational plan maintained by the school, school district, or BOCES.

7.306.44 Social Security Benefits for Children/Youth in Adoptive Placement

- A. The county department shall inform adoptive parents of the potential eligibility for social security benefits of any child/youth placed with them for adoption.
- B. In cases where the child/youth is eligible for both Supplemental Security Income (SSI) and Title IV-E adoption assistance, the prospective adoptive parents may make application for both programs and the child/youth, if eligible, may receive benefits from both programs. In considering the most appropriate choice of programs and deciding whether to make application for one or both, the prospective adoptive parents should be made aware of the differences between SSI and the adoption assistance program by the county department of human/social services.
- C. When a child/youth is receiving Supplemental Security Income prior to adoption, the adoptive parent(s) can seek a monthly adoption assistance payment from the county department of human/social services up to the foster care maintenance payment that has been paid or would have been paid if the eligible child or youth had been in foster care at the time of the eligible child or youth's adoption. In cases where the child/youth is eligible for both Supplemental Security Income (SSI) and Title IV-E adoption assistance the adoptive parent(s) cannot receive more than the maximum foster care rate. Nothing in this paragraph shall limit the county department of human/social services from providing case services when a child/youth is SSI eligible.

7.306.45 Accepting and Processing Applications for Adoption Assistance from Child Placement Agencies and Prospective Adoptive Parents Seeking a Private Adoption

- A. Colorado non-profit licensed adoption agencies can access adoption assistance if the child/youth is in their custody and meets Title IV-E eligibility, as outlined in section 7.601.7. Prospective adoptive parent(s) can also access adoption assistance in a private adoption if the child/youth is determined to be eligible for Social Security Income or is in their custody through a court order of a dependency and neglect court, such as guardianship or allocation of parental responsibilities, and meets Title IV-E eligibility as outlined in section 7.601.7. The adoption assistance application, whether being made by a licensed adoption agency or prospective adoptive parent(s), should be made in the first instance to the Colorado Division of Child Welfare.
1. Upon receipt of the complete application, the Colorado Division of Child Welfare shall determine the overall eligibility of the child/youth. If the Division of Child Welfare determines there is an eligible child/youth, within ten (10) business days the Colorado Division of Child Welfare shall request financial Title IV-E eligibility from the county department of human/social services where the prospective adoptive family resides. The county department shall send verification of that determination to the Colorado Division of Child Welfare. Such determination by the county department shall be made within ten (10) business days.
 2. Upon receipt of financial Title IV-E eligibility from the county department, the Colorado Division of Child Welfare Adoption Administrator shall provide the formal Title IV-E determination letter to the applicant within fourteen (14) business days. The Colorado Division of Child Welfare Adoption Administrator shall send the required documents to the Colorado county department of human/social services within fourteen (14) business days and the county department will start the adoption negotiation process with the prospective adoptive parents.
 3. If the child/youth is determined to be non-Title IV-E eligible, the Colorado Division of Child Welfare Adoption Administrator will provide the adoptive family and county department of human/social services a denial letter of adoption assistance. If the child/youth is determined to be non-Title IV-E eligible, the family may consult with the county department on other services for which they or the child/youth may be eligible. It is at the discretion of the Colorado county department of human/social services if they choose to provide adoption assistance as all assistance, would be solely funded by the county. The provision of medical insurance for these children/youth can only occur through commercial insurance plans solely paid through county only funds. The only path for these child(ren)/youth is that the family meets Medicaid income parameters, or the child(ren)/youth meets waiver, or children and disabilities buy-in parameters.
 4. If it is determined that the child/youth is not eligible for Title IV-E adoption assistance, the Colorado Division of Child Welfare Adoption Administrator shall inform all parties in writing the basis for the denial and their right to appeal the state's decision.
- B. If the child/youth is being placed in the state of Colorado with a prospective adoptive family working with a Colorado non-profit adoption agency, the Colorado Department of Human Services will process and approve adoption assistance funded by Colorado county departments if the child/youth meets the following criteria:
1. Have Social Security Income (SSI) eligibility; or,
 2. If the child/youth meets the Federal Applicable Child Criteria (delinking), has identified needs, and meets the requirements in the federal fiscal year in which the adoption is finalized, the child/youth will become categorically eligible for Title IV-E adoption assistance.

- C. If the child/youth is being placed out of the state of Colorado by a Colorado non-profit adoption agency, it is at the discretion of the other state to process and fund adoption assistance.
- D. After the county department approves the adoption assistance and finalization has occurred, it shall open the case on the Comprehensive Child Welfare Information System (CCWIS).
- E. Approved adoption assistance payments will begin on the date of adoption finalization. The child placement agency or the prospective adoptive parents, whichever is applicable, is responsible for any costs before the initiation of the adoption assistance agreement and prior to finalization.
- F. Adoption assistance available to the eligible child/youth are:
 - 1. Medicaid (Title XIX).
 - 2. Adoption assistance payment.
 - 3. Non-recurring adoption expenses.
 - 4. Adoption case services.
- G. Before finalization of the adoption, the child placement agency that arranged the adoption, if applicable, retains responsibility for continued services to the adoptive family should they be requested.
- H. The county department shall terminate adoption assistance payments and eligibility for Medicaid as outlined in termination of adoption assistance (section 7.306.59).

7.306.46 Reinstatement of Adoption Assistance

- A. Adoption assistance agreements may be reinstated if the services requested relate to the child's/youth's identified needs or family circumstances.
- B. When adoptive parents have relinquished, have had their parental rights terminated, or have died and the child/youth is placed in a subsequent adoptive placement, then the child/youth retains Title IV-E eligibility for adoption assistance in their new adoptive placement. The only determination that must be made for adoption assistance eligibility prior to the finalization of the subsequent adoption is whether the child/youth is a child/youth with one or more specific factors or conditions as set forth in Colorado Revised Statutes section 26-7-102(8).

7.306.47 Suspension of Adoption Assistance

- 1. The county department may suspend the payment of adoption assistance available when contact with the adoptive family cannot be established and the county department cannot establish that the adoptive parent is providing any support, which includes financial support as determined by the Title IV-E agency.
- 2. Prior to suspension, the county department shall provide notice to the adoptive parent(s) of intent to suspend adoption assistance payments at least ten days prior to suspension and shall include in the notice:
 - a. A statement of the county department's intent to suspend adoption assistance payments, as well as the reasons and legal basis for the intended suspension;

- b. A description of the adoptive parent(s)' right to request a fair hearing pursuant to 45 C.F.R. § 205.10; "(current through May 3, 2023) can be found in the Code of Federal Regulations. No later amendments or editions are incorporated. The Code of Federal Regulations are available at no cost from the U.S. Health Resources and Services Administration, Office of Communications 5600 FISHERS LANE, ROCKVILLE, MD 20857 or at <https://www.ecfr.gov/>. The regulations are also available for public inspection and copying by contacting the Colorado Department of Human Services, 1575 Sherman Street, Denver, Colorado 80203 during regular business hours."
 - c. A description of the circumstances under which adoption assistance must be continued if a hearing is requested; and
 - d. The circumstances under which a suspension may be reversed without a fair hearing.
- 3. When the adoption assistance payment is suspended, the eligible child or youth remains Title IV-E eligible, the Title IV-E agreement remains in effect, and the eligible child or youth remains eligible for, and in receipt of, medical assistance.

7.306.48 Termination of Adoption Assistance Agreement

- 1. The county department shall terminate the payment of adoption assistance available when any of the following situations occur:
 - a. The child or youth reaches eighteen (18) years of age; except that, in cases where the county department has determined that the youth meets eligibility for extension of the adoption assistance agreement which warrants continued assistance, the payment of adoption assistance shall continue until the child or youth reaches twenty-one (21) years of age;
 - b. The adoptive parent or parents are no longer legally responsible for the support of the child or youth;
 - c. The child or youth is no longer receiving support from the adoptive family, which includes financial support as determined by the Title IV-E agency, or
 - d. The county department certifies the death, marriage, or enrollment in military service of the child or youth.
- 2. Adoptive parents who receive adoption assistance shall keep the county department that is administering the program informed of circumstances that would make them ineligible to continue to receive adoption assistance.

7.306.5 INSTRUCTIONS FOR REIMBURSEMENT OF ADOPTION ASSISTANCE SERVICES

7.306.51 Medical Payments in Adoption Assistance Agreements

7.306.511 General Provisions

- A. Adoption assistance agreement payments are made directly to adoptive parents for a service already received or to a vendor for treatment of a physical or developmental disabilities or emotional disturbance. An adoption assistance agreement shall relate directly to the barrier or barriers identified at the time the initial agreement is approved, as not otherwise covered by Medicaid.

- B. Adoption assistance agreements are not available for treatment of any physical or developmental disability or emotional disturbance diagnosed after finalization of the adoption.
- C. Adoption assistance agreements may be used to supplement any other available resource such as an adoptive family's private insurance that pays part but not all for the child's treatment (physical, mental, and emotional).
- D. Adoption assistance agreements can only be used for Medicaid cases if the service requested would not be covered under the State Medicaid Plan (as evidenced by an eligibility coverage decision) and relates to the direct barrier/need identified at the time the child is placed for adoption. Please refer to C.C.R..2505-10 8.000 - 8.6000 (June 30, 2020) for more information about eligibility coverage plans. These regulations are available at no cost from the Colorado Secretary of State, 1700 Broadway, Denver, Co 80290 or at <https://www.sos.state.co.us/>. These regulations are also available for public inspection and copying at the Colorado Department of Human Services, Office of Community Partnerships, 1575 Sherman St, Denver, Co 80203, during regular business hours.

7.306.52 Reimbursable and Non-Reimbursable Adoption Assistance Case Services

Prior to the negotiation meeting, the county department shall provide the adoptive family's contact information to a representative of the Accountable Care Collaborative (ACC) and request that they contact the family within 72 business hours to discuss Medicaid covered and non-covered services. An ACC representative may be present during the negotiation meeting at the invitation of the adoptive family or the county department. The ACC representative will act as a neutral party strictly for the purposes of providing information regarding services that are covered by Medicaid.

The county department shall provide access to the Colorado Medicaid member handbook, either electronically or in hard copy. This handbook is also available at no cost from Health First Colorado, Colorado's Medicaid program, 1570 Grant Street, Denver, Co 80203 or at <https://www.healthfirstcolorado.com/benefits-services/> this handbook is available for public inspection and copying at the Colorado Department of Human Services, Office of Community Partnerships, 1575 Sherman St, Denver co 80203, during regular business hours.

Case services are a type of purchased program services that support a case plan for children/youth in out-of home placement or an adoption assistance agreement.

Case services are provided to meet a child/youth special needs identified when the child is placed for adoption and which are not covered by the adoption assistance or Medicaid. assistance agreements.

Adoptive families may request reimbursement, all or in part, for non-Medicaid covered services to support the health and well- being of an eligible child or youth, and considering the circumstances of the family as defined in C.R.S. 26-7-102(5).

Such services may be reimbursed if:

1. Documented and recommended or prescribed by a medical, dental, mental health and/or educational professional, or other qualified professional based upon education, professional experience, certification, or licensure.
2. Designed to appropriately meet the needs of the eligible child or youth that would otherwise be a barrier to adoption.

Such requested services may include but not be limited to, child care, tutoring in coordination with school services in order to achieve age appropriate grade level academic competency or therapies, such as animal-assisted therapy, or therapeutically recommended prosocial or recreational activities. Funding for such services shall be negotiated in good faith by the parties, giving consideration to the circumstances of the adoptive family pursuant to C.R.S. 26-7-102 (5). In no case will the county reimburse for such services when they are available at no cost, provided through another reasonably accessible public program or covered by the adoptive family's private insurance. provided, however, that the decision to add the child on the adoptive family's private insurance shall be at the adoptive family's sole election.

If the child/youth is placed in an adoptive home in a state other than Colorado at the time of finalization, the county department representative from Colorado will contact the family's Interstate Compact on the Placement Child (ICPC) case manager in the receiving state to gather and provide the necessary information for the adopting parents to have the opportunity to contact a Medicaid liaison in the receiving state to attend the negotiation meeting to discuss Medicaid coverage in the receiving state post-adoption; and to gather post-adoption services information provided in the receiving state.

To be eligible for case services in an adoption assistance agreement, the State prescribed form outlining the agreement must be in place and the case open in the Comprehensive Child Welfare Information system as an adoption assistance case.

7.306.53 Non-Recurring Adoption Expenses

- A. Reimbursement for the following non-recurring adoption expenses, not to exceed the federal allowed amount per child/youth, is available to parents adopting an eligible child/youth:

Reimbursement for non-recurring adoption expenses, pursuant to 42 U.S.C. 673 (a) (6) (a) includes reasonable and necessary adoption fees, court costs, attorney fees (including attorney's fees in connection with representing parents seeking adoption assistance for an eligible child/youth) and other expenses (including advocate fees in connection with representing parents seeking adoption assistance for an eligible child/youth) that are directly related to the legal adoption of an eligible child or youth. "Other Expenses" are defined as the costs of adoption incurred by or on behalf of the adoptive parents and for which they carry the ultimate liability for payment, including the adoption study, health and psychological examinations, supervision of the placement prior to adoption, transportation and the reasonable costs of lodging and food for the child or youth and/or the adoptive parents when necessary to complete the adoption process.

The federal allowed amount per child/youth is set forth under 42 U.S.C. § 673 (2019). This federal statutory provision is available at no cost from the U.S. Health & Human Services, Administration for Children & Families 330 C Street, S.W., Washington, D.C. 20201 or at <https://www.acf.hhs.gov/cb>. This federal statutory provision is also available for public inspection and copying at the Colorado Department of Human Services, Office of Community Partnerships, 1575 Sherman St, Denver, Co 80203, during regular business hours.

7.306.54 Continuing Adoption Assistance Agreements Beyond Eighteen Years Of Age

County Departments of Human/Social Services may claim title IV-E funds for youth 18 years of age through the month of the twenty first birthday when one of the following criteria is met:

- A. The county shall document in the record that the youth is enrolled full-time in high school or vocational training and is making progress in the program; or completing secondary education or is enrolled in a program leading to an equivalent credential.
- B. Enrolled in an institution that provides postsecondary or vocational education.

- C. A youth who is identified in the original adoption assistance agreement has an intellectual and or developmental disability or a physically handicap, is between the age of 18-21, and continues to live at home, may continue to be eligible for the adoption assistance program as long as these disabilities were identified and documented in the original agreement paperwork or is genetic in nature.
- D. Participating in a program or activity designed to promote or remove barriers to employment; or
- E. Employed for at least eighty hours per month

7.306.55 Post Adoption Services

The county that signed the initial adoption assistance agreement is responsible for maintaining or renegotiating the agreement post adoption subject to the agreement being terminated pursuant to C.R.S. section 26-7-109. The county of residence of the adoptive parents following the adoption will not be responsible for the renegotiation of such agreement.

If an adoptive family wishes to renegotiate an existing agreement, they must contact the county that provided the initial adoption assistance, regardless of the county, state or country of residence. Any renegotiation of services and benefits can be requested at any time by the adoptive family and will be based upon the needs of the eligible child/youth and the circumstances of the adoptive family.

If additional support is needed, the family may seek services from the county of residence. The county of residence, in consultation with the county that signed the initial adoption assistance agreement, shall make reasonable efforts to locate and connect the adoptive family with appropriate and accessible service providers.

7.306.56 Adoption Records

- A. The county department shall maintain a record for the child/youth in its custody who is approved for adoptive placement. It shall ensure that all documentation related to the child/youth's adoption is in the record. The following must be included, but is not limited to:
 - 1. Court order issued at the time of initial removal;
 - 2. Voluntary placement agreement, if applicable;
 - 3. order for termination of parental rights or order for relinquishment of parental rights;
 - 4. Child/youth and family study;
 - 5. Adoptive family's application;
 - 6. Adoptive family's home study and any updates, as necessary;
 - 7. Documentation of the child/youth's special needs (7.306.4, A, 3, D, 1-5).
 - 8. Documentation of child/youth's tribal affiliation, if applicable;
 - 9. Time and date-stamped petition for adoption;
 - 10. Final decree of adoption.
- B. Upon completion of legal adoption, the county department shall close the case in the CCWIS system within 30 calendar days, unless the child receives adoption assistance.

- C. Within 90 calendar days of the date of finalization of the adoption, the county will send to state basic data on the family and children/youth for entry in the statewide database using the state's approved form. This information shall be supported and reflect what is in the CCWIS system.
- D. In adoption assistance cases, the county department shall maintain a separate record to include the following items, as long as the adoption assistance agreement is in effect for the child/youth and family. Upon termination of this adoption assistance agreement, the record shall be closed immediately.
 - 1. Current adoptive home study and any necessary updates;
 - 2. Child/youth's summary and application for adoption assistance;
 - 3. Initial adoption assistance agreement;
 - 4. Court order issued at time of initial removal;
 - 5. Voluntary placement agreement, if applicable;
 - 6. Subsequent order on review for need of placement, if applicable;
 - 7. Review of adoption assistance agreement and three year reviews of need for adoption assistance or any amendments of the original adoption assistance agreement;
 - 8. Adoption assistance title iv-e eligibility determination form;
 - 9. Title IV-E foster care eligibility determination form;
 - 10. Title IV-E redetermination of eligibility determination form(s);
 - 11. A copy of the social security income eligibility notification;
 - 12. Petition to adopt time and date-stamped by the court;
 - 13. Final adoption decree;
 - 14. Orders terminating parental rights;
 - 15. Appeal petition of the termination and final order resolving appeal of the termination;
 - 16. Indian Child Welfare cases, if known tribal affiliation;
 - 17. Documentation of the child/youth's special needs (7.306.4, A, 3, D, 1-5);
 - 18. Motion to court to expedite the date of the final hearing, if applicable.
- E. County departments providing adoption assistance to children/youth from private non-profit adoption agencies or relatives shall maintain, in a secure location at the county, the records containing the adoption assistance information listed in subsection D, above.
- F. County departments providing a subsequent adoption assistance agreement to children/youth whose previous adoption was dissolved shall maintain, in a secure location at the county department, the records containing the adoption assistance information listed in subsection d, above. additional required information includes:

1. New documentation assessing and identifying the child/youth's continuing special needs; and,
 2. All of the adoption assistance forms and documentation from the previous adoptive family.
- G. County departments providing an adoption assistance agreement to children/youth who were in foster care with the teen parent/s, shall maintain, in a secure location at the county department, their records containing the adoption assistance information listed in subsection D, above.

Additional required information must include proof of foster care payment made that includes both the child/youth and his/her teen parent.

7.306.57 state monitoring/sanction process of adoption assistance programs in counties

The state department will conduct reviews of county departments' adoption assistance programs as follows:

- A. The state will randomly select cases from the county's adoption assistance caseload.
- B. The passing threshold will be issued in a memo to county departments and updated at least every three years by the state department. Each county will be given three opportunities to pass the review before a fiscal sanction is established.
 1. Counties passing the initial review will be reviewed again in three years.
 2. If the county fails the initial review, a second review will be conducted in the following year.
 3. If the county fails the second review, a third review will be conducted in the following year.
- C. At each review, the county will be given an opportunity to provide information to the state department that will enable the case that is out of compliance to pass the review.
- D. At each review, the state department will offer the county failing the review technical assistance based on issues identified during the review and will require it to develop a program improvement plan.
- E. If the county fails all three reviews, the reviewed cases that are out of compliance, as determined by the memo regarding the monitoring tool, may be converted to county-only funding from the time of the third review and throughout the duration of the adoption assistance agreement.

7.306.6 RIGHT TO APPEAL

- A. When the county department or state department denies an application for adoption assistance, or reduces, suspends or terminates the assistance agreement, the applicant or recipient shall have a right to appeal. For purpose of an appeal arising from the state or county's denial of an application for adoption assistance reduction, suspension or termination of an adoption assistance agreement only, the procedures for appeal and state level fair hearing and that are set forth in 9 CCR 2503-8 § 3.850 shall be followed.

- B. When a family who has been denied Title IV-E Subsidized Adoption benefits requests a state level Fair Hearing, it is the responsibility of the Administrative Law Judge to determine whether the applicant or recipient was wrongly denied eligibility or whether the amount of the assistance was determined correctly. (See Section 7.306.41, E, for fair hearing circumstances.)
- C. The adoptive parents have the burden of proving extenuating circumstances and adoption assistance eligibility at a state level fair hearing. The state, county departments and or/its designee can provide factual information to assist the family in establishing eligibility for Title IV-E adoption assistance.
- D. When either state or federal law requires or results in a reduction or deletion of services, a hearing need not be granted.

7.307 INTERSTATE COMPACT ON THE PLACEMENT OF CHILDREN (ICPC)

The purpose of the Interstate Compact on the Placement of Children is to ensure timely placements of children across state lines in the least restrictive and appropriate settings in the 50 states, District of Columbia, and the U.S. Virgin Islands. The sending and receiving state authorities shall have sufficient background information to make informed decisions concerning a proposed placement, to arrange for the provision of services to the child as needed, and to designate where planning, financial, and jurisdictional responsibility for the child lies.

7.307.1 USE AND OBSERVANCE OF THE COMPACT [Rev. eff. 4/1/12]

County departments, other Colorado licensed placement agencies, and when applicable, individual residents, shall follow all rules, regulations, and procedures of the Interstate Compact on the Placement of Children, as stated in Section 24-60-1801, 1802, C.R.S., and Section 19-1-115, C.R.S. Regulations I through XI are on file at the Colorado Department of Human Services, Interstate Compact Office, Child Welfare, 2nd Floor, 1575 Sherman Street, Denver, Colorado 80203-1714. Regulation I was amended on April 18, 2010. Regulation II was amended on April 30-May 1, 2011. Regulation III was amended on April 30-May 1, 2011. Regulation IV was amended on April 29-May 2, 2001. Regulation V was amended in April 2002. Regulation VI was amended on April 29-May 2, 2001. Regulation VII was amended on April 30-May 1, 2011. Regulation VIII was amended on April 30-May 3, 2000. Regulation IX was amended in April 2002. Regulation X was amended in April 2002. Regulation XI was adopted on April 18, 2010. These regulations are adopted pursuant to Article VII of the Interstate Compact on the Placement of Children by action of the Association of Administrators of the Interstate Compact on the Placement of Children at its annual meeting. The information incorporated here by reference may be examined at the Department of Human Services as indicated above, at any county department of social services, or at any state publications depository library.

7.307.2 DEFINITION OF “SENDING AGENCIES”

The Interstate Compact defines the persons and agencies who, when they place a child from one state into another state, shall follow Interstate Compact on the Placement of Children procedures. These persons and agencies are all called “sending agencies,” and include the following:

- A. A state in the United States, the District of Columbia or the U.S. Virgin Islands, or any officer or employee of a state in the United States, the District of Columbia, or the U.S. Virgin Islands.
- B. A subdivision of a state in the United States, the District of Columbia or the U.S. Virgin Islands, or any officer or employee of the subdivision.
- C. A court of a state in the United States, the District of Columbia, or the U.S. Virgin Islands.

- D. Any person, corporation, association, or charitable agency of a state in the United States, the District of Columbia, or the U.S. Virgin Islands.

7.307.3 AGENCY-MADE PLACEMENTS

7.307.31 Interstate Compact on the Placement of Children Initiation Procedures

Compact procedures shall be initiated for children who are considered for placement out-of-state for:

- A. Adoption; or
- B. Homes of parents or relatives; or
- C. Foster, group, or residential child care; and
- D. Where the sending agency, such as a county department or the Court, holds legal custody or legal jurisdiction.

7.307.32 Interstate Compact on the Placement of Children Procedures

The county department director shall be the Compact Liaison in each Colorado county. At each director's discretion, duties of the Liaison may be delegated to staff within the county department. It is recommended that the designated liaison be at the Child Welfare Supervisor level or above. The director shall notify, in writing, the Deputy Compact Administrator of the name, title, and phone number of this designee who shall perform the day-to-day functions of the Interstate Compact on the Placement of Children Liaison and be available for Colorado and other state Interstate Compact on the Placement of Children offices to contact for assistance with Compact related situations in that county.

Interstate Compact on the Placement of Children procedures shall be followed when a child is:

- A. In the custody of a county department or under the jurisdiction of a court in one state and is considered for placement with his or her parents, relatives, non-relatives, foster parents, adoptive parents, or into residential or group care in another state.
- B. Under the jurisdiction of a county department, court, or private placement agency moves with his or her parents, relatives, foster parents, or prospective adoptive parents out-of-state.
- C. An adjudicated delinquent ordered by the court into a non-public institution out-of-state.
- D. An adjudicated delinquent who is not on probation or parole and is considered for placement with parents, relatives, foster parents, or prospective adoptive parents out-of-state.
- E. To be placed for adoption out-of-state.
- F. In the custody of a county department or under the protection of the court and has fled out-of-state and the local departments in both the sending and receiving states agree it may be in the child's best interest to remain in the site the child has chosen, pending the outcome of the home study.
- G. In the custody of a county department or under court jurisdiction and has been taken out of state or been coerced to leave the state without the court's consent; however, before ordering the child's return, the court agrees to a home study being done to determine the status of the child's living arrangement out of state to determine if the child should be permitted to stay there.

- H. In runaway status from another state and is taken into protective custody by a county department that subsequently learns that neither the parents nor any known relatives will grant the child access to their homes. In this situation, the county department shall file a Dependency and Neglect Petition on behalf of the child to enable the department to explore other relative placement possibilities out of state.

7.307.4 DIRECT PLACEMENTS OUT OF STATE BY PARENTS OR NON-AGENCY GUARDIANS

- A. Interstate Compact on the Placement of Children procedures shall be initiated for children who are being considered for placement out of state by parents, guardians, or relatives, into facilities not designated as medical or educational in nature when a child is considered for placement
 - 1. Out of state with a person other than a parent, step- parent, adult brother or sister, adult aunt or uncle, or grandparent.
 - 2. Out of state into a foster home, adoptive home, group home, residential facility or non-public institutional setting.
 - 3. With an out of state non-relative or non-agency guardian.
- B. The parent or guardian shall contact the local Colorado county department or the Colorado Interstate Compact on the Placement of Children state office to request information and to be provided with copies of the Interstate Compact on the Placement of Children Request to Place Child (100-A). The parent or non-agency guardian is considered to be the “sending agency” in this situation. The parent or guardian will forward the Interstate Compact on the Placement of Children request to the Colorado state Interstate Compact on the Placement of Children office which will forward the documents to the receiving state Interstate Compact on the Placement of Children office.

7.307.5 REQUIREMENTS

7.307.51 Requirements When Colorado is the Sending State [Emer. Rule eff. 10/1/06; Perm. Rule eff. 12/1/2006]

The county department must determine, within fourteen (14) calendar days upon receipt of the home study report conducted by the receiving state, whether the placement is appropriate for the child.

The county department or licensed child placement agency holding legal custody or maintaining court-ordered protective supervision and considering placement of a dependent child into any site out-of-state shall:

- A. Submit information required by the state.
- B. Send a referral packet to the Deputy Compact Administrator in the receiving state and enter information from Forms 100-A and 100-B in the Child Welfare Automated Tracking System (see Section 7.307.7 on “Reporting requirements”).
- C. Complete and submit the Change of Status Form (100-B) to the receiving state.
- D. Not be a party to sending or allowing a child to be taken across the state line without the “prior permission” of the receiving state Interstate Compact on the Placement of Children Administrator or his or her designated staff. Prior permission is defined as either permission or denial being granted on the 100-A or on a facsimile of the 100-A.

- E. Continue to have financial responsibility for the support and maintenance of the child during the out-of-state placement unless the placement is with a parent or a care-provider who assumes financial responsibility for the child.
- F. Be financially responsible for the return of the child if the placement disrupts and the decision is made to return the child.
- G. Send quarterly progress report form to the out-of-state foster care provider on the state designated form.
- H. Retain legal custody or the child remains under the court's jurisdiction; and,
- I. Not agree to dismissal of the Petition or termination of local court jurisdiction without one of the following four conditions being met:
 - 1. The child has been adopted.
 - 2. The child has become self supporting or legally emancipated.
 - 3. The child is 18 or older.
 - 4. A minimum six month period of supervision has elapsed from date of Interstate Compact on the Placement of Children approval and the receiving state Interstate Compact on the Placement of Children Administrator or his/her designee has granted permission for dismissal of the Petition or termination of court jurisdiction.

7.307.52 Requirements When Colorado is the Receiving State [Rev. eff. 4/1/12]

When Colorado is the receiving state of an Interstate Compact on the Placement of Children Request for Placement, all such requests shall be sent by the sending state directly to the correct county department or to the Colorado Deputy Compact Administrator who shall forward the request packet to the correct county department or licensed Child Placement Agency.

- A. Upon receipt, the county department Interstate Compact on the Placement of Children liaison or designee shall review the request for compliance with the Compact and all relevant Colorado and federal laws, and take appropriate action.
- B. The county department staff or licensed Child Placement Agency staff assigned to the Interstate Compact on the Placement of Children cases shall:
 - 1. Complete a home study within sixty (60) calendar days of receipt of the request from the sending state.
 - 2. Provide protective services and supervision of the placement according to the treatment plan and case plan set up by the county department or court in the sending state.
 - 3. Provide written progress reports as required.
 - 4. Make determinations and recommendations to the sending agency for dismissal or continuation of the legal custody and jurisdiction in the sending state.
 - 5. Provide services, including protective services, to families and children covered by the Interstate Compact on the Placement of Children and other approved Interstate or inter-country placements as are provided to other similar placement cases that are the responsibility of a county department.

- C. These cases shall be subject to the same contact requirements as other Program Area 4, 5 or 6 cases. If circumstances prohibit such contact, the county department shall document exceptions to the minimum requirements on the alternative agency contact agreement with a signature of approval from the county department administrator or county director. Case contacts shall be documented in the State Department's automated system.
- D. Requests for placement received from other states shall be opened as Program Area 6 in the State Department's automated system.
- E. The receiving state (Colorado) may close its Interstate Compact on the Placement of Children case when one of the following conditions have been met:
 - 1. The child has been adopted.
 - 2. The child has become self supporting or legally emancipated.
 - 3. The child has become eighteen (18) years of age.
 - 4. The Colorado county liaison or state Interstate Compact on the Placement of Children Administrator has granted permission for dismissal of the petition or termination of court jurisdiction.

7.307.6 INTERSTATE COMPACT ON THE PLACEMENT OF CHILDREN (ICPC) EXPEDITED PLACEMENT DECISION [Rev. eff. 10/1/13]

To fulfill its obligations under Interstate Compact on the Placement of Children, interstate cases must be processed in a time frame and manner comparable to intrastate cases and intrastate hardship cases.

The expedited placement is designed to eliminate delays in the placement of children in appropriate family homes across state lines.

- A. All cases of expedited placement decision require an expedited placement decision court order.
- B. In addition, an expedited placement decision can only be made when the placement of the child is with a parent, step-parent, adult brother or sister, adult uncle or aunt, grandparent, or his/her guardian.

7.307.61 Definition of an Expedited Placement Decision [Eff. 10/1/13]

"Expedited placement decision" means an approval or denial of a placement resource made by the receiving state within twenty (20) business days after receipt of a complete request from the sending state.

7.307.62 Sending State Expedited Placement Decision Court Order Findings [Rev. eff. 10/1/13]

- A. A valid expedited placement decision court order from the sending state shall contain an express finding that one or more of the following circumstances applies to a particular case and sets forth the facts on which the court bases its finding:

The proposed placement resource is a relative as specified in 7.307.6, B, and either:

- 1. The child is four (4) years old or younger and his/her sibling(s) if being placed in the same home; or,

2. The child is in an emergency placement, or,
 3. The court finds that the child or any child in the sibling group has a substantial relationship with the proposed placement resource.
- B. In cases where the sending state court is not itself the sending agency, it is the responsibility of the sending agency to keep the court, which issued the priority order, informed of the status of the priority request.

7.307.63 County Department Processing of Sending State Expedited Placement Request
[Eff. 10/1/13]

The county staff shall obtain a copy of the sending state's court order of expedited placement decision. County staff will ensure that the order sets forth the factual basis for a finding that an expedited placement decision applies to the child in question, whether the request includes a request for a provisional approval of the prospective placement and a factual basis for the request.

The county department shall also obtain a signed written statement by the assigned case manager in the sending state that affirms the following conditions are met:

- A. The child must be placed with a parent, step-parent, adult (as defined by the laws of the receiving state) brother or sister, adult uncle or aunt, grandparent, or his/her guardian.
- B. The relative or guardian is interested in being a placement resource and willing to cooperate with the ICPC process.
- C. The name and correct address, all available telephone numbers, other contact information of the placement resource, and the date of birth and Social Security Numbers of all adults in the home.
- D. Number and type of rooms in the residence of the placement resource to accommodate the child under consideration and the number of people, including children, who will be residing in the home.
- E. Proof of sufficient financial resources or explanation for how children will be fed, clothed and cared for.
- F. Acknowledgement that a criminal records and child abuse history check will be completed on any persons eighteen (18) years of age and older residing in the home.
- G. Based upon current information known to the sending agency, it is unaware of any fact that would prohibit the child being placed with the placement resource and that it has completed and is prepared to send all required paperwork to the sending state ICPC office.

7.307.64 Expedited Placement Decision Requirements When Colorado is the Sending State
[Rev. eff. 10/1/13]

- A. The county department holding legal custody and considering placement of a dependent child into any site out-of-state shall complete an Interstate Compact on the Placement of Children request as outlined in Section 7.307.51 of these rules. The Interstate Compact on the Placement of Children referral packet shall include a valid expedited placement decision court order.
- B. There are specific time frames in processing expedited placement decision requests.

1. Time periods in these procedures may be modified with a written agreement between the court which made the expedited order, the sending agency, the Colorado Interstate Compact on the Placement of Children county liaison and the receiving state Compact Administrator. Any such modifications shall apply only to the single case to which it is addressed.
2. The court sends a copy of its signed order for expedited placement decision to the sending agency within two (2) business days of the hearing or consideration of the request.
3. Within three (3) business days of receipt of the expedited placement decision court order, the county caseworker shall transmit the signed court order, completed forms, and supporting documentation to the Interstate Compact on the Placement of Children county liaison.
4. Within two (2) business days after receipt of the expedited placement decision request, the Interstate Compact on the Placement of Children county liaison shall transmit the complete expedited placement decision request and its accompanying documentation by overnight mailing to the receiving state Compact Administrator together with a notice form that the request is entitled to expedited processing.

7.307.65 Expedited Placement Decision Requirements When Colorado is the Receiving State [Rev. eff. 10/1/13]

- A. Within two (2) business days after receipt of a complete expedited placement decision referral packet from the sending state, the Interstate Compact on the Placement of Children county liaison shall forward the referral to the county caseworker.
- B. Within fifteen (15) business days, the county caseworker shall forward the completed home study to the Interstate Compact on the Placement of Children county liaison.
- C. Within three (3) business days after receipt of the home study, the Interstate Compact on the Placement of Children (ICPC) county liaison shall approve or deny the placement and provide the home study report to the sending state by expedited transmission.
- D. A county department is authorized to consent to the sending state's request to relinquish jurisdiction if the placement is approved with a parent from whom the child was not removed.

7.307.7 REPORTING

All cases provided Interstate Compact on the Placement of Children services shall be opened by the Colorado county departments on the Department's automated reporting system.

7.307.8 OTHER TYPES OF PLACEMENTS - CHILD MOVING OUT-OF-STATE WITH FOSTER PARENTS

When it is decided that a child should accompany his/her foster parents who are relocating out-of-state, the county department shall initiate Interstate Compact on the Placement of Children procedures to secure prior approval, whenever possible, for the placement from the receiving state.

7.307.9 EXCLUSION

Native American children placed by tribal authorities may be excluded or placed through Interstate Compact on the Placement of Children procedures at the choice of the tribal court.

7.308 RELINQUISHMENT COUNSELING SERVICES

If the child meets the target group requirements of Program Area 4, 5, or 6, county departments shall assure that relinquishment counseling services are provided:

- A. To parents considering relinquishment.
- B. To the child when twelve years of age or older, if appropriate.
- C. When court-ordered.

7.308.1 COUNSELING AND REFERRAL ACTIVITIES

The county department shall assure that:

- A. Relinquishment counseling, referral services, and legal activities are provided in accordance with Section 19-5-103, C.R.S.
- B. If the child is an eligible Native American child, the parents are informed of the provisions of the Indian Child Welfare Act, or any tribal-state agreement with their tribe, and the requirements for notifying tribal authorities.

7.308.2 COURT ACTIVITIES

The county department shall assure that an affidavit is prepared and submitted to the court that includes the elements described in Section 19-5-103(1)(b)(II), C.R.S.

7.308.3 CONTACTS, RECORDS, AND DOCUMENTS

The county department shall maintain a case file which includes court documents. The county department shall maintain the closed adoption records in a secure location at the county. See Adoption Records, Section 7.306.34.

7.308.4 CONFIDENTIALITY OF CONTACTS AND RECORDS

The county department shall respect the confidential nature of the counseling and maintain confidentiality of all records and papers with respect to the relinquishment following the filing of a Petition for Relinquishment in that such records and papers are open to inspection only upon order of the court. The record shall show the parent's preference about future communications from the child.

7.309 INDIAN CHILD WELFARE ACT (ICWA) OF 1978

The Indian Child Welfare Act (ICWA) of 1978 is federal legislation that establishes standards for the placement of Indian children in foster care or adoptive homes. Regulations effective on December 12, 2016 were created for the substantive legal requirements of ICWA and updated federal guidelines were also adopted at that time to clarify best practices in implementing ICWA and its regulations. All rights and privileges afforded to parents and children in any other section of this manual are applicable to rights and privileges for Indian parent(s), Indian custodian(s), and children under jurisdiction of county departments. Indian Tribes are not subject to rules related to ICWA as they have Tribal sovereignty.

7.309.1 DEFINITIONS

- A. Active Efforts - Affirmative, active, thorough, and timely efforts intended primarily to maintain or reunite an Indian child with his or her family. Active efforts shall involve assisting the parent(s) or Indian custodian(s) through the steps of a case plan and accessing or developing the resources necessary to satisfy the case plan to the maximum extent possible. Active efforts should be provided in a manner consistent with the prevailing social and cultural conditions of the Indian child's Tribe and should be conducted in partnership with the Indian child and the Indian child's parent(s), extended family members, Indian custodian and Tribe. Active efforts may include:
1. Conducting a comprehensive assessment of the circumstances of the Indian child's family, with a focus on safe reunification as the most desirable goal;
 2. Identifying appropriate cultural services and helping the parent(s) to overcome barriers, including actively assisting the parent(s) in obtaining such services;
 3. Identifying, notifying, and inviting representatives of the Indian child's Tribe to participate in providing support and services to the Indian child's family and in family meetings, permanency planning and resolution of placement issues;
 4. Conducting a diligent search or intensive family finding for the Indian child's extended family members, and contacting and consulting with extended family members to provide family structure and support for the Indian child and the Indian child's parent(s);
 5. Offering and employing all available and culturally appropriate family preservation strategies and facilitating the use of remedial and rehabilitative services provided by the child's Tribe;
 6. Taking steps to keep siblings together whenever possible;
 7. Supporting regular visits with parent(s) or Indian custodian(s) in the most natural setting possible as well as trial home visits of the Indian child during any period of removal, consistent with the need to ensure the health, safety, and welfare of the child;
 8. Identifying community resources including housing, financial, transportation, mental health, substance abuse, and peer support services and actively assisting the Indian child's parent(s) or, when appropriate, the child's family in utilizing and accessing those resources;
 9. Monitoring progress and participation in services;
 10. Considering alternative ways to address the needs of the Indian child's parent(s) and, where appropriate, the family, if the optimum services do not exist or are not available; and,
 11. Providing post-reunification services and monitoring.
- B. Child Custody Proceedings - Any action other than an emergency proceeding that may culminate into one of the following outcomes: foster care placement, termination of parental rights, pre-adoptive placement, or adoptive placement.
- C. Continued Custody – Physical or legal custody that the parent(s) or Indian custodian(s) has or had at any point in the past and may be applicable by Tribal law or custom.

- D. Domicile – For a parent(s) or Indian custodian(s), the place at which a person has been physically present and that the person regards as home; a person's fixed principal and permanent home, to which that person intends to return and remain indefinitely even though the person may be currently residing elsewhere.
- E. Emergency Placement - Child(ren) must be in imminent danger of moderate to severe physical damage or harm with clear and convincing evidence available to be presented before the court . Emergency placement may not last longer than thirty (30) days.
- F. Emergency Proceeding- Includes any court action that involves an emergency removal or emergency placement of an Indian child.
- G. Existing Indian Exception – repealed.
- H. Indian Custodian(s) - Any Indian who has legal custody of an Indian child under Tribal law, custom, or by state law, including those situations when the parent(s) has transferred temporary physical care, custody, and control to another individual.
- I. Indian Foster Home – A foster home in which one or more of the foster parent(s) is a member/citizen of a federally recognized Indian Tribe, or who is an Alaska native and a member of a regional corporation.
- J. Involuntary Proceeding – A child custody proceeding in which the parent does not consent of his or her free will to the foster care, pre-adoptive, or adoptive placement or termination of parental rights. This includes parental consent under threat of removal by a court or county department.
- K. Indian Tribe - Any Indian Tribe, band, nation, or other organized group federally recognized as eligible for the services provided to Indians including Alaskan native villages.
- L. Qualified Expert Witness - An individual who is qualified to testify regarding whether the child's continued custody by the parent(s) or Indian custodian(s) is likely to result in serious emotional or physical harm to the child and is qualified to testify as to prevailing social and cultural standards of the Indian child's Tribe. A person may be designated by the Indian child's Tribe as being qualified to testify to the prevailing social and cultural standards of the Indian child's Tribe. The court or any party may request the assistance of the Indian child's Tribe or the Bureau of Indian Affairs (BIA) in locating persons qualified to serve as expert witnesses. The case worker regularly assigned to the Indian child may not serve as a qualified expert witness in child-custody proceedings concerning the child.
- M. Tribal Court - A court with jurisdiction over child custody proceedings and which is either a court of Indian offenses, a court established and operated under the code or custom of an Indian Tribe, or any other administrative body of a Tribe which is vested with authority over child custody proceedings.
- N. Tribal Sovereignty – Refers to Tribe's rights to govern themselves, define their own membership, manage Tribal property, and regulate Tribal business and domestic relations; it further recognizes the existence of a government-to-government relationship between such Tribes and the federal government.
- O. Status Offense - An offense that would not be considered criminal if committed by an adult, and are prohibited only because of a person's status as a minor, such as truancy. If an Indian child is being removed because he or she committed a status offense, then ICWA applies.

7.309.2 DETERMINATION OF ELIGIBILITY - INDIAN CHILD WELFARE ACT

Indian children served under the ICWA shall meet the following criteria for eligibility:

- A. The Indian child must be:
 - 1. unmarried;
 - 2. under eighteen (18) years of age; and either,
 - 3. a member or citizen of an Indian Tribe; or,
 - 4. eligible for membership or citizenship in an Indian Tribe and the biological child of a member/citizen of an Indian Tribe.
- B. If the child-custody proceeding extends beyond an Indian child's eighteenth (18th) birthday, ICWA continues to apply.

7.309.3 NOTIFICATION PROCEDURES - INDIAN CHILD WELFARE ACT

7.309.31 Notification Requirements - Indian Child Welfare Act

- A. The county department shall notify the parent(s), Indian custodian(s) and any potential Tribe or Tribal court of jurisdiction that an Indian child is in need of placement or if a petition for termination of the parent-child legal relationship has been filed with the court, when the parties have reason to know that an Indian child is involved, except in an emergency placement. The county department shall ask each participant in the case if they know or have reason to know that a child is an Indian child in any of the following:
 - 1. Any involuntary placement of a Indian child; or
 - 2. Any voluntary placement of any Indian child for foster care or petition for relinquishment as provided in the Tribal-State agreement under ICWA.
- B. Notice is necessary to ensure that parent(s), Indian custodian(s), and Tribes have the opportunity to participate in the proceeding. Notice shall be sent by registered or certified mail with return receipt requested, of the pending child-custody proceeding and their right to intervene. The following information shall be provided as part of this notice:
 - 1. Identifying information for the child, including name, birthdate and birthplace;
 - 2. Parent(s)' names, including any known maiden or former names or aliases, birthplaces and birthdates and Tribal enrollment numbers or as much information as known;
 - 3. If known, the names, birthdates, birthplaces and Tribal enrollment information of other direct lineal ancestors of the child, such as grandparent(s);
 - 4. The name of each Indian Tribe in which the child is a member/citizen or may be eligible for membership/citizenship if a biological parent is a member/citizen;
 - 5. A copy of the petition initiating the child-custody proceeding and a description of the potential legal consequences of the proceeding and if a hearing has been scheduled, information on the date, time and location of the hearing;
 - 6. The name of the petitioner and the names and addresses of the petitioner's attorney;

7. Rights of any parent or Indian custodian(s) of the child to intervene in the proceedings;
 8. The Indian Tribe's right to intervene at any time in a state-court proceeding for the foster care placement of or termination of parental rights to an Indian child;
 9. The rights that if the child's parent(s) or Indian custodian(s) is unable to afford counsel based on determination of indigency by the court, the parent(s) or Indian custodian(s) has the right to court-appointed counsel;
 10. The right to be granted, upon request, up to twenty (20) additional days to prepare for the child-custody proceedings;
 11. The right of the parent(s) or Indian custodian(s) and the Indian child's Tribe to petition the court for transfer of the foster care placement or termination of the parental rights proceeding to the Tribal court;
 12. The mailing addresses and telephone numbers of the court and information related to all parties; and
 13. The potential legal consequences of the child custody proceedings on the future parental and custodial right.
- C. Copies of these notices shall be sent to each of the following:
1. The Tribe where the child may be a member/citizen, or eligible for membership/citizenship; and
 2. The child's parent(s) and if applicable the child's Indian custodian(s).
- D. If the identity or location of the child's parent(s), the child's Indian custodian(s), or the Tribes in which the Indian child is a member/citizen or eligible for membership/citizenship cannot be ascertained, but there is reason to know the child is an Indian child, notices of the child custody proceeding shall be sent to the Bureau of Indian Affairs (BIA) regional director to establish Tribal identity.
- E. Notice for the Colorado regional director shall be sent to the following address:
- Albuquerque Regional Director
Bureau of Indian Affairs
1001 Indian School Road, NW
Albuquerque, NM 87104
- F. The BIA will not make a determination of Tribal membership/citizenship but may, in some instances, be able to identify Tribes to contact.
- G. Notice may also be sent via personal service or electronically, but such alternative methods do not replace the requirement for notice to be sent by registered or certified mail with return receipt requested.
- H. The county department shall exercise due diligence to:
1. Identify the Tribe;
 2. Work with the Tribe to verify whether the child is a citizen/member or their biological parent is a citizen/member and the child is eligible for citizenship/membership; and,

3. Treat the child as an Indian child, unless and until the court determines that the child is not an Indian child.

7.309.32 Initial Notification - Involuntary Placements - Indian Child Welfare Act

- A. The county department shall give notice in involuntary placements by telephone or via email within 48 hours, followed by registered or certified mail with return receipt requested, to the parent(s), Indian Custodian(s), if applicable, and the child's Tribe.
- B. The county department shall observe the following timelines (except for emergency placements) before a judicial request for placement can be made. The county department shall wait at least 10 working days after receiving the return receipt of notice before proceeding with a judicial request when the notice has been sent to:
 1. The parent(s) or Indian Custodian(s). If the parent(s) or Indian Custodian(s) requests time to prepare for the proceeding, the county department shall petition the court to set the hearing no earlier than 30 calendar days after receipt of notice.
 2. The Tribe. If the Tribe requests time to prepare for the proceeding, the county department shall petition the court to set the hearing no earlier than 30 calendar days after receipt of notice.

7.309.33 Initial Notification - Voluntary Placements - Indian Child Welfare Act

- A. The county department shall give notice to the Tribe, when a placement is voluntary or a relinquishment is contemplated, in the same manner as noted immediately above, or according to the Tribal-State Agreement if the child is a member/citizen of the Ute Mountain Ute or enrolled or eligible for enrollment in the Southern Ute Indian Tribe.
- B. The county department shall file a Petition for the Review of Need of Placement by the 90th day of out of-home care as outlined in Court Related Procedures, Section 7.304.53.
- C. The county department shall follow step B. outlined in Section "Initial Notification-Involuntary Placements" when the child is placed due to a voluntary relinquishment.

7.309.34 EMERGENCY PROCEEDINGS – INDIAN CHILD WELFARE ACT

- A. Emergency proceedings can only be used if it is necessary to prevent imminent danger of physical harm to the child. The county department shall petition the court to terminate the emergency proceeding immediately when the removal or placement is no longer necessary to prevent imminent danger of harm to the child. An emergency proceeding can be terminated by one or more of the following actions:
 1. Returning the child to the parent(s) or Indian custodian(s);
 2. Transfer of the child to the jurisdiction of the appropriate Indian Tribe; or,
 3. Initiation of a child-custody proceeding subject to the provisions of ICWA.
- B. Active efforts shall be applied in emergency placements when possible.
- C. Emergency placements regarding an Indian child shall not be continued for more than 30 days unless the court makes one of the following determinations:

1. Returning the child to the parent(s) or Indian custodian(s) would subject the child to imminent physical harm;
2. The court has been unable to transfer the proceeding to the jurisdiction of the appropriate Indian Tribe; or,
3. It has not been possible to initiate a child custody proceeding.

7.309.4 TRANSFER OF JURISDICTION FROM STATE COURT TO TRIBAL COURT

- A. Upon the Tribe's petition for transfer of jurisdiction, the county department shall carry out the transfer to the Tribe within five (5) working days, unless either parent or the Indian Custodian(s) objects to a transfer; where the Tribal court declines the transfer; or the court determines there is good cause not to transfer jurisdiction. A county department shall not request a good cause determination based on the following:
 1. The child custody proceeding is in the advanced stages, if the parent(s), Indian custodian(s), or Indian child's Tribe did not receive notice of the proceeding until an advance stage;
 2. Prior proceedings involving the child for which no petition to transfer was filed;
 3. Predictions of whether the transfer could result in a change in the placement of the child;
 4. The Indian child's perceived cultural connections with the Tribe or reservation;
 5. Consideration of any perceived inadequacy of judicial systems;
 6. Consideration of the perceived socioeconomic conditions within a Tribe or reservation; or,
 7. Consideration of bonding or attachment that resulted from time spent in a non-preferred placement that was made in violation of ICWA.
- B. The county department shall prepare child(ren) for legal transfer to the Tribal court of jurisdiction as appropriate to their age. Such preparation shall include:
 1. Information about reasons for the transfer and its timing.
 2. Involvement of the child in the plans for transfer (see Pre-Placement Activities, Section 7.304.61).
- C. The county department shall coordinate plans for the transfer of the child(ren) with the Tribal agency responsible for accepting custody of the child(ren) prior to the transfer.
- D. The county department shall expeditiously provide a complete copy of its file(s) concerning the Indian child(ren) to the Indian child's Tribe.

7.309.5 FOSTER CARE AND PRE-ADOPTIVE PLACEMENTS - INDIAN CHILD WELFARE ACT

The county department shall make every effort to make placements:

- A. In the most appropriate, least restrictive setting, that most approximates a family and best meets the needs of the child, taking into consideration:
 1. Sibling attachment;

2. The Indian child's special needs (if any); and,
- B. Within a reasonable distance to the child's home, extended family, or siblings.
- C. The parent or Indian custodian may withdraw consent to voluntary foster care placement at any time and have the Indian child returned to them as soon as practical.

7.309.6 ORDER OF PREFERENCE - INDIAN CHILD WELFARE ACT (FOSTER CARE AND PREADOPTIVE PLACEMENT)

The county department shall place eligible Indian children for foster care or pre-adoptive placement according to the following order of preference. It shall do so, unless the child's Tribe has established another order, or unless it has good cause to the contrary, as documented in the child's record.

A. For Out-of-Home Care/Pre-Adoptive Placement:

The county department shall engage the Tribe at the earliest possible opportunity to not hinder the Tribes' ability and options regarding placement preference in foster care or pre-adoptive placements. Under ICWA the county department shall use the following order of preference unless the Indian child's Tribe has identified a different placement preference than the following

1. Member of child's extended family;
 2. Foster home licensed/certified, approved or specified by the Indian child's Tribe;
 3. Indian foster home licensed/certified, approved or specified by an authorized non-Indian authority; or
 4. Institution for children approved by an Indian Tribe or operated by an Indian organization which has programs suitable to meet the needs of Indian children.
- B. The county department shall not depart from placement preference based on the socioeconomic status of any placement relative to another placement or based on the ordinary bonding or attachment that results from time spent in a non-preferred placement that was made in violation of ICWA.
- C. The following are the only actions considered good cause to deviate from placement preferences:
1. Request from the parent(s);
 2. Request from the child;
 3. Sibling attachment; or,
 4. Extraordinary physical, mental or emotional needs of the child; or,
 5. The unavailability of a suitable preferred placement.
- D. The county department shall follow a different order of preference if one is established by the Tribe, so long as the placement is the most appropriate and least restrictive setting to meet the child's needs. Where appropriate, the preference of the Indian child or parent(s) shall be considered. If a consenting parent has a desire for anonymity, the county department shall give weight to such desire in applying the preferences.

7.309.7 PLACEMENTS INVOLVING STATUS OFFENSES- INDIAN CHILD WELFARE ACT

- A. ICWA includes requirements that apply whenever an Indian child is the subject of a proceeding involving status offenses if any part of that proceeding results in the need for out-of-home placement for the child, including a foster care, pre-adoptive, or adoptive placement or termination of parental rights.
- B. The county department shall ensure that the consent signed by the parent(s)/Indian Custodian(s) shall contain all of the following:
 - 1. Name and birth date of child.
 - 2. Name of child's Tribe.
 - 3. Child's enrollment number or other indication of membership/citizenship in the Tribe.
 - 4. Name, address and Tribal enrollment number of consenting parent(s)/custodian(s).
 - 5. Name and address of prospective parent(s), if known, for substitute care placements.
 - 6. Name and address of person or agency through whom placement arranged, if any, or adoptive placements.

7.309.8 Involuntary Termination of Parent-Child Relationship - Indian Child Welfare Act

When terminating the parent-child legal relationship of a child under ICWA, the county department shall provide the court of jurisdiction with evidence beyond a reasonable doubt, including testimony of qualified expert witness. (See section 7.309. 1).

7.309.81 Relinquishment of Child for Adoption

- A. A voluntary relinquishment of an Indian child may be done in a state court when the parent(s) chooses to file a relinquishment petition under Colorado statutes.
- B. The county department shall not petition the court for relinquishment before 10 days after the child's birth.
- C. The county department shall follow the procedure outlined for court ordered placement in the "Initial Notification - Involuntary Placements" section. If the child is from either Ute Mountain Ute or Southern Ute Indian Tribe, the county department shall comply with the Tribal-State Agreement.
- D. The county department shall not accept voluntary consent for foster or adoptive care unless all of these conditions are met:
 - 1. The consent is voluntary and obtained free of fraud or duress;
 - 2. The consent is in writing and recorded before a judge; and,
 - 3. The consent is accompanied by the judge's certificate ensuring that terms and consequences of the consent were fully explained in:
 - a. Detail and fully understood by the parent(s) or Indian custodian(s).

- b. English or interpreted into a language understood by the parent(s) or Indian custodian(s).
- E. Withdrawal of consent may apply to relinquishment of parental rights. In these situations the parent(s) or Indian custodian(s) may withdraw consent for any reason at any time prior to the entry of the final decree of relinquishment and have the child returned.

7.309.82 ORDER OF PREFERENCE - INDIAN CHILD WELFARE ACT, ADOPTION

- A. The county department shall make placements of eligible Indian children for adoption according to the following order of preference, unless there is good cause to the contrary as determined by the court, or where the Indian child's Tribe has not established a different order of preference. Preference shall be given in descending order, as listed below:
 - 1. A member of the child's extended family;
 - 2. Other members of the Indian child's Tribe; or
 - 3. Other Indian families.
- B. The county department shall also consider, when appropriate, the placement preference of the Indian child or Indian child's parent(s).

7.309.83 DOCUMENTATION– INDIAN CHILD WELFARE ACT

- A. The county department shall document all active efforts, notice provided, and departures from placement preferences in the state automated case management system.
- B. The county department shall maintain records evidencing the efforts to comply with placement preference. These records shall be made available at any time upon the request of the BIA or the Indian child's Tribe. Efforts to comply shall include documentation by the county department to search diligently for placement which falls within the preference of the act.
- C. The county department bears the burden of proving by clear and convincing evidence that there is good cause to depart from placement preference, and the court's determination of good cause shall be made on the record and in writing and maintained by the county department.
- D. The county department shall maintain records of every voluntary or involuntary foster-care, pre-adoptive and adoptive placement of an Indian child and make the records available within fourteen (14) days upon request of the secretary of the BIA or the Indian child's Tribe. The record shall contain, at a minimum, the petition or complaint, all substantive orders entered in the child-custody proceeding, the complete record of the placement determination, and if the placement departs from the placement preferences, detailed documentation of the efforts to comply with the placement preference.

7.309.84 Disrupted or Changed Placement - Foster Care or Adoption - Indian Child Welfare Act Notice to Parent(s) and the Tribe

- A. When a final decree of adoption of an Indian child has been vacated or set aside or the adoptive parent(s) has voluntarily consented to the termination of his or her parental rights to the child, the county department shall notify the child's parent(s), Indian Custodian(s), and Tribe of jurisdiction within 10 working days. These parties may petition for return of custody and the court shall grant such petition unless there is a showing that such return of custody is not in the best interests of the child. (See Order of Preference, Section 7.309.83.) This notice shall inform the recipient of her or his right to petition for return of custody of the child. The Tribe shall also be notified of changes or disruptions in adoptive placements.
- B. Notice shall be sent by registered or certified mail with return receipt requested to the parent(s), Indian custodian(s) and the Tribe whenever a final decree of adoption has been vacated.

7.309.85 ADOPTION DECREE

- A. The county department shall provide notice of any voluntary or involuntary adoption of an Indian child to the BIA within 30 days of the final decree, to the following address:

Bureau of Indian Affairs, Chief
Division of Human Services
1849 C Street NW., Mail Stop 4513 MIB
Washington DC 20240

- B. The following information shall be included, in an envelope marked "confidential":
 - 1. Birth name and birthdate of the Indian child, and Tribal affiliation and name of the Indian child after adoption;
 - 2. Names and addresses of the biological parent(s);
 - 3. Names and addresses of the adoptive parent(s);
 - 4. Names and contact information for any agency having files or information relating to the adoption;
 - 5. Any affidavit signed by the biological parent or parents asking that their identity remain confidential; and
 - 6. Any information relating to Tribal membership/citizenship or eligibility for Tribal membership/citizenship of the adopted child.

7.310 FAMILY STABILITY SERVICES (FSS)

- A. Family Stability Services shall be provided within context of a support plan. The Family Services Plan or other existing plan may be utilized if it meets minimum qualifications; otherwise, the State shall provide a format for the support plan. The support plan shall identify at a minimum:
 - 1. Family strengths;
 - 2. Family's unique needs;
 - 3. Appropriate service and supports based on strengths and needs; and,

4. Family generated goal(s) within service time frames.
- B. The program goals of FSS are to assist in the provision of appropriate and necessary short-term services to help stabilize families in order to:
 1. Preserve the family unit, including kin and adoptive families; or,
 2. Reintegrate children with their families, including adoptive families.

7.310.1 DEFINITIONS

Family Stabilization Services consists of the following services areas:

- A. "Respite Care": a service to provide temporary care to children who are not in an out-of-home placement through the county departments of social/human services and to their families who request a short break in parenting in order to stabilize family environment. Respite may occur outside of the home and in the home settings for less than 24 hours. The family may choose appropriate respite care providers including, but not limited to, kin, friends and licensed providers depending on the needs of the family and available resources.
- B. "In-home Services": short-term, solution-focused services provided to children who are not in an out-of-home placement through the county departments and to their families, based on their unique needs in order to strengthen the home environment so that children do not need a higher level of intervention or out-of-home placement.
- C. "Reintegration Services": transition services to assist children and families to reintegrate following an out-of-home placement. Service elements would prepare children and their families for successful reunification.

7.310.2 PROGRAM ELIGIBILITY

- A. County departments may make available Family Stability Services, subject to available resources, to families who meet the eligibility criteria. These services shall be provided through contracts or service agreements with private or nonprofit organizations or entities whenever possible.
- B. In order to be eligible for the Family Stability Services:
 1. Each family shall be in need of services to stabilize the home environment; or have been reunited with the child(ren) following an out-of-home placement.
 2. Each family must also:
 - a. Voluntarily request such services; and,
 - b. Have utilized existing resources or existing services, which have not met the family's needs; and,
 - c. Have the potential to stabilize the family environment.

7.310.3 SERVICE ELEMENTS

Family stability services may include, but are not limited to, the following array of services in order to address the diverse needs of the family:

- A. Crisis Intervention: Crisis services such as phone or in-home counseling, crisis counseling, respite care (less than 24 hour) or acute interventions aimed at alleviating the crisis.
- B. Family Support Services: Family strengthening services such as parent education, family group conferencing, tutoring, mentoring, life skills training, home visitation, mediation, conflict resolution, family advocacy, support groups, recreational activities and linkages to other community resources.
- C. Therapeutic Services: These services could include individual and family counseling, aftercare treatment, multi-systemic therapy, case management, and other therapeutic interventions.

7.310.4 SERVICE TIME FRAMES

Service time frames shall be outlined in the support plan.

- A. Respite services must be less than 24 hours of continuous care and may be provided up to three (3) months. Respite services should be provided within 24 hours of identification of the need.
- B. In-Home services may be provided up to three (3) months. The family should be linked to organized and/or natural supports within the community within one (1) week of the identification of the need.
- C. Reintegration services may be provided up to three (3) months. The family should be linked to therapeutic services within one (1) week of identification of the need.
- D. Extensions to the initial provision of service are optional; if a review process is described in the county Family Stability Services plan and the support plan indicates that the family will benefit from an extension of services in order to stabilize the home environment.

7.310.5 WORKLOAD STANDARDS

Workload standards shall be determined by the local county department and/or by community-based agencies and outlined in the county Family Stability Services plan.

7.310.6 PERFORMANCE INDICATORS [Rev. eff. 4/1/12]

Family Stability Services' success shall be measured by the degree to which the following performance indicators, as identified in the support plan, are achieved by clients:

- A. Crisis Intervention
The family has improved family interactions and has demonstrated the ability to alleviate a crisis.
- B. Family Support Services
The family has created and has shown its ability to utilize an informal or/and formal support system within the community that is readily accessible during stressful family situations to enable the members to remain safely together.
- C. Therapeutic Services
The family has identified its strengths and demonstrated an increased capacity to advocate for itself and manage the day-to-day stressors of working as a family unit.

7.311 RELATIVE GUARDIANSHIP ASSISTANCE PROGRAM [Rev eff. 12/1/12]

The Relative Guardianship Assistance Program provides assistance to a relative guardian in a defined and limited manner so that permanency is achieved for an eligible youth or child. Relative guardianship assistance is intended to help or remove financial or other barriers for a relative guardian, as defined in Section 7.311.1, of a Colorado youth or child by providing assistance to the relative guardian to care for and raise the youth or child. The Relative Guardianship Assistance Program elements are as follows:

- A. Reunification and adoption efforts must have been exhausted and those goals have been ruled out based on individualized needs.
- B. The program is most appropriate for older youth who choose not to be adopted and who want to maintain familial ties while living safely and achieving permanency with a relative guardian.
- C. The program shall not supplant diligent reunification or adoption efforts.
- D. Youth who are twelve (12) years and older and who refuse adoption shall receive ongoing counseling by a professional who is knowledgeable about adoption and permanency issues.
- E. All requirements of this section relate solely to the Relative Guardianship Assistance Program and excludes any other type of guardianship.

7.311.1 ELIGIBILITY REQUIREMENTS [Rev. eff. 1/1/16]

Eligibility requirements for the prospective relative guardian and youth and/or child must be documented in the Family Services Plan in the child welfare case management system and are as follows, including the definition specific to relationships for a kinship foster home in § 19-1-103 (71.3), C.R.S.:

- A. For the purpose of the Relative Guardianship Assistance Program, a relative is defined as:
 - 1. An adult who is related to the youth or child in the fifth (5th) degree of kinship;
 - 2. Related to the youth or child through marriage or adoption;
 - 3. A person ascribed by the family as having a family-like relationship; or,
 - 4. An individual that had a prior significant relationship with the youth or child.
- B. The most recent removal occurred through a court order, or a voluntary placement agreement and subsequent court order for authority for placement that includes a judicial determination that continuation in the home would be contrary to the welfare of the youth or child; and,
- C. The prospective relative guardian was the:
 - 1. Relative foster care parent for the youth or child for a minimum of six (6) consecutive months while the youth or child resided in the home, excluding breaks in full certification due to provisional or probationary certificates being issued, or other adverse action taken regarding the certificate or,
 - 2. Non-relative foster care parent for a minimum of twelve (12) consecutive months while the youth resided in the home, excluding breaks in full certification due to any adverse action taken regarding the certificate if all of the following requirements are met:
 - a. The youth is twelve (12) years of age or older; and,

- b. The youth consents to guardianship or allocation of parental responsibilities (apr) with the foster parent; and,
 - c. The dependency and neglect court finds that the youth has a substantial psychological tie to the foster parent and it would be seriously detrimental to the emotional well-being of the youth to remove the youth from the foster parent's care as referenced in § 19-3-702 (5) (a) (III) and (5) (b), C.R.S.; and,
 - d. the dependency and neglect court makes a finding pursuant to § 19-3-702 (5) (a) (III), C.R.S., that the foster parent is unable to adopt the youth because of exceptional circumstances, which do not include unwillingness to accept legal responsibility for the youth, but is willing and capable of providing the child with a stable and permanent environment; and,
 - e. In the case of the sibling(s) of a child meeting the requirements in (a-d) residing in the same foster care home, the siblings must meet the requirements in (c-d).
- D. Reunification and adoption are not appropriate permanency goal options for the youth or child; and,
- E. The youth or child demonstrates a strong attachment to the relative; and,
- F. Youth who are age twelve (12) or older are consulted about their expressed wishes to be placed in a relative guardianship (refer to Section 7.311.2, A); and,
- G. The prospective relative guardian has a strong commitment to caring for the youth or child permanently; and,
- H. The reason why permanent placement with a prospective relative guardian and receipt of a relative guardianship assistance payment is in the best interests of the youth or child.

7.311.2 COUNTY DEPARTMENT RESPONSIBILITIES

The county Department of Human or Social Services shall assess and demonstrate the youth or child's appropriateness for the Relative Guardianship Assistance Program.

Documentation in the Family Services Plan in the State automated case management system shall include:

- A. Efforts to discuss adoption with the kinship foster care parent as the more permanent option for the youth and/or child and the reasons that the prospective relative guardian is unwilling to adopt. The goal of the discussion shall be to assure that the prospective guardian makes a fully informed decision regarding the permanency options that are available. The discussion shall include, but not be limited to, the following areas:
 - 1. The legal differences between termination of parental rights for adoption and the transfer of guardianship;
 - 2. The relationship with the birth or custodial family; and,
 - 3. Family time with the birth or custodial family and sibling as outlined in 7.304.64, 7.304.641, and section 7.311.21, B.

- B. The prospective relative guardian understands the significance of permanency through guardianship and the importance in continuing to be a permanent family after the youth or child exits the relative guardianship assistance program.
- C. Efforts to discuss the relative guardianship assistance arrangement with the parents or legal custodians of the youth or child, and if it was not discussed with the parents, provide the reasons why the efforts were not made.
- D. If relinquishment or termination of parental rights occurred for the youth or child, how the requirements in Section 7.306 are met to assure that concerted efforts to achieve adoption were made and documented. When the goal of adoption is ruled out, the requirements in Section 7.306.14, B, 2 (Colorado Adoption Resource Registry) shall be met.

7.311.21 Placement with Siblings [Rev. eff. 1/1/16]

In addition to requirements in Section 7.301.24, the county Department of Human or Social Services shall document:

- A. The efforts to place siblings together in the kinship foster care home.
- B. The ongoing efforts to facilitate placement together and the efforts to maintain frequent Family Time and ongoing connections for siblings that live apart.

7.311.22 Inclusion of Siblings in a Relative Guardianship Assistance Agreement [Eff. 2/1/10]

- A. Sibling(s) of a youth or child who meet all other requirements identified in Section 7.311.1 except the Title IV-E eligibility may be included in the same relative guardianship assistance agreement when there is agreement by the sibling(s) of the youth or child, prospective relative guardian, and the county department that the arrangement is in the best interests of the sibling(s) of the youth or child. This may occur on or at a later date than the youth or child who is Title IV-E eligible, and
- B. Relative guardianship assistance payments may be made on behalf of each sibling in the same relative guardianship assistance agreement.

7.311.3 RELATIVE GUARDIANSHIP ASSISTANCE RECORDS [Eff. 2/1/10]

- A. Information in the record shall be updated when changes occur or additional information is available.
- B. Upon termination of the Relative Guardianship Assistance Agreement the record shall be closed.

7.311.4 BENEFITS [Eff. 2/1/10]

Social/Supplemental Security benefits for a youth or child in a Relative Guardianship Assistance Agreement:

- A. The county department shall inform the prospective relative guardian of the potential eligibility for Social/Supplemental Security benefits for any youth or child placed with them.
- B. When a youth or child is eligible for Social/Supplemental Security benefits and is receiving relative guardianship assistance, the relative guardian must inform the agency of the receipt of these benefits.

7.311.41 Legal Residence of the Youth or Child in a Relative Guardianship Assistance Agreement for Medicaid [Eff. 2/1/10]

- A. Following the court appointment of relative guardianship, if the youth or child resides in a different county than the county in which the relative guardianship was granted in Colorado, the county of residence where the youth or child is placed shall open Medicaid benefits.
- B. The placing county department shall send written notification to the resident county to expedite timely opening of the Medicaid benefits.

7.311.42 For Chafee Foster Care Independence Program Services, see Section 7.305.4. [Eff. 2/1/10]

7.311.5 RELATIVE GUARDIANSHIP ASSISTANCE PROGRAM SERVICES [Rev. eff. 12/1/12]

- A. The Relative Guardianship Assistance Program includes Title IV-E and a state and county-only (non Title IV-E) program.
 - 1. The federal government participates in relative guardianship assistance agreements for youth and children who meet the eligibility criteria for the Title IV-E relative guardianship assistance program.
 - 2. The state and county participate in relative guardianship assistance agreements for youth and children who are not eligible for the Title IV-E program.
- B. The Relative Guardianship Assistance Program provides assistance to a relative guardian in a defined and limited manner so that permanency is achieved for an eligible youth or child where reunification and adoption are not appropriate goals. The following requirements are applicable to both programs:
 - 1. The county department may make relative guardianship assistance payments and/or provide Medicaid or medical assistance following the appointment of the relative guardian by the probate court or the approval of an allocation of parental responsibilities (APR) by a juvenile or district court and continue the assistance until the youth has reached eighteen (18) years of age.
 - 2. The determination for expiration of the agreement must be made and documented in the original negotiation and noted in the original documents for the relative guardianship assistance agreement.
 - 3. The county department must determine that in each case a reasonable, but unsuccessful, effort to place the youth or child for adoption has been made before negotiating relative guardianship assistance, unless the best interests of the youth or child would not be served by such an effort.
 - 4. The county department may not use an income eligibility requirement (income means test) for the prospective relative guardian in determining eligibility for relative guardianship assistance.
 - 5. The relative guardianship assistance agreement that is negotiated shall be based on the needs of the youth or child and the relative guardian's circumstances.
 - 6. Public community-based programs or services that the youth or child is eligible for shall be accessed first to address the needs of the youth or child before a relative guardianship assistance agreement is negotiated.

7. The county department may authorize the following types of relative guardianship assistance agreements:
 - a. A “long-term relative guardianship assistance agreement” is intended to partially meet the daily needs of a youth or child indefinitely. A long-term agreement is made when the relative guardian’s financial situation is a barrier to achievement of relative guardianship and where it is unlikely to change. It may also occur when the needs of the youth or child creates an excessive hardship on the relative guardian’s financial and emotional resources. This type of monthly payment may continue until the circumstances change for the youth, child or the relative guardian, or the agreement terminates as outlined in the relative guardianship assistance agreement.
 - b. A “time-limited relative guardianship assistance agreement” is intended to partially meet the daily needs of the youth or child for a specified period. Funds may be used for start-up costs for items that the youth or child placed in relative guardianship may not have, such as sufficient clothing. The agreement partially covers unmet needs that are time-limited and non-renewable.
 - c. A “core” relative guardianship assistance agreement (Title IV-E only) means there is a minimum monthly assistance payment of at least ten dollars (\$10) and Medicaid provided. County departments shall document any specific needs that may occur in the future for the youth or child in the services record and in the State Department’s automated system. The agreement identifies a potential need for increased financial relative guardianship assistance that may be activated at a future time.
 - d. A “dormant relative guardianship assistance agreement” (non-Title IV-E only) means there is no relative assistance payment provided. County departments shall document any specific needs that may occur in the future for the youth or child in the services record and in the State automated system. The agreement identifies a potential need for financial relative guardianship assistance that may be activated at a future time. Medicaid benefits may be accessed (refer to Section 7.311.62, B).
 8. If the youth or child is reunited with the parent(s), previous legal custodian, or is adopted, eligibility for relative guardianship assistance is terminated.
 9. A relative guardian who meets the criteria for relative guardianship assistance are eligible for non-recurring relative guardianship assistance expenses.
 10. The contact requirements in Section 7.001.6 shall be met prior to court appointment of relative guardianship. The contacts shall be documented in the State Department’s automated system.
 11. Case services payments may be part of the relative guardianship assistance agreement; these payments may be made directly to the providers of service or to the appointed relative guardian.
- C. Applicable Groups for Relative Guardianship Assistance
1. Youth or children who are in the custody of the county department.
 2. The county department requesting the assistance agreement is financially responsible for the care of the youth or child.

D. County Department Requirements for Relative Guardianship Assistance

1. While the Relative Guardianship Assistance agreement is in effect, a combined record for each youth or child and the relative guardian shall be maintained.

A combined record shall contain documentation about each youth or child and the relative guardian, which is relevant to the guardianship assistance agreement including, but not limited to, application, Structured Analysis Family Evaluation (SAFE) home study and applicable update(s) related to the relative guardianship, medical records, placement history, specific needs requiring purchase of services, confirmation of second opinions of professionals outside of the county department (licensed social worker, doctor, psychologist, or mental health specialist), annual school reports, and other applicable reports or evaluations.

2. The county department shall prepare the documentation necessary for the youth or child for relative guardianship assistance on the State Department's prescribed form no later than one calendar month prior to the court appointment of the relative guardianship.
3. The county department shall review the information on the State Department's prescribed form with the relative kinship guardian. All parties shall date, sign, and initial the document before the court appoints the relative guardian.
4. The county department shall enter the legal relative guardianship information for each youth or child into the State Department's automated system within thirty (30) calendar days following the date that the court appoints the relative guardian. The eligibility determination shall be completed in the Title IV-E module within forty-five (45) calendar days following the date that the court appoints the relative guardian.

7.311.51 Provision of Services [Eff. 2/1/10]

Following the court appointment of the relative guardianship, the county department shall provide services to the youth or child and the relative guardian family as addressed in the guardianship assistance agreement to assure stability of permanency. This does not preclude providing additional services based on current or temporary circumstances including, but not limited to, core services.

7.311.6 RELATIVE GUARDIANSHIP ASSISTANCE AGREEMENT SERVICES [Rev. eff. 12/1/12]

- A. The county department may make relative guardianship assistance payments and/or provide Medicaid or medical assistance at the time the relative guardianship is appointed by the court and continue the payments until the youth reaches the age of eighteen (18).
- B. The expiration of the agreement must be determined and documented in the original negotiation and noted in the original paperwork for the relative guardianship assistance agreement.
- C. The county department shall not use an income eligibility requirement (income means test) for the prospective relative guardian in determining eligibility for relative guardianship assistance.
- D. The relative guardianship assistance agreement shall be negotiated in good faith and based upon the needs of the youth or child and circumstances of the relative guardian.
- E. Public community-based programs or services that the youth or child is eligible for shall be accessed first to address the needs of the youth or child before a relative guardianship assistance agreement is negotiated.

- F. If the youth or child is reunited with the birth parent(s) or legal custodians, the youth or child is not eligible for relative guardianship assistance.
- G. Relative guardians of youth or children who meet the criteria for relative guardianship assistance are eligible for non-recurring relative guardianship expenses.
- H. Relative guardianship assistance services may be provided for youth and children who meet the requirements, and:
 - 1. The payment may not exceed the foster care reimbursement.
 - 2. A binding relative Guardianship Assistance Agreement shall be negotiated and a copy provided to the relative guardian.
 - 3. The relative guardian may renegotiate the agreement if the needs of the youth or child, or the circumstances of the relative guardian, change.
- I. The amount of the assistance agreement and the manner that the payments will be provided shall be documented on the State prescribed forms.

7.311.61 Title IV-E Relative Guardianship Assistance [Rev. eff. 11/1/15]

- A. When a successor guardian is not identified in the original assistance agreement (or in an addendum to the assistance agreement dated prior to incapacitation or death of the relative guardian) and the relative guardianship is removed or an allocation of parental responsibilities is modified, the youth or child and the subsequent relative guardian must meet all Relative Guardianship Assistance Program eligibility requirements, including:
 - 1. A new determination regarding the continuing needs of the youth or child;
 - 2. Completion of a new relative guardianship assistance agreement with the new relative guardian; and/or,
 - 3. If the previous relative guardian is deceased, a copy of the death certificate must be provided.
- B. After a youth or child has been determined eligible for Title IV-E relative guardianship assistance payments and/or Title IV-E Medicaid benefits, Title IV-E eligibility continues while there is a relative guardianship assistance agreement in effect:
 - 1. Eligibility continues as long as the youth or child meets the requirements regardless of the relative guardian's state of residence.
 - 2. Title IV-E relative guardianship assistance benefits and/or Title IV-E Medicaid benefits must continue until the expiration of the original agreement unless all parties to the agreement are in concurrence. This includes, but is not limited to, a situation where the relative guardian fails to complete and return paperwork related to the three-year review of the assistance agreement.
 - 3. If the previous relative guardian is deceased, a copy of the death certificate must be provided.
- C. Eligibility Determination for Medicaid in Title IV-E Relative Guardianship Assistance

1. A youth or child who is eligible to receive a Title IV-E payment is categorically eligible for Medicaid. A relative guardianship assistance payment is required to extend Medicaid coverage.
2. Medicaid eligibility shall continue for Title IV-E eligible youth and children who are out of the home for more than thirty calendar days unless it is determined that they are eligible for Medicaid under another program by completing the State Department's prescribed form (see county responsibility, Section 7.402.2).
3. Medicaid eligibility for the youth or child shall be re-determined annually only if the youth or child continues to be eligible for Medicaid. Complete the State Department's prescribed form or a form letter stating that the youth or child continues to be eligible for Medicaid. This document shall be sent to other states by the county department to ensure continuation of Medicaid for a youth or child who is residing out of state.

7.311.62 State-County Relative Guardianship Assistance (Non-Title IV-E) [Rev. eff. 11/1/15]

- A. Non-Title IV-E relative guardianship assistance services may be provided to a youth or child who does not meet eligibility criteria as determined in the Title IV-E module, and:
 1. The youth or child was not Title IV-E eligible in foster care.
 2. The youth or child was placed in foster care with the county department through a court order or a voluntary placement agreement with the county; and,
 - a. There was no subsequent petition with the court and a court order within 180 days of living with the specified relative that includes "best interest" or "contrary to the welfare language; or,
 - b. There was no foster care payment made while in care under the voluntary placement agreement.
- B. Medicaid Eligibility Determination for Non-Title IV-E Relative Guardianship Assistance
 1. Youth and children who are eligible for a relative guardianship assistance agreement, but are not Title IV-E eligible may be eligible for:
 - a. Medicaid through other categories of assistance; and/or,
 - b. Temporary Assistance for Needy Families (TANF).
 2. Medicaid eligibility may be continued when the youth or child is in out-of-home care for thirty (30) calendar days, depending on the county department's policy.
 3. Medicaid eligibility shall be redetermined annually only when the youth or child continues to be eligible for Medicaid. This shall be completed on the State Department's prescribed form.
- C. When a successor guardian is not identified in the original assistance agreement (or in an addendum to the assistance agreement dated prior to incapacitation or death of the relative guardian) and the relative guardianship is removed or an allocation of parental responsibilities is modified, the youth or child and the subsequent relative guardian must meet all Relative Guardianship Assistance Program eligibility requirements, including:
 1. A new determination regarding the continuing needs of the youth or child; and,

2. Completion of a new relative guardianship assistance agreement with the new relative guardian; and/or,
3. If the previous relative guardian is deceased, a copy of the death certificate must be provided.

7.311.63 Negotiation of Relative Guardianship Assistance Agreements [Rev. eff. 12/1/12]

A. The county department shall:

1. Establish a policy regarding the criteria used for calculating the relative guardianship assistance agreements. The agreements shall be established in accordance with the written policy.
2. Determine specific needs of the youth or child and eligibility for relative guardianship assistance.
3. Utilize financial information regarding the relative guardian's family including assets, liabilities and insurance benefits in negotiating the initial agreement, and any subsequent increases in relative guardianship assistance.
4. Not include a statement in the relative guardianship assistance agreement that Title IV-E relative guardianship assistance payments and/or services are subject to the appropriation of state funds.
5. Make a good faith effort to negotiate a relative guardianship assistance agreement with the relative guardian and base the negotiation on the needs of the youth and child and the circumstances of the relative guardian. If the parties cannot agree, the county department shall establish the amount. If the relative disagrees with the decision, a fair hearing may be requested.
6. Negotiate with the relative guardian the amount that is needed by the relative guardian to meet the needs of the youth or child. This may be less than the amount for which the youth or child qualifies.
7. Establish a maximum rate that may be provided to a relative guardian; the rate cannot exceed the current foster care maintenance rate that was reimbursed for the out-of-home care of the youth, or that would have been reimbursed if the youth or child was currently in out-of-home care. The monthly respite care payment that is provided in the foster care rate is not a benefit under the relative guardianship assistance program.
8. Identify additional services and assistance that the youth or child will be eligible for and the procedures for applying for the services.
9. Use the State Department's prescribed forms to document the negotiated agreement for Title IV-E or non-Title IV-E relative guardianship assistance, and attach supporting documentation.
10. Complete and sign the relative guardianship assistance agreement form specifying:
 - a. The dollar amount of the relative guardianship assistance being provided, if applicable.
 - b. The duration dates of the agreement:

- 1) Until the youth or child in relative guardianship reaches the age of eighteen (18) years, or,
 - 2) On a case-by-case basis, the duration of the agreement may be sooner than this time. All parties must be in agreement with the earlier termination date.
 - c. The services and dates of services that are covered by the relative guardianship assistance agreement.
 - d. The relative guardianship assistance agreement must be signed and dated by all parties prior to the effective date of the agreement, which is the date that the court appoints relative guardianship. If the county department fails to completely execute the relative guardianship assistance agreement prior to the date the relative guardianship is appointed, the assistance payment will become non-reimbursable by the state and Title IV-E funds.
11. Review the agreement every three (3) years from the date of the initial agreement.
 - a. Any change in the relative guardianship assistance agreement shall be related to the original needs, identified at the time the decision was made that relative guardianship assistance was needed.
 - b. A Title IV-E relative guardianship assistance agreement shall not be changed without the concurrence of all parties. The only exception is if there is a reduction or increase in the foster care maintenance payment rate. In that circumstance the state may adjust the relative guardianship assistance payment without the relative guardian's agreement.
 - c. Any change in a non-Title IV-E relative guardianship assistance agreement must be related to the specific needs of the youth or child, the relative guardian's circumstances, and the county department's policy.

The county department shall negotiate with the relative guardian that when the youth or child is in out-of-home care or committed to the Division of Youth Services for more than thirty (30) days, the assistance payment shall be suspended until the youth or child returns to the relative guardian's home.
 - d. After the court appoints the relative guardianship, the county department shall not include additional needs for the relative guardianship assistance payment that are not directly related to the original identified needs of the youth or child, or unless the needs are based on a genetic relationship to the original needs.
 - e. The county department or a relative guardian may renegotiate an existing relative guardianship assistance agreement if the needs of the youth or child change and the information is related to the original needs that were identified or the family's circumstances.
12. For Title IV-E relative guardianship assistance agreements, there are situations after the relative guardianship appointment by the court where the guardian can request a state level fair hearing before an Administrative Law Judge (ALJ) concerning the eligibility of the youth or child or relative guardianship assistance benefits or the amount of those benefits. The situations include, but are not limited to:

- a. Relevant facts regarding the youth or child that were known and not presented to the relative guardians prior to the court appointment of relative guardianship.
- b. Denial of assistance based upon a means test of the relative guardian.
- c. Guardians' belief that an erroneous determination was made finding a youth or child ineligible for relative guardianship assistance.
- d. Denial of a request for a change in assistance payment rate due to a change in circumstances for the relative guardian.
- e. Decrease in the amount of relative guardianship assistance without the agreement of the relative guardian except as previously noted in Section 7.311.63, A, 11, b.

7.311.64 Successor Guardian [Eff. 11/1/15]

- A. A successor guardian may be identified in the original Relative Guardianship Assistance Agreement or in an addendum to the assistance agreement dated prior to incapacitation or death of the relative guardian for continuity of relationship and permanency, and to prevent re-entry into foster care for a youth or child, due to incapacitation or death of the original guardian.
- 1. Incapacitation means the relative guardian is substantially unable to perform the duties of a legal guardian for the youth or child(ren) named in the Relative Guardianship Assistance Agreement. Substantial inability to provide care may be due to a physically debilitating illness, disease, or injury; or a mental impairment resulting in substantial inability to understand the nature and consequences of decisions concerning the care of the youth or child.
 - 2. The eligibility of a successor guardian at the time of incapacitation or death requires all of the following conditions:
 - a. The successor guardian must meet requirements applicable to foster care providers for fingerprint-based criminal background checks through the Colorado Bureau of Investigation (CBI) and Federal Bureau of Investigation (FBI) at the time of incapacitation or death;
 - b. All other adults residing in the home must meet requirements applicable to foster care providers for fingerprint-based criminal background checks through CBI and FBI at the time of incapacitation or death;
 - c. The successor guardian and all adults (eighteen years and older) residing in the home are not registered sex offenders;
 - d. The successor guardian has knowledge about the needs of the youth or child in the relative guardianship assistance agreement; and,
 - e. The successor guardian is committed to raise the youth or child.
 - 3. Responsibilities of a successor guardian at the time of incapacitation or death of the original guardian and following appointment of guardianship include the following:

The successor guardian must:

- a. Notify the county department with financial responsibility for the Relative Guardianship Assistance Agreement about the incapacitation or death of the original guardian;
 - b. Submit completed documentation of fingerprint-based CBI and FBI results;
 - c. Identify all adults living in the home and their dates of residences for the preceding five (5) years;
 - d. Petition the probate court for guardianship or petition the juvenile or district court with jurisdiction for an allocation of parent responsibilities of the youth or child as soon as possible;
 - e. Collaborate with the county department with financial responsibility to complete a Relative Guardianship Assistance Agreement commensurate with the current agreement and based upon the needs of the youth or child and the circumstances of the successor guardian;
 - f. Notify the county department of any significant changes that affect the terms of the assistance agreement;
 - g. Submit required reports to the court; and,
 - h. Provide annual verification of school attendance for the child(ren) or youth included in the assistance agreement.
4. Responsibilities of the county department include the following:
- a. Upon notification of the incapacitation or death of a relative guardian, the county department shall suspend relative guardianship assistance payments and services identified in the original assistance agreement effective the date of incapacitation or death, until the successor guardian has attained guardianship of the youth or child through the probate court or an allocation of parental responsibilities through the juvenile or district court.
 - b. The county department shall review the current CBI and FBI fingerprint-based history provided by the successor guardian and for all adults (eighteen years and older residing in the home).
 - c. The county department shall request and review child abuse/neglect records in each state where the successor guardian and all adults (eighteen years and older) living in the home have resided in the five (5) years preceding the date of notification of incapacitation or death of the original guardian.
 - d. The county department shall complete national and CBI sex offender registry checks using the state prescribed procedures for the successor guardian and all adults (eighteen years and older) living in the home.
 - e. Upon determination that the prospective successor guardian meets requirements, the county department shall collaborate to provide commensurate assistance and services identified in the original Relative Guardianship Assistance Agreement and based upon the needs of the youth or child and the circumstances of the successor guardian.

- f. The assistance agreement shall be signed by all appropriate parties prior to the date the court awards guardianship. The relative guardianship assistance is effective the date of guardianship.

7.311.7 MEDICAL PAYMENTS IN RELATIVE GUARDIANSHIP ASSISTANCE AGREEMENTS [Rev. eff. 12/1/12]

- A. Medical payments in relative guardianship assistance agreements may be used to supplement any other available resource such as a relative guardian's private insurance that pays part but not all of the treatment (physical, mental, and emotional) for the youth or child.
 - 1. Payments are made directly to relative guardians for a service already received or to a vendor for the treatment of physical, developmental disabilities, or an emotional disturbance.
 - 2. Shall relate directly to the barrier(s) identified at the time the initial agreement is approved.
- B. The payments are not available for treatment of any physical, developmental disability, or emotional disturbance diagnosed after the court appointment of the relative guardianship.
- C. The payments may only be used for Medicaid cases if the service requested is a service that is not covered under the state Medicaid plan and relates to a need identified at the time the youth or child is placed in relative guardianship.
- D. The payments for medical services shall reflect the reasonable costs of those services in the community where the youth or child resides.

7.311.71 Reimbursable and Non-Reimbursable Relative Guardianship Assistance Case Services [Rev. eff. 12/1/12]

Case services are a type of purchased program services that support a case plan for youth and children in relative guardianship assistance.

Case services are provided to meet the special needs of a youth or child that were identified when the youth or child is placed into a relative guardianship and which are not covered by the relative guardianship assistance or Medicaid assistance agreements.

For eligibility for case services in a relative guardianship assistance agreement, the State Department's prescribed form outlining the agreement must be in place and the case open in the State Department's automated system as relative guardianship assistance case.

- A. Medical
 - 1. Orthodontia
 - a. Cosmetic reasons - not reimbursable.
 - b. Special needs directly related to the reason for which the youth or child was classified as special needs, e.g. cleft palate or injury related to an abuse will be reimbursable.
 - 2. Eye Glasses

- a. Eyeglasses are not reimbursable using case services funds because Medicaid pays for one (1) pair of glasses per year.
 - b. Payment for additional eye glasses during the year or contacts related to the special needs of the youth or child that were identified at the time of the initial relative guardianship assistance agreement are reimbursable.
- 3. Medication
 - a. Routine medication that is not related to the special needs of the youth or child - not reimbursable.
 - b. If related to the special needs of a youth or child - reimbursable. The medication must be prescribed by a licensed physician and related to the special need identified at the time the youth or child was approved for relative guardianship assistance.
- 4. Special Therapies - Speech, Occupational, and Physical
 - a. If not available through other community and family resources - reimbursable. Youth and school-age children should receive these services through the education system.
 - b. When these services are available in hospitals and clinics – not reimbursable because Medicaid covers these costs.
- 5. Special Medical Equipment

Special medical needs/equipment prescribed by a physician may be reimbursable. For a youth or child who is severely physically challenged; special exceptions should not exceed two thousand dollars (\$2,000) without a supervisor's written authorization.

B. Psychological Services

- 1. Time-limited out-patient therapy for a youth or child living in a state that does not accept Medicaid for this service - reimbursable if related to the special needs of the youth or child and a written plan is obtained from the service provider which contains:
 - a. Diagnosis.
 - b. Prognosis.
 - c. Length of service.
 - d. Individuals who will be seen during the therapy.
 - e. A cap on the amount of money to be spent for the psychological exam or therapy.
 - f. Frequency of contact (i.e., once a week, twice a month, etc.).
 - g. Type of therapy being provided (i.e., individual, group, family, etc.).
- 2. If time-limited out-patient therapy is available using Medicaid – not reimbursable.

3. Day treatment - not reimbursable because Medicaid provides for this service.
 4. Residential child care facility - not reimbursable because Medicaid provides for this service.
 5. In-patient psychiatric hospitalization - not reimbursable because Medicaid provides this service. (Children who are Medicaid eligible may receive some in-patient psychiatric services under the Medicaid program.)
- C. Education Costs
1. Tutoring - not reimbursable. Education systems are required to provide all youth and children with special needs a free appropriate public education.
 2. School tuition - not reimbursable. There will be no reimbursement for tuition expenses through the relative guardianship assistance program. If the relative guardian chooses the youth or child to remain in a current private school placement, this is an expense for which the relative guardian is responsible.
- D. Respite and Day Care
1. Respite care - reimbursable.
 2. Day care - not reimbursable.
- E. Other Relative Guardianship Assistance Case Services
- Relative guardianship assistance case services for youth and children who are Title IV-E or non-Title IV-E may be provided for a specified time to provide needed services. It is required that these time-limited services/funds are clearly provided on a case-by-case basis. This requirement must be clearly documented in the agreement.
- F. To be eligible for case services in a relative guardianship, the State Department's prescribed form outlining the agreement must be in place and the case opened in the State Department's automated system as a relative guardianship assistance case following the court appointment of relative guardianship.

7.311.72 Non-Recurring Relative Guardianship Expenses [Rev. eff. 12/1/12]

- A. The relative guardian shall be reimbursed for the total costs of non-recurring expenses associated with obtaining relative guardianship, not to exceed two thousand dollars (\$2,000) per youth or child in order to facilitate achievement of the guardianship for:
1. Legal fees,
 2. Fees for relative guardianship, or
 3. Other expenses related to the relative guardianship of the youth or child, such as the cost of the SAFE home study and a SAFE update related to the prospective relative guardianship completed by the county department.
- B. The county department shall determine if the reimbursements requested by the prospective relative guardian are non-recurring expenses.
- C. Documentation for non-recurring relative guardianship expenses:

1. The county department shall use the State Department's prescribed form prior to the court appointing the relative guardianship.
2. The prospective relative guardian shall provide evidence of the needs of the youth or child.
3. Provide an itemized statement of the expenses to be reimbursed within one (1) year from the date of the probate court appointment of the relative guardianship or the date that the juvenile or district court approved an allocation of parental responsibilities.

7.311.8 ACCEPTING AND PROCESSING APPLICATIONS FOR RELATIVE GUARDIANSHIP ASSISTANCE FROM KINSHIP FOSTER CARE PARENTS WHO ARE CERTIFIED BY CHILD PLACEMENT AGENCIES [Rev. eff. 1/1/16]

- A. Colorado licensed child placement agencies may certify kinship foster care homes only upon written request from the county department of human or social services with responsibility for the care and custody of the youth or child.
- B. The county department will use the same procedures for all prospective relative guardians.
- C. The child placement agency that certified the prospective relative guardian retains responsibility for services to the relative guardian prior to the court appointment of the relative guardianship.

7.311.81 Review of Eligibility for All Ongoing Relative Guardianship Assistance Agreements [Rev. eff. 12/1/12]

- A. The county department shall initiate the written notice of the review for relative guardianship assistance sixty (60) days prior to the three (3) year anniversary of the agreement.
- B. The relative guardian may request a review of the agreement prior to the three-year review if changes in the needs of the child or family circumstances occur.
- C. Any changes in the needs of the youth or child shall relate to the original barrier(s), identified at the time the decision was made that relative guardianship assistance was needed. The county department shall not include additional needs for relative guardianship assistance payments after the court appointment of the guardianship unless genetic in nature.
- D. The county department shall review school attendance annually.

Relative guardianship assistance files must contain documentation of school attendance or reasons for the inability to attend. Documentation must be updated annually to assure that each youth and child who is eligible for relative guardianship assistance and who has attained the minimum age for compulsory school attendance is:

1. Enrolled (or in the process of enrolling) an elementary or secondary education institution,
2. Instructed in elementary or secondary education at home in accordance with the home school statute,
3. In an independent study elementary or secondary education program in accordance with statute, and which is administered by the local school, school district, or Board of Cooperative Education (BOCES), or

4. Incapable of attending school on a full-time basis due to the medical condition of the youth or child. The reasons shall be supported by regularly updated information in the educational plan maintained by the school, school district, or BOCES.

7.311.82 Procedures for Relative Guardianship Assistance Payment When a Youth or Child is in Out-of-Home Care or Committed to the Division of Youth Services [Rev. eff. 12/1/12]

- A. Medicaid eligibility shall continue for Title IV-E eligible youth or children who are out of the home for more than thirty (30) calendar days unless it is determined that they are eligible for Medicaid under another program by completing the State Prescribed form (see County Responsibility, Section 7.402.2).
- B. When a youth or child with a non-Title IV-E relative guardianship assistance agreement is placed in out-of-home care for more than thirty (30) days, the county department shall discontinue the relative guardianship assistance payment until the youth or child returns to the relative guardian's home. This includes a commitment to the Division of Youth Services.
- C. When non-Title IV-E eligible youth or child resides outside of Colorado with the relative guardian who has a relative guardianship assistance agreement and the youth or child is in out-of-home placement longer than thirty (30) calendar days, the relative guardianship assistance payment and relative guardianship case services shall be discontinued. A state/county non-Title IV-E agreement may only be resumed when the youth or child is returned home and the out-of-home placement has been discontinued on the State Department's automated system.

7.311.9 TERMINATION OF RELATIVE GUARDIANSHIP ASSISTANCE AGREEMENTS [Eff. 2/1/10]

The county department shall terminate relative guardianship assistance agreements when the:

- a. Relative guardian requests that payments end; or,
- B. Youth reaches age eighteen (18); or,
- C. The county department determines the relative guardian is no longer legally responsible for the support of the youth or child; or,
- D. Youth or child is no longer receiving any support from the relative guardian; or,
- E. County of responsibility verifies the death or marriage of a youth or child.

7.311.91 Reinstatement [Rev. eff. 11/1/10]

- A. Reinstatement of the original relative guardianship assistance agreement is prohibited when the relative guardian who was appointed by the court no longer has guardianship of the youth or child.
- B. Reinstatement of payments related to the needs of a youth or child that were identified at the time of the original Relative Guardianship Assistance Agreement is allowed for a:
 1. Youth or child that is non-Title IV-E eligible.
 2. Youth or child that is Title IV-E eligible.

7.311.92 Right to Appeal [Rev. eff. 12/1/12]

- A. If the county department denies an application for relative guardianship assistance, or reduces or terminates the assistance payment, the applicant or recipient has the right to appeal. Using procedures outlined in Section 3.850 (9 CCR 2503-1).
- B. When a family who has been denied Title IV-E relative guardianship assistance requests a state level fair hearing, it is the responsibility of the Administrative Law Judge to determine whether the applicant or recipient was wrongly denied eligibility or whether the amount of the relative guardianship assistance agreement was determined correctly (see Section 7.306.41, E).
- C. The relative guardian has the burden of proving extenuating circumstances and relative guardianship assistance eligibility at a state level fair hearing. The state and/or its designee can provide factual information to assist the family in establishing eligibility for Title IV-E relative guardianship assistance.
- D. When either state or federal law requires or results in a reduction or deletion of services, a hearing shall not be granted.

7.311.93 State Monitoring/Progressive Discipline Process of Relative Guardianship Assistance Programs in County Departments [Eff. 2/1/10]

- A. Monitoring shall be conducted annually with county departments by the State Department using a risk-based approach by reviewing the number and nature of complaints received from consumers, advocates, or the general public.
- B. The department will conduct monitoring in the same manner contained in Section 7.306.43.

Editor's Notes

History

Rule 7.304.21 D.2.f.4 emer. rule eff. 08/03/2007.

Rules 7.301.1-22, 7.301.231 eff. 09/01/2007.

Rule 7.304.21 eff. 10/30/2007.

Rule 7.301.1 emer. rule eff. 08/01/2008.

Rule 7.301.1 eff. 10/01/2008.

Rule 7.304.64 eff. 11/01/2008.

Rule 7.304.62 eff. 01/01/2009.

Rules 7.306.11-7.306.14, 7.306.2, 7.306.22-7.306.31, 7.306.34, 7.306.4-7.306.6 eff. 02/01/2009.

Rules 7.302, 7.302.2 eff. 04/01/2009. Rules 7.302.7-7.302.32 repealed eff. 04/01/2009.

Rules 7.305; 7.305.1; 7.305.5 eff. 05/01/2009.

Rule 7.304.52 emer. rule eff. 08/07/2009.

Rule 7.304.52 eff. 11/01/2009.

Rule 7.306.35 emer. rule eff. 11/06/2009.

Rules 7.301.24, 7.301.241-7.301.242, 7.304.21 D, 7.304.52 C-D, 7.304.54 P, 7.304.55 F, 7.304.74 D, 7.305.2-7.305.42, 7.306.35, 7.306.41 A, B7-D, 7.306.53, 7.306.56-7.306.57, 7.311 eff. 02/01/2010.

Rules 7.304.54 A-F; 7.304.62 G-H, N; 7.304.65; 7.306.21 E eff. 07/01/2010.

Rules 7.311.1, 7.311.2, 7.311.5 B7-D5, 7.311.6 H -7.311.61, 7.311.72, 7.311.82, 7.311.91 emer. rules eff. 08/06/2010.

Rules 7.301.24, 7.305.3-7.305.34, 7.305.42 emer. rules eff. 10/01/2010.

Rules 7.301.24, 7.305.3-7.305.34, 7.305.42, 7.311.1, 7.311.2, 7.311.5 B7-D5, 7.311.6 H, 7.311.61, 7.311.72, 7.311.82, 7.311.91 eff. 11/01/2010.

Rules 7.304.4, 7.304.53, 7.306.11, 7.306.15, 7.306.16 eff. 03/02/2011.

Rules 7.305.2 E, 7.305.5 eff. 08/01/2011.

Rules 7.301.242, 7.302, 7.302.2, 7.303.17, 7.304.21, 7.304.661, 7.304.73-.74, 7.305.1, 7.305.4, 7.305.42, 7.307.1, 7.307.52, 7.307.6, 7.307.61-.64, 7.310.6, 7.311.5, 7.311.61-.62 eff. 04/01/2012.

Rules 7.300.1, 7.304.52 eff. 05/01/2012.

Rules 7.304.62 L-P, 7.305.2 E-F, 7.305.4, 7.305.42 A-B eff. 07/01/2012.

Rules 7.305.4-7.305.4 C, 7.311-7.311.1, 7.311.5, 7.311.6-7.311.63, 7.311.7-7.311.72, 7.311.81-82, 7.311.92 emer. rules eff. 09/07/2012.

Rules 7.301.24 Q.1, 7.305.4-7.305.4 C, 7.306.4, 7.306.41 B.7-8, 7.311-7.311.1, 7.311.5, 7.311.6-7.311.63, 7.311.7-7.311.72, 7.311.81-82, 7.311.92 eff. 12/01/2012.

Rule 7.304.4 H eff. 04/01/2013.

Rule 7.307.6 eff. 10/01/2013.

Rules 7.303.11-7.303.13 eff. 01/01/2014.

Rules 7.301.22, 7.305.2, 7.305.2 E eff. 07/01/2014.

Rules 7.301.1-7.301.21, 7.301.231, 7.303-7.303.1 eff. 01/01/2015.

Rules 7.301.24, 7.303.3 eff. 08/01/2015.

Rules 7.301.21, 7.301.24, 7.301.24 K-N.1, 7.303.4, 7.304.21, 7.304.21 D-D.2, 7.304.52, 7.304.54, 7.304.54 I-Q, 7.304.61, 7.304.61 G, 7.304.62, 7.304.62 P-Q, 7.305.1-7.305.3, 7.305.33, 7.305.4, 7.305.41, 7.305.41 F, 7.305.42-.43, 7.305.5 A, 7.311.61-.62, 7.311.64 eff. 11/01/2015.

Rules 7.304.1, 7.304.21, 7.304.52, 7.304.53, 7.304.61, 7.304.62, 7.304.74, 7.306.14, 7.311.1, 7.311.2, 7.311.21, 7.311.8 eff. 01/01/2016.

Rules 7.301.24, 7.304.54 eff. 03/01/2016.

Rules 7.303.4, 7.304.52 C.3-4, 7.311.1, 7.311.5 B.1, 7.311.61 A, 7.311.61 B.3, 7.311.62 C, 7.311.64 A, 7.311.72 C.3 eff. 10/01/2016.

Rule 7.304.21 eff. 01/01/2017.

Rules 7.300.1, 7.301.2, 7.301.21, 7.301.23, 7.301.24, 7.301.241, 7.301.242 eff. 02/01/2017.

Rules 7.304.53 A.1, 7.309 eff. 07/01/2017.

Rules 7.304.62 S, 7.305.2 D, 7.305.2 F eff. 10/01/2017.

Rules 7.303.32 B.6, 7.304.21 E.2.f.3, 7.305.33, 7.305.41 F.3, 7.305.42 A, 7.311.63 A.11.c, 7.311.82 B eff. 12/01/2017.

Rules 7.301.3 E, 7.304.21 E.2.f.4, 7.309.31 E eff. 02/01/2018.

Rules 7.304.21 D.6.b.2, 7.304.21 E.2.f, 7.304.52 A.2, 7.304.53 D.3, 7.304.662 eff. 12/01/2018.

Rules 7.301.21 C, 7.305, 7.305.2 C, 7.305.42 A, 7.305.42 C.2 eff. 03/15/2019.

Rules 7.301.24 E, 7.301.241 eff. 03/30/2019.

Rules 7.304.65 F-G eff. 09/01/2019.

Rules 7.301.21, 7.301.23, 7.301.231, 7.301.3 eff. 01/01/2020.

Rules 7.306-7.306.32 eff. 01/30/2020.

Rules 7.301.24 A, 7.301.24 B, 7.301.24 K, 7.304.201, 7.304.61 C, 7.304.62 L-U, 7.304.64, 7.306.11 A eff. 06/01/2020.

Rule 7.304.62 A-G emer. rules eff. 06/12/2020.

Rule 7.304.62 A-G eff. 09/01/2020.

Rule 7.306.5, 7.306.6 eff. 09/30/2020. Rules 7.306.43, 7.306.57-59 repealed eff. 09/30/2020.

Rules 7.301.241 D, 7.303.11, 7.304.54 L, 7.305.1, 7.305.2, 7.305.4, 7.305.41, 7.305.42, 7.305.5 A eff. 12/01/2020. Rule 7.305.43 repealed eff. 12/01/2020.

Rules 7.304.201, 7.304.21 C.5, 7.304.21 D.7, 7.304.64 eff. 03/02/2021.

Rule 7.304.651 eff. 11/30/2021.

Rules 7.301.2, 7.301.23 A, 7.301.24 M, 7.301.24 R.7, 7.304.1 A.2, 7.304.3, 7.304.4 A, 7.304.4 C.6, 7.304.51 E, 7.304.52 E-F, 7.304.54 I, 7.304.61 B, 7.304.61 H, 7.304.62 L, 7.304.62 U, 7.304.64 I, 7.305.2 D.1 eff. 12/30/2021.

Rules 7.301.24 S.4.a-c, 7.301.241 D.1-2.f, 7.301.241 D.7-8, 7.304.53 M, 7.304.55 G, 7.304.62 L, 7.304.65 E, 7.304.651 B.6, 7.304.651 D.1, 7.305.2 E.1, 7.306.2 A.1 eff. 03/02/2023.

Rules 7.304.21 E.3.a.1, 7.304.61 F.1 eff. 06/01/2023.

Rules 7.306.4-7.306.48; repealed rules 7.306.34, 7.306.57 eff. 07/30/2023.

Rules 7.301.22, 7.301.24, 7.301.241, 7.303.4, 7.304.53, 7.304.65, 7.305.2 eff. 07/31/2023.

Rule 7.305.43 eff. 01/01/2024.

Rules 7.301.244, 7.301.245 eff. 04/01/2024.

Rules 7.301.22 B.2, 7.301.24 B.(1), 7.301.24 K, 7.301.24 S, 7.304.53 B.5)-6), 7.304.61 D, 7.304.64, 7.304.65, 7.304.661 A, 7.304.72, 7.305.2 C, 7.306.57, 7.311.2 A.3, 7.311.21 B eff. 06/01/2024.

Rules 7.303.32-7.303.35 eff. 06/30/2024.

Rules 7.301.22 B.3, 7.301.3 C, 7.304.201 2, 7.304.64 I eff. 12/01/2024.

Rule 7.303.4 eff. 01/01/2025.

Rules 7.304.21, 7.304.21.1, 7.304.52 eff. 07/01/2025.

Annotations

Rule 7.306.35 (adopted 12/04/2009) was not extended by Senate Bill 11-078 and therefore expired 05/15/2011.